

Jour 231 How to Write a Nonfiction Bestseller

Numbered Transcript

JOUR 231 • Gerald Posner

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Lecture 1: Pursuing Hidden Truths

At a glance — Posner opens on pursuing hidden truths in nonfiction writing.

- 1.1 Good morning, and thank you very much for joining me on Journalism 102: How to Write a Nonfiction Bestseller. Some of you may be thinking about writing nonfiction books. Others are just getting the idea of what it might be like. I wish that there was a simple format in which I could say, you know what? You don't actually have to listen to the course at all. Just take this sheet home, follow these eight rules, and you'll have a bestseller in the next six months. It should be that easy, but it's not.
- 1.2 After 40 years of doing this as a profession, paying my bills by writing for a living, I can tell you that each book and each project that you do is quite different. Over a period of time, my wife Trisha, who's also an author and collaborates with me on every book, sits in on every interview, goes with me, and then edits the material, and goes through the archives, and does the photocopies, and does all those things that you hope that you have with a book that you're taking that project on.
- 1.3 We've worked on a lot of different projects. And we've been very fortunate in that those books sometimes will be controversial, which means people are talking about it, but not necessarily buying them; there's a difference. So you can write something that all of a sudden gets a lot of press and attention, but maybe people don't want to spend \$20 to read about it. Maybe you are really fighting, remember, more than anything in this day and age, not just with other books, not just with what other subjects are, but you're really fighting for people's time.
- 1.4 Because you're asking somebody, if you put out a book, 300 pages—my last book on the pharmaceutical industry, 800 pages, the book before that, on the Vatican, almost 800 pages. Somebody goes into a store, or they go online, and they look at the page count, and they have to say to themselves, "You know what? I'm interested in that subject, but do I really want to spend the next four or five days in that world?" And so, you're asking a reader to give you not just spending the money on a project that you're doing, but investing the time on that.
- 1.5 And if they're absolutely interested in that particular field, fantastic. But if they're not—and to have a bestseller, you need to reach people beyond just that narrow topic, you need to reach them beyond the subject, for instance, of the Chinese triads and the heroin business, beyond the business of pharma, beyond just the business of what's going on, let's say, on an assassination. You have to stretch that out, and so that's one of the things that we'll talk about today.
- 1.6 So, welcome here. We're going to discover the craft of nonfiction storytelling. I will pass along what I've learned over time. We're going to learn techniques to structure, research, and try to tell compelling true stories. How do you discover the facts, come up with the research, and then, most of all, once you have the information, how do you

tell it into a story that isn't overwhelming to the reader and, at the same time, brings along and brings a conclusion?

- 1.7 We'll look at some of the case studies of books that I've worked on over time. This particular project, lecture one, goes back to the very first book I did, Mengele, about Josef Mengele, who was a Nazi doctor, who was, at the age of 32, sent to Auschwitz, the biggest Nazi concentration camp. And there he made his infamy by experimenting on children and trying to create a master race. And then he got away after the war.
- 1.8 I used to be, in another life, a lawyer, and that's how I actually started into the business of writing. So, what happened is, when I was practicing law in New York in 1978 to 1981, I was at a large Wall Street law firm. Then I left that law firm and I went into private practice. And when I was in private practice, I was doing some public interest law work, and somebody called me up and said, "By the way, we have a twin who had been experimented on by Josef Mengele, this Nazi doctor at Auschwitz."
- 1.9 It turns out that Mengele had experimented on twins. When they arrived at the concentration camp, the hundreds of thousands of people who ended up arriving there, most of them getting killed, he was at the ramp when the cars arrived, when the trains arrived, and he was yelling and looking for twins, because he knew as a doctor that if he had twins, he could do experiments on one, and one stayed the control group, and then he could see how it affected and how it was different with another.
- 1.10 So, they were basically children. One of these children who had survived, who had grown older with his sister, was spending thousands of dollars a year on medical expenses just to deaden the pain of what this doctor had done to them, back in World War II. So, he wanted the German government to pay for the extra medical expenses to cover the pain and the suffering that he had to cover. And they wanted to know if I would do a pro bono lawsuit, where you donate your time and effort and see if you could do something. And I said, "Sure." Sounded like an easy case. Never underestimate an easy case.
- 1.11 So, Marc Berkowitz was the person. He was fantastic. That's a picture of him, by the way, at the liberation of Auschwitz. You'll see that line. That is Marc Berkowitz when he was a child, when the camp was being liberated by Russian troops back in 1945. Berkowitz lit a fire in me, and I went out to try to do that case. We got thrown out of federal court. A judge said to us, "You've got to be kidding. You mean to tell me that you're suing in an American court for what a German army officer did in occupied Poland in World War II, on a person who wasn't even a citizen back then, and you're trying to collect money from the German government? Get lost."
- 1.12 And then we tried to sue the Mengele family, because we assumed that they were supporting him on the run, and we couldn't prove it at the time. So, I said to Trisha, "How difficult can it be to go ahead and essentially do a book on it?" But before I did that and decided to do a book, we had to do some research. So, that is Trisha and me in

1984 in Paris. That's on our honeymoon, believe it or not, when we got married. I have a shirt and tie on, and a suitcase, because I'd made that trip on our honeymoon to meet those two people, Serge and Beate Klarsfeld, who are Nazi hunters out of Paris. And I said to Trisha, "Do you mind if we spend our honeymoon actually talking to these Nazi hunters?" And she said, "No, it's all right," and I knew I had married the right person. So, that was absolutely critical. So, that's how we started some of the research.

- 1.13 Let me tell you, here are the reporting hurdles. Here's the hurdle if you're doing a book like Mengele. He's a wanted war criminal. There's no trial transcript. He was never tried, so I can't go back and immediately look at the witnesses and see what was said and what was created and what was done about him. There are no reliable witnesses. What I mean by that, I don't mean the witnesses of the victims; there are no reliable witnesses about what he did after the war, what he had done.
- 1.14 There's an effort by Mengele and those around him and the protectors to deceive others from being able to follow him. As a result, you have to work through that hurdle. And I think that what I tell you in this book is, it's not a history lesson. It's where to look where no one else is looking. If you have a project that really takes that, you have to think out of the box and say, "How do I tell this story when everyone's trying to keep it secret?"
- 1.15 Now, I say there's a bit of good luck in this. So, that's 1984, in November of '84, I went down to Argentina. There was a rumor that Mengele had been free in Argentina. He had sought a safe haven there after the war. So I went down there, and I decided to apply to that place, Casa Rosada, which is the presidential palace. I went in and I asked them for— there was a fellow who had just become the President of the country, Raúl Alfonsín. And you might remember, for some of you with a long memory, Argentina used to have a military government. Then they went to war with Britain over the Falkland Islands. They lost the war. The military government got thrown out. A civilian government came in. Raúl Alfonsín is the new President.
- 1.16 I went down there, and there's a good thing about being—always ask for every bit of information from every source that you can think of, even if you think to yourself, "They're going to tell me no." I've learned over time that if you make that decision for them, you say, "By the way, I can't go and get that document. I can't go and get that information, because they're going to say no to me," then you're never going to get it. If you go and they say no to you, fine.
- 1.17 I didn't know at the time, when I went to Argentina, to ask for the Mengele file, that preceding me had been Nazi hunters, had been Simon Wiesenthal, had been the American government, had been the Israeli government. They'd all asked the military government for their Nazi files. They had been told no. I went to Casa Rosada and said, "Hey, I'm a lawyer from New York, and I'd like to see the Mengele file."

- 1.18** A new civilian government, a wave of democracy, and what happened is, I was staying at this little hotel here, the Hotel Conquistador, in a very tiny room at a fantastic rate, so you could afford to stay there. Trisha was with me in the beginning for the first week, and then she had to go back to New York, because somebody had to pay the bills, because we were not earning any money from this. And one night, at around 11 PM, I get a knock on the door at the hotel, and there's members of the federal police, and outside was the Falcon. I called it the curse of the Ford Falcons.
- 1.19** The Falcons were notorious because they were used by the federal police in Argentina for the disappeared, the people who had been taken under the military junta, had been picked up, and they never came back. And so, they took me downstairs to the Falcon. They said, "We're going to police headquarters." I was able to call Trisha to let her know that I was leaving the hotel with the federal police and going to the federal police headquarters, so she would at least know the last location that I had.
- 1.20** We ended up in that building. And there, inside of there, with a translator that I brought in, who was very, very nervous, was a very grumpy Argentine colonel, who had been ordered by the civilian government to open up the Mengele file for me. They brought me into a room where, literally, there was a stack of papers that opened up 10 years of this fugitive's life—everything from his application to the government under a false ID, the passport he traveled under.
- 1.21** The fact that, in 1956, he went to the German embassy and said, "By the way, I arrived here under the name Helmut Gregor, a fake name, but my real name is Josef Mengele. And I'd like to get a German passport in that name, so I could go back to Europe," where he went to Switzerland for a skiing vacation with his family and met his then 12-year-old son, who thought he was an uncle, because he thought his real father died during the war. You talk about dysfunctional families. And then he came back to Argentina, and he went into business. He opened up a pharmaceutical company for a while, until he's indicted in 1959.
- 1.22** Now, think of that. The war ends in 1945. Man is one of the most heinous criminals in the war, but the Germans don't indict him for 14 years. So, for 14 years, he's a fugitive, but he's not technically wanted. And then he's really afraid and he disappears. He goes to Paraguay. The Israelis kidnap another Nazi fugitive, Adolf Eichmann, and that scares the hell out of Mengele. So Mengele, and we'll talk about that later, disappears, but I have 10 years of his life at that point. And these documents, these are hidden in citizenship files, medical records, business registrations. This is the type of material that makes history come alive.
- 1.23** Now, there's a sidelight which none of you will have to worry about any longer. Famous last words, but true. Forty-one years ago, 40 years ago, when I would get access to these files, it immediately meant translation. I'm dealing with the original documents, and what they say is critically important. There was no internet, there was no ChatGPT, there were no translation services or translation apps. I'm jealous today of young

journalists who are starting out, who can take those documents, and although they may not get them precise, there may be a word missed or that, they can scan them in, they can put them into a large language model, like an AI model, and they can find out within a few hours the basics of what a 600- or 700-page file said. This took forever.

- 1.24** And then I said to myself, "So I know what he was doing now until '59, when he went to Paraguay. So that means, what do I have to do? I have to go to Paraguay and find out what was going on next." And I ended up—that man, the bald man sitting to my right, is Alejandro von Eckstein. He was one of Josef Mengele's two co-sponsors for citizenship in Paraguay in '59. So it turns out, Mengele goes over to Paraguay, where he thinks it's safer; it's being run by a dictator, Alfredo Stroessner. He feels more comfortable under that military dictatorship.
- 1.25** And he applies for Paraguayan citizenship, and he gets it—this is hard to imagine; nobody had seen this yet—under the name José Mengele. So he doesn't change his name very much, and he gets two people to co-sponsor him for citizenship. One of them was dead by the time I got there. He had been the head of the Paraguayan version of the Nazi Party.
- 1.26** And the other was Alejandro von Eckstein, a Paraguayan colonel who found it charming, unusual, different, odd, that some American lawyer was wandering through Paraguay, looking for Mengele and wanted to talk to him. The man that is next to him is Otto Biss. He's a German who is living in Asunción. And he swears that he treated Hitler's deputy, Martin Bormann, who there's always been a great postwar mystery about, for stomach surgery at one point. Biss regaled you with stories about Nazis.
- 1.27** So I knew—and this is critical if you're doing nonfiction that is at all controversial—what's your goal? What's your purpose? Your purpose is to gather the facts to tell the story. That means you have to be a neutral observer. You're not there to sensationalize what they talk about. You're not there to endorse what they talk about. You're there to listen and be the person who takes down what they say, and then to verify it, and then to be able to talk about it further.
- 1.28** I ended up in a place called the Hotel Tirol, down in the rainforest of southern Paraguay. It's legendary as a hideout for Nazis who were on the run for a period of time. And when I was leaving Asunción, about to come back to see Trisha finally, I'm at the Asunción Airport. Von Eckstein asked me up to the roof of what was their four-story main building at the terminal; and there was a moment at which I thought he was going to throw me off the roof, but he didn't. So it passed quite—I did have somebody take a picture, just in case I had that last moment at which it all turned sour.
- 1.29** Discovering the Nazi underground. So one of the things that was big when I was down there, people would talk in the neo-Nazi circles about this fellow called Hans Rudel. Hans Rudel was Hitler's most decorated pilot in the war. He won many battles, and he lost a leg flying. He wasn't wanted for war crimes because he had fought as a pilot. He

hadn't been involved in any of the death camps or anything else. But as a result of that, he was a real strong Nazi. He helped other Nazis escape, and he was honored in South American Nazi community.

- 1.30** And as I'm going through the files to find materials on Mengele and what might be, I come across this picture. Now, the fellow in the middle is just a boat driver, but you'll see there on the right, there's Rudel with—they're waterskiing. It's hard to tell, but on his leg, on his right leg, it looks like there's a black—that's the prosthetic. He's missing his limb there; that's his fake leg.
- 1.31** The fellow on the left with a bathing cap on, that's Alejandro von Eckstein. That's von Eckstein, who I was traveling around with in Paraguay, who's telling me, "By the way, I didn't know anything about Mengele's past. I would never hang out with Nazis. I didn't know any of this." And then I find a picture that he's jet-skiing with Hans Rudel, Hitler's most decorated pilot. So, it starts to put a lie to it, so you learn that over time.
- 1.32** What did I find in the Argentine files? Yes, believe it or not, a Miss Nazi contest in 1968. So we have crazy things that happen today. We all know about it. We hear TikTok, we hear—I live in Miami, and there were a group of influencers recently that went to a nightclub and joined in singing a song, "Heil Hitler," that is currently out. So we have some unusual and crazy things that happen in the online world. I understand that. But back then, it wasn't digital, but it was just as crazy in an odd way, and that is in South America.
- 1.33** Eventually, if you're doing work that is making good progress on getting information, you can sometimes, if you're fortunate, become part of the story. You're not looking—I'm not doing this work, I'm not looking to find out the story of Mengele so that I can become part of the story. But eventually, other reporters will hear about the work that you're doing, and they'll know they have to come to you sometimes to get that information.
- 1.34** And so here, for instance, when The New York Times would run its article that there was now a bounty on Mengele's head of \$2.3 million, it would say, "According to previous accounts of Mengele, seen in '83 in Chile and in Brazil. Other reports placed him in Paraguay in '82. According to Gerald Posner, a New York lawyer who is writing a book on Dr. Mengele, the Nazi doctor narrowly escaped capture in the 1960s by Israeli agents in the area." That's because that was in the files; it wasn't yet available to other reporters, so they can't report it unless they come to you. And then they mention it, and it puts you into the story in a different way.
- 1.35** The same thing happens time and time again on this. So the Times will run stories, "Three nations join in the hunt for Mengele," and you'll see these instances in which they talk about here what he was doing, what he was getting, and how von Eckstein, for instance, "Posner, who interviewed Colonel von Eckstein recently in Paraguay, said the official defended his action as proper because he had known Dr. Mengele for five

years." This is, once you insert yourself as somebody with knowledge, a bit of knowledge that regular reporters may not have, you're establishing yourself already as a source that other people will then come to.

- 1.36** Then I learned a great lesson. So, think about this. First time I'm writing a book, I'm thinking, "Oh, this is going well," because I'm gathering the information. Now, remember, I haven't started to write the book yet. That will be torture on its own. I'll learn the lesson then.
- 1.37** As a lawyer, I used to go to people and say, "What do you do for a living?" People would say, in New York, I used to live in New York, "I'm an attorney." They liked attorneys, they didn't like attorneys, it didn't matter. There was some respect for the fact that they knew you at least had gone to law school. You'd taken the time to get a law degree and that.
- 1.38** Then afterwards, long after this, when I left law and was writing books, somebody would say, "What do you do for a living?" I'd say, "I'm a writer." And they'd say, "You're so lucky. I want to be a writer. I just don't have the time." As if the only thing that keeps you from doing this is that you don't have enough time. There's no respect for the profession. They think, "Oh, it's just a matter of sitting down, and I write it up." Everyone's written a letter, long email, or they have an idea, and I get it. And some people have fantastic ideas for books. I was one of those who thought, "Writing a book, how tough can it be?" So I learned the lesson, and I've learned that lesson time and time again. I'll forever be punished by it.
- 1.39** But there's something on the first book that happened that didn't happen on other books, when I say, when the story breaks your book. In June of '85, the book that I thought existed, and I had been doing the legal research on since 1981, went down to South America on the extended trips in late '84; I had an idea of where Mengele was, and I thought that he was most likely hiding now in Paraguay or Brazil and was still alive —this is in 1985—that book ceased to exist.
- 1.40** And what I mean by that, the core premise collapsed, new questions emerged, but the project has to survive. And why? Because at 4 AM, Trisha gets a telephone call, and it's a reporter from Germany saying, "By the way, does Mr. Posner have any comment on a set of bones that have been found in Brazil that they think might belong to Josef Mengele?" And she's telling that to me, by the way, and I said, "Trish, forget about it." I said, "They've found Mengele's bones 10 times in the past. He's always trying to let people off the track. It's got to be a fake story."
- 1.41** It turns out, not a fake story. I wish I could tell you I knew from the start that that was really it, but I didn't. I dismissed it at first. I went down to Brazil immediately and started the process of—by the way, how many people have watched SVU crime dramas, forensics, whatever else? Here you have an instance in which one of the most wanted war criminals from World War II is found. You're going to have forensics

experts and pathologists coming down from Israel and the United States, and from Germany. So you would think that you handle all the remains with gloves and the best possible procedures. But you can tell here, no, they're holding the skull as they take it out of the grave. They're passing it around at different times. I was in some of those rooms, but they were still able to do it.

- 1.42 The long and short of it is, they were able to confirm because he had some unusual things on his body: he had a case of osteomyelitis, a bone disease, when he was younger. The SS, the German Special Forces, they make you fill in a long form in history; they went back four generations. So those records matched his medical records. They eventually found his dental records. He had been treated by a Japanese dentist when he was there and matched earlier things.
- 1.43 Everybody agreed that this was Mengele, something very hard to do when it's hard for the survivors, the people who—they never came to the belief that it was him, because—and I understood this, finally—if you're 7, 8, 9, 10 years old and you're held by somebody who has total power over you, that person has godlike power over you in an evil way, and I say to you, "Oh, by the way, he got away with it," what are the odds that it's him? And I say, "It's one in a million that it couldn't be him." They say, "Then I believe it's not him, because I know he's capable of anything." So the survivors often believed he was still alive.
- 1.44 We did an inquest on the truth on Mengele. The woman in the middle there is an amazing survivor herself, Eva Kor. She passed away a couple of years ago. She started a Holocaust museum. She was one of the twin survivors. The person next to Eva, on her right, is David Marwell, who led the US government's search for Mengele. This is forensic journalism. Science is needed at this point to bring it into the book, to establish for the book what was happening to people.
- 1.45 Something interesting happens at this stage: in Munich, the son of Mengele, who was a lawyer, the only child, the one that I said who met his father, didn't have any memory of his father when his father left after the war, he was born in 1944, met him once when he was 12 years old, and his father came to Switzerland for a skiing vacation, but met him as Uncle Fritz, because the family said to him, "By the way, that's your uncle. Your real father died a hero on the Eastern Front in Russia."
- 1.46 Then his father is indicted in '59, and his family sits him down and says, "Oh, by the way, you know we told you your father died? He didn't die. And you know that guy you met who was Uncle Fritz? That's really your father. And he is wanted for these war crimes, but he really didn't do any of that." So as a 16-year-old, he learns that. And then he goes through a period in which he doesn't meet his father, but they write letters back and forth.
- 1.47 And his father, the fugitive, marries his brother's widow. His brother passes away. She goes down to South America, he marries her, and she has a son around the same age as

Rolf, Mengele's son. And the fugitive, Josef Mengele, keeps writing to his real son in Germany, saying, "By the way, your cousin, Karl-Heinz, is a fantastic guy. Why are you such a loser? Why don't you do better at school? Why don't you do something with your life?" So this amazing torturous relationship, but Rolf keeps quiet that his father's alive.

- 1.48 Now he shows up in Munich, after the bones are found, and he says, "I have all these diaries, all these papers my father wrote over the years, personal papers and everything else." And he gives them to a magazine, Bunte, no sale involved, because he's feeling guilty about his father. If you have additional circulation from the publication of these diaries, then give it to a group of survivors.
- 1.49 Bunte, the magazine, sort of like a People magazine in Germany, they are afraid the papers are fake, because some of you might remember, years earlier, somebody had popped up and said, "I have Hitler's diaries." And Stern magazine, which is like Time magazine, bought them for big money, published them, and they were fake. You talk about bad journalism, that's bad journalism. So afterwards, everybody said, "If any Nazi shows up, or any family of Nazis, and says, 'We've got the real papers on them,' let's be triple-sure that they are correct."
- 1.50 And so what happens is, they started a process on these. Times would write about it. "Mengele writings depict a grouchy and embittered old man." They would be writing about it at the time. They brought in the German FBI, the American FBI. They took pieces of the paper. They tested to see when a document said it was 1962 or 1968; was it paper that existed then? Was the ink on the paper that old? Is it Mengele's handwriting? They went through a process of verifying it, and they brought in a group of historians to cross-examine Rolf Mengele, the son, about how he got the papers and his relationship with his father.
- 1.51 And they brought me in. I was down in Brazil, going over the bones. They flew me in; I was the only non-professor of the group. I sat across a table and literally then for two weeks was able to ask the son questions I could never have had before for access. If I had gone to Rolf Mengele as a journalist doing a book about his father, and there were a lot of people trying to get him, from Barbara Walters and all the names in the past who wanted to sit down with him and talk, his general answer was, "No, I don't want to do it." But I had access to him as one of the historians brought in by the magazine to see if his father's papers were real.
- 1.52 When that process was finished, I said to him, "Will you allow me to use these papers that I've reviewed here, again for no charge, in the book that I'm doing about your father?" And he thought about it for a while, and he said yes, and he agreed to it. And so, The New York Times runs in the paper, "Mengele papers given for new book." That is how I said to you earlier, there's a bit of—luck is the wrong word; you make your own luck in some ways, but you do have to be there. You do have to be doing it all the time. So this is the good fortune of how things broke at that time.

- 1.53** Then there's a time, in which I go ahead. I'm interviewing him in Munich, and then I ask him for a time, "Will you go on American television with me, on a show called Phil Donahue?" I said, the advantage—now I'm in my sales mode; you're in your sales mode sometimes as a journalist doing a nonfiction book, because you're trying to convince people to cooperate with you. In this case, I knew how fascinating his story was. Even though he knew I was very critical of the fact that he would say, "It was my father, and I would never turn in my father."
- 1.54** So I would say to him, "Even if that's the case, if that's the decision you made, when your father died in 1979, why didn't you tell the world? Why didn't you then stop the people who were hunting for him, tell the people who suffered at his hands, the victims inside of Auschwitz? Those people had the false hope that he might still be brought to trial one day. Why didn't you say, 'By the way, he got away with it. Here are his bones. This is the end of it?'" He never had a good answer for that.
- 1.55** The answer, of course, was because he wanted them to protect the people who had helped his father. He didn't want them to get prosecuted by the Brazilians and the Argentinians and others. So the loyalty still was to those people, and that I was always very critical of. So he knew that if he went on to a program with me, I would criticize him for that. This wasn't an instance in which I was going to give him an easy pass. But my sales to him, my sales pitch was, "You have an hour of live television, so it's not edited. It's not a situation in which you sit down and then you later hear somebody say, 'They took all of my statements out of context. They took this quote from there and that quote from there.' You get to say it as you want."
- 1.56** And Phil Donahue, at the time, was the most serious hour on television. Yes, when we went to do that show, Trisha asked him, "So what's your most popular show?" And he said, "My most popular show so far to date has been the Chippendale dancers." So maybe that's where television was going on daytime, with Maury Povich and everybody else. Oprah was just coming out of this competition. This is back in 1986. But Rolf Mengele did agree to go on that show.
- 1.57** When you go to a show, like a talk show in New York or any place else, they'll give out tickets on the street often. They say, "We have tickets," or sometimes you apply for it in advance, whatever else. So people were coming to this show in June of '86, without knowing what the show's about. You never know until you get there. And maybe it could be the Chippendale dancers or that, and then they find out it's Mengele's son.
- 1.58** One of the most fascinating things, there's an 18-minute clip from this on YouTube. That link shows the debate that we had back and forth. But there are images of the audience, because the camera will swing out to the audience, and Phil Donahue reads from part of the book that I have, about the experiments that his father did, and they're jaw-dropping at this one moment. And you could see the audience. You've never seen the audience reaction. It's this horror, but at the same time, there's this human element from the son.

- 1.59 This really is, to me, the difference between journalism and performance. What I was doing in that program with him, for me, was journalism. I'm not thinking about it. We are too much—in this sense, I could be old school—people are concerned about the performance today. It has to be fast. It has to get a lot of clicks, and it has to get a lot of likes. This, to me, is just an unusual bit of journalism on display on an American talk show. I don't think it could happen today, because it just would be a different thing.
- 1.60 By the way, one thing as a sidelight that's always worth remembering, sometimes one project that you're working on, if you are working on a book, will put in the back of your mind an idea for another project down the road, and I do mean down the road. So, when Rolf Mengele came into New York to meet with me before the Donahue show, he wanted to meet with Trisha, because I talked about Trisha all the time. I talk about Trisha today. I was talking about Trisha back then.
- 1.61 Now, I was raised Catholic. I had a Jewish father, but he wasn't practicing. He was an altar boy and everything else. Trisha, born in England, was raised Jewish. And she knew, instinctively she understood, intellectually she understood, that you cannot blame the children for the crimes of parents, in any situation. It's different. But she still felt odd at meeting Mengele's son, who had helped his father stay free. And her mother was alive at that time in London, and she thought, "What would my mother think of this?" So we said, "Trish, it's going to be fine. You'll meet with him."
- 1.62 We picked a spot called Trader Vic's, which was at the Plaza Hotel in New York, and it was great because it's a Polynesian restaurant that was very expensive and tacky, and no one ever went there that you knew. So there was no chance we were going to go there and meet with Mengele's son, and somebody would know us. We would sit under some palm tree in the back. The reason that that's key is because, during that meeting, Mengele tells us, "After the war, my father went to Munich while he was seeking safe haven, and he went to the apartment of a pharmacist that he knew, and they helped him out for a couple of weeks, and they knew what he had done in Auschwitz, because that pharmacist was friends with the chief pharmacist at Auschwitz."
- 1.63 When we left that night, pre-Internet, can't Google it, nothing like it, Trisha said, "Auschwitz? This death camp had a pharmacist, pharmacy? Why? Why would they have? They were killing people. They weren't saving people." Well, of course, it makes sense once you think about it, because there are 7,000 guards and doctors and everything there. They're treating the Nazis who are serving. There's typhus and other epidemics taking place inside the camp. They're treating the Nazis to make sure that they don't get in and get sick. And it's also the place, we then found out, where the pharmacist who's assigned there gives out the gas— it's under his control—that's used in the chambers to kill people, the Zyklon B.
- 1.64 So Trisha said, "One day, I'd like to write about that." And she did write about it in 2017, so it takes a while sometimes to get a book published. She published that book,

by the way, worked on it for years, put together a story about that fellow that you see there, in that little part at the bottom, Victor Capesius, who turns out to be the German ordinary guy, not a big anti-Semite, nothing else, a Bayer representative inside of Romania who went around and knew people and then went to Auschwitz. Gets assigned. He's made the chief pharmacist. He becomes friends with Mengele.

- 1.65 When she went to find a publisher for that book, nobody wanted it. The other thing you'll have to learn about writing a nonfiction bestseller is that you may be the only person that believes in it for a long time. Everybody said to her, when she went to sell that book, even the agent that I had, who sells books, didn't want to represent her; nobody did. The publishers said, "Oh, forget about it." One publisher in New York said, "Holocaust isn't trending." I love that as an idea. OK, it's a little rough. She found a tiny little British publisher. It went in, it does nothing, put it out, no reviews, nothing.
- 1.66 That book is an example of something you cannot buy and you cannot make up in the publishing business for nonfiction—word of mouth. How do people buy most of their books? We have found this out over 40 years. Somebody else recommends it who you trust. A friend says, "By the way, I read a great book. This book, you've got to read it." It's not from an ad. Sometimes you listen to the author on a show, you say, "Oh, that sounds interesting. I'll buy it." But a lot of the times, it's really somebody that you know and you like, and they say, "You've got to read this book. It's great."
- 1.67 And that's what happened with that book. Published, no reviews, nobody knew about it, nothing. A year after it was published, it went on to The Wall Street Journal bestseller list and went on the USA Today bestseller list. It was sold to 17 countries for foreign language adoption, the book that they said nobody wants and isn't trending; that's when you have to believe in yourself. But it came back to a meeting in 1985 at Trader Vic's. So sometimes put in the back of your mind the stories that could be good. One story does lead to another.
- 1.68 Now, the cooperation with Rolf Mengele is a replicable journalistic skill. What I mean by that is, after exposure, you get to meet him, he builds up a level of trust. He doesn't think I'm going to tell his story, and I tell you, this is absolutely critical.
- 1.69 I say this all the time. We did books on Ross Perot. When we were talking to Ross Perot, who ran for President, the unusual Texan billionaire, when he agreed to cooperate with us—and he didn't like the book when it came out—I said to him from the start the same thing I say to everybody: "If you want a book or an account of what you're going to tell me that you like, you have to write it. I'm going to write the most honest account I can. I'm going to listen to what you say. I'm going to talk to people who like you and don't like you. I'm going to come back to you and tell you the final account of what I'm writing before I write it. But in the end, it's my byline on it. So, I have to have the right to be able to say that."

- 1.70** I'm writing a story often that's warts and all, but they have to trust that you're going to be honest about what you said. You're not doing a hit job. The same way that you're not doing a job that's going to be a puff piece and that they may therefore want to put on their wall and like, you aren't doing a hit job; you're giving them an honest piece of journalism. The family is witnesses. There's an ethical restraint. I'm telling them all the time, "I'm not telling your story." And what do I end up finding out by this? Just in a quick overview. What do we see in this?
- 1.71** This guy, Mengele, when you get into the family, you find out, you know what? We hear about somebody who's become a serial killer, somebody who's gone on a rampage in school. And then we often hear about a terrible childhood, how they were treated terribly. They were locked into a box. They were beaten by their father. That doesn't excuse what they ended up doing later, but it's often used as a basis for saying they got a bad start in life.
- 1.72** Not this case. He got a good start in life. He had an elitist start in life. He had all the opportunities. He came from a small town in Germany in which his family, his grandfather, had started a farm machinery company. And you could see the tractors around the town. I have pictures of them still from when you go there, with the name "Mengele" embossed in metal across the front. It's an unusual thing to see. It would be like having a "Hitler" car, and the "Hitler" car still sort of emblazoned there, because the name went on for some infamy.
- 1.73** They employed most of the town's residents. He wanted to be a doctor from an early time. When he gets married to his first wife, as you can see, it's a very luxurious event, and it goes. He is only 32 turning 33 when he goes over to Auschwitz, when he's assigned there. And for him, there were doctors—the person that Trisha ended up writing about, they didn't like going to Auschwitz. They thought it was a bad assignment. No extra pay, got the same pay, whether you were there or you were sitting in Germany as a troop.
- 1.74** You were involved in the death machinery, and not everybody was relishing, not everybody was a sadist like that, but they performed their functions. They did their work. There were sicknesses. You're out in the wilds of Poland. All of that, he liked it, because he viewed it as a specimen lab, and he thought that he was at the forefront of science, German racial purity science, where you could say that there was a master race, an Aryan race, and that others were not the master race and were impure.
- 1.75** He was going to unlock the secret to twin births. So nobody quite knows, and all the science and knowledge we have nowadays, doctors still don't know why, for some women, the egg splits, why you have two children or three, triplets sometimes, versus one. Mengele thought that if he could unlock that, every good German mother after the war could have two children on every birth instead of one and replenish the war dead. Boy, you talk about a mad scientist, that's really it.

- 1.76 And here he is at Auschwitz; he's in the middle. These are with other German doctors. And these doctors, really, inside the laboratory when he's doing his work, it looks normal. You look at this, you think of Auschwitz is a place of death. It's a place of—they're pulling the gold out of teeth of corpses, so that they can melt them into bars. What happens there is unbelievable. But you look at these men, and you think that everything is normal. That's at a place where they would take a break down the river from where the camp is, surrounded by other doctors, by the way, Richard Baer and Josef Kramer and others, who were some of the worst of the doctors there.
- 1.77 Mengele with his arms crossed over, the second from the left. And all of these doctors, later for war crimes. Mengele is the one who got away. This is where he made his infamy. What I mean by that is the camp, over a million and a half end up dying. Think of the trains that are arriving packed with people, who have gone through this route in which they've been sent essentially to—they don't know it's a death camp at the time. And when they get off, they often arrive at night. When they would arrive at night, there would be German shepherds and dogs barking. There would be bright lights. There would be soldiers with guns pushing them into lines of women and men and children.
- 1.78 And then at the front, you would have a German doctor. Trisha's pharmacist, he ended up doing some of the selections. All the doctors did the selections, because they were looking for specimens often. They would say "to the right" or "to the left," right or to the left; right, life, left, death, most to the left. Elderly, left, death. Children, most of the time, only a few went into the work camp, where you essentially stayed until you then later were exterminated. You worked for a while.
- 1.79 You went over to Farben, which was one of the biggest companies just down the road, Monowitz, which was running a factory. Remember, the Nazis, death and money. So, they made slave labor camps as well. They weren't killing you right away. They were working you to death at these places like Monowitz rubber factories and that for the war effort, where essentially you worked until the point where they then exterminated you.
- 1.80 Mengele was the only doctor at the camp that ended up volunteering for more time to do the selections. Most of the doctors didn't like it, because they knew that it was the most inhuman part of the process, sending people, playing this God role. But Mengele knew that it was the way that he would get the specimens that he wanted, so he was there all the time at the ramp. And so many survivors remember this young doctor, with a cap that he would wear, a soft cap, sort of turned to one side a little bit, whistling an aria from an opera, and then with his stick, sending them one way or the other. And that was this introduction to them.
- 1.81 What happens in the postwar is very interesting. The fellow doctors—you know we showed before that picture of some of the doctors around him? There's a big trial at Nuremberg for war crimes. Fantastic for people like me doing history, because you can

look at the trials. But there's another trial that takes place in Poland, really most of it, and some under the British, called the doctors' trials, in which they take the doctors who were at the camps, who had perverted the very cause of—think of the Hippocratic oath, "Do less harm, do no harm." And now you've turned being a doctor into being an instrument of death.

1.82 These doctor trials took place, and Mengele initially hadn't fled to South America. He stayed in Germany, so he knew it wasn't a good thing what he had done. He didn't stay with his family. They were over in Günzburg. So he went to a little town in Rosenheim, and he had a different name, and he worked as a farmhand. And when the American authorities showed up at his wife's house in Günzburg and said, "Hey, we're looking for your husband," she said, "Oh, he's dead. I got notice from other troops. He's dead." And they marked down that he was dead.

1.83 Meanwhile, what happened is, there were these displaced persons camps. And I did something that you might do if you're doing a nonfiction book. I did a Freedom of Information request. You've heard about them before. It's great. People complain about—I complain all the time about the government not releasing files. I wrote in 1998 a New York Times op-ed, "It's time to release the files on Martin Luther King." I'm still waiting for some of those to come out. I've been arguing for 30 years for the Kennedy files to come out. I'm still waiting for some of those files to come out.

1.84 But my point is, the government is slow, but it does provide us information and documents at times that other governments that have autocratic regimes don't even think of releasing documents, like in Argentina. So when I applied for the files to the US Army about Josef Mengele—this is how you, again, do nonfiction and you expand the book that you're writing—they sent me files that showed he had been arrested twice by American forces. He got turned in the first time, gave a fake name. They didn't know it; they let him out. The second time, he gave his real name, and they didn't know that he was on the wanted list, and they let him out.

1.85 Now, it wasn't as though—nobody got paid. It wasn't any corruption. It was that, after the war, there were 2 million displaced people going through. It's how it happened. But it made the story even more frustrating, to think that this man, who we now think of as one of the most wanted war criminals of all time, who gets away with it by dying in 1979 [of] a stroke off of a beach in Brazil, was in custody twice, and we let him go. But that's the nature of it. Excuse me.

1.86 One of the things I've learned is, the great thing about nonfiction is, you uncover the facts, you can tell the story. The frustrating thing about nonfiction is, there's a part of us in the back that would like to be a novelist. We want to write a better ending. Sure. So there are a lot of better endings in this than what could have been. And these are his release papers. That's his fake passport to get into Argentina that he uses, and his family buys him that. And then he goes to Argentina. I was talking about it before. A

guy who had done this in a camp shouldn't be hanging out in a nice villa in Argentina with a pet dog, but he did.

- 1.87** What tells a story the best? If you're dealing with a lot of facts and a lot of details, I believe, you tell it about people. And telling it about Mengele—the biography is about him. One chapter is about the camp. Twenty chapters in that book, 19 are about how he got away. So I wanted, I had to tell what he did in the camp, but I did not want it a story about the Holocaust and what happened. I wanted it about his life on the run, because that was the story that was new. That's what was different.
- 1.88** The great human story is, two men brought him to justice. Hermann Langbein, he was a clerk in the chief doctor's office. Not Jewish, a survivor, sent to the camp as a communist. He survives the camp, and after the war, it's Langbein who goes around and says, "I know all these bastard doctors, because they all worked through the chief doctor's office, and I'd like to find out where they all are." He goes from country to country to try to do it.
- 1.89** And Fritz Bauer served time in a concentration camp himself during the war. He becomes the first postwar Jewish judge in Germany, and he makes it his mission. When I said to you before, in 1959 they finally indicted Mengele, 14 years after the end of the war—it's a disgrace it took them 14 years—if it wasn't for these two guys, it would have been another 10 or 15. So they're responsible for bringing him to some semblance of justice.
- 1.90** And meanwhile, what do I discover? What's the story about how he gets away? So he's indicted in '59. They issue a new warrant for him, and guess what? They have this picture of him that they believe is taken in Paraguay, and that picture gets printed in a South American newspaper, gets picked up in the New York and Western European press, and that's the picture they use all the time. And there's only a small problem. It's not him. So, the picture that we're looking for, this turns out to be a poor guy who they later find out years ago was getting on a boat in Paraguay, and they find out who he is. It's not Mengele, but everyone's looking for the wrong guy.
- 1.91** And then there's something else that happens. What I call Gregory Peck, any of you, you know films, Boys from Brazil or the Marathon Man, there were films about—Boys from Brazil was actually a film in which Gregory Peck plays Mengele. And he is in a white suit, trying to create a group of cloned Hitlers, and he's surrounded by killer dogs and armed guards and driving in a big chauffeured, armored Mercedes limousine in the middle of the jungle. And that is what people thought Mengele was doing. So they were looking for the guy who was continuing his experiments, surrounded by Nazi guards in the middle of a jungle compound.
- 1.92** You know how Mengele got away? He didn't do any of that. He went over to Brazil. He went into the poorest areas, in the barrios. He was having a relationship with a Brazilian woman who was also a housecleaner. He hated it. He wrote back to his family

all the time that he thought living in the mixed-race world of Brazil was terrible. But he was there and he was safe and he was free. And as a result, he went low-key. He wasn't doing any of what Hollywood thought. So, Hollywood had created an image that the Nazi war criminals were these big guys you had to look for at the big locations, and that helped him stay free.

1.93 That show on Donahue made big news. That's The New York Times talking about it. The fact that what he said, how he appeared, what he said about it, and then the points at which he escapes, that type of material, it isn't—I've learned a long time ago, I learned actually through this book, people are interested. There's something else that happens in nonfiction. If your story that you're working on becomes newsworthy, so now newspapers are quoting me before Mengele's bones are found about where he might be, because I'm doing all these interviews.

1.94 Then afterwards, I have access to the diaries and his letters. They're quoting me again. Then they're doing stories because I'm on this. There's a certain point at which potential book buyers will say, "I don't have to read the book. I've read it all. I've been following it in the newspapers and that. That's great. Why should I spend \$25 to read another 390 pages? You just gave me all the highlights here in The New York Times." But that is part of the process of doing nonfiction. You hope your story becomes newsworthy.

1.95 And if it does, I've never, and I say this to you as straight as possible—Trisha is probably the only one that knows this is absolutely the truth—I've never signed up or done a book project because I think it's going to be a bestseller. I've never picked a subject and said, "Oh, that'll sell," because I'm bad at doing that. And publishers are bad at doing that. If publishers knew every book that was going to be a bestseller, they'd only sign bestsellers. So they sign books all the time that they think are going to be bestsellers, and they aren't. And then they say no to books all the time, like Trisha's book, that do become bestsellers, and they're not quite clear.

1.96 So they don't know. We, as writers, we don't know. We always think the book we're working on is the greatest book ever, and that everyone's going to read it, and we're only crushed when they don't. So you have to do a project on which you're passionate, on which you feel something. If you feel that, and you do it, and you're in the zone, and you're totally immersed in it, and you're totally immersed in this project and each other project, people say to me, "So what's your favorite book?" I kid you not, I have some that I like more than others. But my favorite book at the moment is the one I'm working on, because that's the one that has to be caught. I'm in that whole world of it; and that, I think, has become the new greatest subject.

1.97 Then the only time you worry about sales is when you publish, because now you realize, if you don't sell any books, it'll be harder to find a publisher again. You want to make money for the publisher as well. You don't want to just pay your bills and your mortgage, but you want to be able to make sure that the publisher says, "You know

what? That author may not sell books like J. K. Rowling and Harry Potter, but they sell enough books that we can go back and give them another chance." So that's important. But that's the only time you actually think about that.

- 1.98** What does Mengele teach us as journalists, this book, I think? So, easy one: choose challenging subjects. Nazi war criminals on the run may be over-challenging, but that's all right. It turned out to be good. Challenging subjects are always good. At least for me, they motivate me.
- 1.99** On many of the projects that I end up doing, and especially on this one, expect people to sometimes deceive you. They will lie to you; they'll try to present what they want you to know. But I do think that if you do enough in terms of interviews, you start to know your subject, you'll pick up contradictions between what people say; and when you pick up those contradictions, there's a power in that. They accumulate a sense of what you know.
- 1.100** Expect your project to change. It does change. You just have to adapt relentlessly—and no better example than that when Mengele's bones are found.
- 1.101** Earn trust. Don't demand it. You can't go in and say, "By the way, I'm the lawyer who's representing twins who are suing the Mengele family. I should be able to have access to these files." Nobody listens to that. What opens doors is your own credibility, your own seriousness about the project.
- 1.102** And when I say, "Let evidence outrun myth," what I mean by that, the goal isn't closure. I was ready to publish a book, thinking that he was still alive and not being able to give you the answer of where he was. That wasn't going to be closure for anyone, but it was going to be the record for where you were at that time. Journalism, in an odd sense, and maybe this is my lawyer's background, provides a level of accountability when courts cannot.
- 1.103** This book taught me that persistence matters less sometimes than adaptability. It was that changing process all the time and sticking with it, to eventually tell a story that I thought was important, that put this book together. The reception for it was great, and it did become a bestseller. But that was one of those things that was our introduction, as I say, for Trisha and me, into the world of nonfiction writing. I hope that some of that is of some use for you today. Thank you very much. Questions?
- 1.104** I was wondering if anybody approached you to do a documentary or a movie of your book.
- 1.105** The question was: Did anybody approach me to do a documentary? I've done a number of documentaries over time, normally just as providing information and talking head on the documentary. There have been a few done, a number of studios, movies, the old days, pre-Netflix, pre-YouTube and that, had expressed interest in the story, but they never did anything because it's not a good ending. The ending they wanted was for him

to be found, to be brought to justice, whatever justice meant—a trial, to have Eva Kor, the survivor, and Marc Berkowitz, the survivor, in their then-70s, standing in a court and confronting the monster who had tried to take away their life. That's the ending that Hollywood wanted. So without that, it was tough. Thank you very much.

Lecture 2: Reporting Systems

At a glance — Reporting systems and methods.

- 2.1 Hi. Good to see you all again. How many of you are actually thinking of writing or have a nonfiction book? Two? Okay. That's pretty good, 50%, that's great. Hopefully, you'll be able to say at the end, "I've picked up some good things."
- 2.2 Paper. I remember, in the mid '90s, maybe, there was all this talk about the fact that we were going to have a paperless office. It was fantastic. Between scanning and digitizing and everything else, I thought that would be great, because we end up with boxes of material, of papers that we find, and file drawers and everything else.
- 2.3 And then, I send it all up to Boston University, where they accepted my archives. So all the archives for all my books are at this place called the Howard Gotlieb Archival Center. Otherwise, there'd be more than our apartment. The paperless office is one of those things I used to believe in, but I don't anymore, at least not for me. I'm old school. I like paper. I get documents. I mark them up. They still have red marks on them and yellow highlighters sometimes. That's the way that my brain works.
- 2.4 It certainly worked this way on Mengele, and it works this way on the second book that I want to talk to you about, Warlords of Crime. Warlords of Crime followed Mengele. Remember, before, we were talking about how one story could lead to another story, how the story of sitting down with Mengele's son put in Trisha's mind the idea of The Pharmacist of Auschwitz? So, when I went down to Paraguay, I was showing you the people before that I was there with, the Paraguayan colonel who had co-sponsored Mengele's citizenship, he said, "I'm going to introduce you to some people who might be able to help you."
- 2.5 It's always this thing. They have a beer with you, then they like you, and then they introduce you to somebody else, and then they—and these people turned out to be Corsicans who had come to Paraguay after a very famous case that was made into a movie called The French Connection, about heroin dealers out of Europe. These Corsicans had been wanted, as part of that heroin gang, and they went to Alfredo Stroessner's Paraguay, the dictator of Paraguay, for safe haven. Whether money was paid or whatever else, that's where they were spending their days.
- 2.6 I met them, as a guy who was looking for this notorious war criminal, and they wouldn't talk to me about Nazis, because that's what happens. They, for whatever reason, didn't give me that information, but they would regale me with stories about the heroin trade. And I came back to New York, and I said to Trisha, "Trisha, I've been sitting around these fireside chats with these Corsicans, who say the heroin business used to be an honorable business. It was decent, that you could, by word of mouth, come to a deal. And it's all gone to hell because it's been taken over by Chinese triads."

- 2.7** That's what they complained about the entire time that I was in Paraguay. "The business is no longer the business that we had built up because it's been taken over by Southeast Asia." I said to Trisha, "If we find a publisher willing to do that, do you want to do that book?" And again, she said yes, so that was the start of a project. Now, think about this—completely different than the first book. Because the first book, you're creating a book around a person. Although you're telling different stories, you have a biography. So that person becomes the through line, your narrative spine.
- 2.8** Now, you're telling a book about—you know, the Corsicans in Paraguay give it to us. Here's the challenge. It's a global system that's doing enormous harm, and very little news coverage. You go back to '87, '88, there's talk about the heroin business, but nothing about the Southeast Asian end of the business and the Chinese triads. And here's what this becomes. You're reporting on a system, not a scandal, so it's not one particular event. You say, "This is Watergate. This is what I'm telling you about." You're reporting instead about this system.
- 2.9** It's not a single villain. There's no Josef Mengele. It's not one person I point to, say, "This is the godfather of all godfathers, and it all comes back to them, the way they're operating it." No single crime scene. So you're not creating it from that, because it's dispersed. No clean ending. Remember that part before, about no clean ending? I'm not going to finish a book—I know this when I'm starting it— that says, "By the way, everything's great now, and the heroin trade is finished, and that's the end of it."
- 2.10** I knew that this was about a criminal system and how it existed. And the first two years of research on this project, almost a year and a half, really turns out to be the back-breaking part. So, what we're doing at that point is accumulating information in 19 countries on five different continents. We received an advance from McGraw-Hill for that book of \$40,000, a lot of money back then for a book, 1987, 1988. The agent then took 10%, now they take 15%, so 10% went away. The publisher pays you only half upfront until you finish the book. So, we ended up with \$18,000, which we spent and more doing the research.
- 2.11** That's the nature of being on fire about the project that you're doing, and then worrying later about how you're actually going to pay your mortgage. But that money was the seed money that allowed us to do it. We went out. I did 200 hours of conversations. I got documents for the first time that were declassified in the Netherlands, where they have a problem with the drugs that were coming in, in Amsterdam, in Rotterdam, and others.
- 2.12** I met with the police there. I met with people on the police and enforcement side, in DEA and police. I went and talked to victims and users, who were part of the victims of what had been the heroin trade. And then I also sought out the criminals, those involved at different ends and trying to do it. So, you're trying to piece together three different parts here. And if you're writing this story, you have to write a story that

makes sense and tells something that readers can follow without overwhelming them. So there were four different things that I ended up using on this.

- 2.13** I opened the nonfiction—I opened this book as a thriller of sorts. It opens, in a sense, with the—I'm walking up Ladder Street in Hong Kong, which is what it sounds like. It's this little old 19th-century street with steps that goes up the middle of the street. I'm walking with a fellow called Benny, who used to be a gang member. I met him through the Hong Kong police. He's also a Hong Kong police informant at this time. He had kept all of his old friends. He knew everybody in the gangland business. He was my guide into the nightclubs and the discos— Trisha was with me at this time—into places I would never have otherwise gone. And you're watching this through him, but you're also seeing the world that he comes from.
- 2.14** Now, you're never going to—I knew this from the start—I'm never going to get into the top echelons. I'm never going to talk to the triad bosses. The people on the lower end of the scene, the Bennys of the world, they don't even know often. They think they know who the top is, but you're never going to get to talk to them. You're going to get to understand the trade a little bit from their end of the business. It opens with that scene on Ladder Street. He takes me into an opium den in Hong Kong.
- 2.15** And that scene that I paint then for the reader, painted for me, there's a point at which, as the reporter, you realize that you're in a place in which it's a different world, and they're letting you know it's a different world. That particular scene in which mostly elderly men using opium, the heavy stench of that, being run by the kids at the door, that's contrasted later in the book, much later in terms of the reporting, when I'm taken in to a shooting gallery on the Lower East Side of New York, into a heroin gallery, by JJ, who is a shoeshine guy, who himself was an addict for 12 years, and takes me into that world, and I contrast the two.
- 2.16** There's another point in the book in which I end up going into a spot called the Chicken Coop, which literally had been a chicken coop, and is a place in which it's human trafficking, prostitution, often young girls, being run by the same triads who are running the heroin business. When they take you there, it is to let you know, "You are in our world now. The world that you know in New York or America or wherever you think you come from, it's not here anymore. This is our world." And you realize it's a completely different set of rules.
- 2.17** They stopped, as a matter of fact—something comes back. You think about things sometimes different. Entering the Chicken Coop, and it was so vivid and had such an impact on me, and I try to portray that in the book to people, the horror of that, in writing about it, they stopped the two guys taking me there, and they lit a bit of incense in front of a little statue of a Buddha. I thought, and I asked them, "Well, so you're Buddhist, and how do you justify that?"

- 2.18** And they said, without missing a beat—boy, denial is a fantastic element; it allows people to live—they said, "Oh, that's their karma. All those women in that, in there, those girls, that's their karma. They did something bad in another life, to be in there. They're lucky they have us to take care of them, because we don't beat them and abuse them like some other people would. They're lucky that they have us to take care of them."
- 2.19** I thought, wow, that's how somebody ends up carrying out mass murder, or becoming a heroin trafficker and not caring about it along the way. Those stories, walking you through that, those voices, police intelligence officers, the tapes, the addicts, that's the voices element of it. The second part are documents. The declassified documents, they tell you the story behind the scenes, the court records. They let me follow the money. They let me build up a case of where it might be. That's important.
- 2.20** But there's a third element on this particular book that was indispensable, wasn't always on other, and that's geography. We had to go there. And if you don't go to the geography, you cannot replicate for readers what's taking place unless you're really there. So, the ground zero, I'm pulling back the curtain on this, the Golden Triangle. This is where the heroin was coming from at the time. It's this nexus area. There are some areas that are perfect, the right altitude and everything else, for growing opium. They're the biggest opium-producing regions in the world. Golden Triangle is one of them.
- 2.21** This had the unusual benefit of just south of China. So 1949, when Mao Zedong has the revolution and leads the revolution, two Chinese armies, the third and fifth nationalist armies, fighting him, they retreated from the communist revolution. They went south, and they ended up in the Golden Triangle. And they tried to reinvade China for a couple of years. CIA gave them millions of dollars. And after a while, these armies said, "The hell with taking China back, Mao is not going to give it up." And they went into opium production. So the actual army was originally doing the opium production before we get into Vietnam.
- 2.22** The Chinese triad end is that the triads, which are criminal organizations based in Hong Kong, decide that they'll be the distribution point. They're going to process the opium that is up here. And you go up there in the spring, let me tell you something. Trisha and I were months in Southeast Asia, wandering around. You go up to the Golden Triangle in the spring, and it's one of the prettiest sites you'll see. It's just hundreds of acres of poppy fields, these beautiful flowers. And of course, what's the result of what comes out of a poppy? It's this sticky, oozing latex that's about 10% morphine, if you take it.
- 2.23** So that is what's cut out. You'll see the Hill tribe people with little curved knives. They go around and they'll cut the poppies and then they take the actual latex out of it, the oozing part. That becomes the bulk that then gets often done in a jungle lab for heroin refining, which we'll talk about later. So you have tons of opium product, becomes

smaller tons of white powder, heroin. And then from the Golden Triangle to Bangkok, guess what? One road, two lanes. That's it.

- 2.24** So you want to bring it in, you're not flying it by air. You want to bring it to Bangkok, where it goes out by shipment to Hong Kong and to other places; you've got to be on that road. And I talked to DEA agents who were operating in Thailand—I'll talk to you about this later, when we went up to Burma—who said, "We know that, in the spring, at the end of the spring, those trucks coming down, there are a lot of them that are carrying heroin. We just can't stop them all. And sometimes we can't stop any of them, depending on the Thai government that's in place." So you'd think that if you know where the processing is taking place, it could stop it, but it's not the case.
- 2.25** And opium, by the way, not a new drug. One of the oldest Greek gods, Demeter, the opium poppy, gift of the gods. People knew for thousands of years, and it's written about in history and everything else, that it had a pain-alleviating quality, a dream-like state if you took enough. But they didn't know at that time what's addiction, and the death spirals that it would become.
- 2.26** One of the first things that happened to us, we were told, Trisha and me, when we went over to Hong Kong—by the way, this guy is the guy that you would have interviewed with. We were there in 1987. We're doing this work 10 years before Hong Kong is given back to China. It's still a British colony, which is great for Trisha being British, all these Chinese and British forces inside the police department.
- 2.27** And the first thing they tell us is that he was head of the gang task force—who died several years ago—he would have been the guy that you dealt with. He would have told you everything. He was the \$65-million man, because that's how much money he got from the triads before he fled the jurisdiction, together with three other sergeants; they're called the four great sergeants. He went to Canada, where they could never extradite him because there were problems in the extradition treaty between Hong Kong and Canada, even though Canada was also part of the Commonwealth. And Lui Lok was his name, made a fortune, one of the four great sergeants.
- 2.28** And the reason that he was given to us as our introduction is, they said, "Trust no one." I sort of had the feeling, "Including you?" "Trust no one," they said. "Assume that the police department is penetrated by the money that's available for drugs."
- 2.29** Here's a triad hierarchy. This is just an example of one, and there's nothing magical about this. Triads are just criminal organizations. So if you take the Mafia or whatever else, you take a Mexican cartel gang, or you take the Colombians when they're operating, they'll all have different operations. They'll have a head. They'll have different levels that are doing enforcement and finances. The problem was, they all have different histories.
- 2.30** So the Chinese triads have this long, several-hundred-year history, and traditionally, you were brought in as a member of a secret society, because you were fighting the

established dynasties that were oppressing the people. So the secret societies started out as good things to fight the oppression of the monarchs and the dynasties, and then they developed a criminal element. In the beginning, you had to be invited in. You had to go through a long ceremony. Sometimes you would be cut. There was this long process to it. And then that became part of the trappings for the criminal empire. They liked it. They thought it was cool to be invited into a triad, to have to go through the secret ceremony and all of this. And as a result, it overlapped.

- 2.31** But you're telling this story, and I prefer to tell it not by the organization, but again, about the structure. So how do I structure this to tell this in a nonfiction way? Instead of telling you about a triad operation and its particulars, I tell you instead, I'm going to take you along the route of how the triad operates. I'm going to take you up into the Golden Triangle, where the heroin is processed. I'm going to take you down to Bangkok, through those elements, all that crime, into Burma, and then out from Hong Kong, where the triads operate. And that's a big part of the story, eventually taking over to America.
- 2.32** So, scenes as narrative. This is what we were talking about before, about Ladder Street and about that. If you're talking to guides, enforcers, victims, from Hong Kong police to triads, that's great; you're getting part of the story. One of the things I know from the beginning here, and remember this in nonfiction, there are certain projects that are so large— and this was so large—you have to tell yourself from the start, you're not going to get the complete story.
- 2.33** You're not going to—your goal—it would be fantastic if you could become newsworthy again, as in Mengele, and break the story about somebody who was running an enormous real estate empire and also happened to be a drug kingpin. But that's not the goal. If it happens, it happens. What you're doing instead is trying to get as much information as possible, to give a glimpse inside this business, and it is a business in the end, that nobody else has done before.
- 2.34** And in some ways, I didn't know it at the time, because Hong Kong was still under British control, I had almost an advantage coming in as a non-Chinese reporter. A Chinese reporter would have been more pressured not to necessarily do things. Their family might have been more at risk. And I was underestimated to some extent by the gang members themselves, because I was some guy who came in from New York, who had a law degree and had written a book about a Nazi war criminal they had never heard about. What could be bad about talking to me? And I had my wife with me, so it had to be low-risk.
- 2.35** So we got access to some things. We often say to each other, we may not do that book today. We'd have less tolerance for the risk. At that point, the risk was part of what fed the interest in doing the book. There is a physical risk to it, a moral risk, a narrative redemption, would I say. So, what I was conscious of at every point, and I think you

have to be if you're ever in this situation, is, in writing a book that I'm hoping is eventually going to become a wide-seller, is, how do you calculate your own safety?

- 2.36** So if I'm in a shooting den on the Lower East Side, unlikely, but it's possible, there's a police raid. You're in the middle of it. It's possible that another gang, who doesn't like the fact that that shooting gallery happens to be there, is operating. Maybe the time that I'm taken so they can show me what the Chicken Coop looks like is a time that a rival gang decides that they're going to come in and do something else. So there's always that risk. You're more worried about another gang than you are about the police in that sense.
- 2.37** The thing is, what I was absolutely adamant about is that what's reported, and that's why it was so key in this book, has to become straightforward and hit the reader like a ton of bricks, because it can't be exploitive. So people, I think, do, in books often, they take something they have sensational and they juice it up. They make it even wilder. They don't make anything up about it, but they lead with that. It becomes a sensational story. It's like the tabloid story. So there was a way to write this book that would have been National Enquirer material, "oh my god" type of thing. And there was a way to write it, like I did, which is 400 pages of just history and disclosures and some scene-setting. I prefer the latter. And so, that's just how you see it. But I do think that those scenes take you into that world.
- 2.38** The Red Pole is a person who's an enforcer inside one of the triads. I met him through Benny at a Hong Kong nightclub. And the Red Pole was all about exhibiting and showing his power, the implications of what he could do, and most of all, which was fantastic, how he viewed himself as untouchable. He could talk to a Western journalist about running one of the largest 14K crime syndicates in Hong Kong without giving me details, not saying, "We bank in this bank, we launder our money over here, we do this," but about how they control that trade and how they have a lock on it, without being worried that, even if I published it, there would be a police raid on his home. The Red Pole was an eye-opener, and really was one of those things that you had to put down.
- 2.39** The town that dope built is a little town—well, I'll tell you, the Thai tourist agency will be upset that I said this, but this was in 1987. Chiang Rai was the town that dope built. It was a little town north of Chiang Mai. It was a town where people were building businesses and carving out new complexes and everything else because they had made money in this trade. Today, Chiang Rai is quite a tourist spot. It's fantastic. I think they even have a Four Seasons there with that, so it's changed completely. So, don't think that I'm saying that Chiang Rai today is a town that's running dope. It's a great tourist location, I understand. But I will assure you that almost 40 years ago, that was the town that dope had built, and I explained that in detail when we were out there.
- 2.40** In Hong Kong, one of the places that was the most fascinating, we had to apply for a police permit to get in. If you're going to make geography an element in this book at some point, I can't tell you what's going on there unless I've seen it. I know people do; I

understand that all the time. And there have been writers that have written books about places that they've never been to, and they've read so much about it, in such a lyrical way, that you believe that they've lived there, and that's fantastic. But for me, if you've picked up nothing else, you know from my work on the Nazi war criminal, I believe in authenticity. You've got to go there and try to do it, so this meant going there.

- 2.41** And there's a spot—that's Trisha, in front of the edge of what was the Walled City. Now, the Walled City is a spot you may never have heard about. We're there in '87. It was built in the 1800s. It was a Chinese military fort, originally. And then it became a spot where people were moving; they built the equivalent of projects on top of it. They demolished it in 1994, seven years after we were there. China would not take Hong Kong back unless the Walled City was first taken down.
- 2.42** We hear about—you'll read sometimes in the press about something called a no-go zone, some place that the police aren't, really. That was truly the equivalent of a no-go zone because it was its own city, in essence. It operated with 50,000 people on six and a half acres. Now, think about this. In Arizona, you see some place, a house will have half an acre of that. Six and a half acres with 50,000 people. And inside of there was the equivalent of an operating city. So they had dentists, not licensed dentists, but you could get dental work done. You could have doctors. It was an operating city, and they had their own alleys and ways of working.
- 2.43** I got a police escort to take me in, which meant I didn't see anything that was really terrible because the police were with me. They would not take Trisha in, much to her great disdain and anger. They thought, "It's a girl; you couldn't take a woman in the Walled City." Then one of the police on the escort was a woman, which was even worse. They didn't take her in, but did they take her in.
- 2.44** And I tried to interest 60 Minutes, at that time, 60 Minutes, the premier news outlet. I said, "This would be an amazing thing for you to be able to do. This is something nobody's ever seen. If you can get your cameras in there and record it for history,"—they could not. That was the center for what I call all the low-level heroin and dope dealing inside of Hong Kong, came out of the Walled City, because whatever they kept was safe once it was there. They could keep it until it was going out on a ship. The Walled City was the location.
- 2.45** And then what would happen is, Trisha and I would be given locations to meet some young gang member or somebody that was going to tell us something about yet another triad. And what we would do is, we would go around to the location we were given, the Sunkist sign. Trisha was always the marker. I would take a picture of her. I don't know how I ever talked her into being the one that—"Trish, stand in front of it." We would be there.

- 2.46 What I would actually do at the same time—so you'll understand this in terms of nonfiction; you're trying to make sure you're safe—the US did not have an embassy in Hong Kong, but they had a consulate, and I had made contact with one of the consulate officers. I would send him those pictures after we had them, so that they would at least know where we were, in case something went south. The last time they were there, they were over on the water near the Sunkist sign, balancing the risk versus the story.
- 2.47 But we know we're on their turf, so we would get directions, sometimes not on a phone, no text phone. They would leave something at this hotel we were staying at, on a sheet, and they would say, "Follow and go down this street with all these little stalls." I'll tell you that if you're not accustomed to Hong Kong, it's difficult sometimes to tell one different stall from another stall, because they're all selling the same type of merchandise or much similar merchandise for tourists. Then we would find the one that was right, and we would go in there as the only two non-Chinese people, saying we wanted to meet so-and-so, and we'd have a name, and then they would open up for us.
- 2.48 One night, we ended up on a boat. They would take us out on this small boat, again, thinking about, not necessarily the safest, but you're out. They would talk to you. We would get conversations on tape. We ended up at a restaurant called the Jumbo, and they even sat us once on the throne chair to take a picture. But you're getting information all the time as you're going along with this. The man behind the camera was one of the enforcers for one of the biggest things.
- 2.49 And there was at that point—part of the story was in Macao, so Macao, the neighbor to Hong Kong. Today, again, if you Google Macao, five-star luxury resorts and very expensive and a great spot. Macao, then being run by Portugal, much seedier and the sister city to Hong Kong in terms of what it was doing. We'd be told where to go, where to meet, and we would do it. And then we'd actually have to follow it into the Golden Triangle. We're finished with Hong Kong. We've got the people that we're supposed to meet. Now we're going up to the towns that are dependent on the trade. That's Bangkok, that's Hong Kong. Those are the places that serve as the crucial hubs.
- 2.50 And Western cities like Amsterdam, San Francisco, New York, that research came in between, but that was much easier. We were dealing with police, the DEA, or the national crime syndicates then. It's into Bangkok and Thailand where it was difficult. And so here again, we would be given locations, often outdoors, you'd meet them, they would say—and the Thai is completely different than the Hong Kong end. You're not dealing with that—think Chinese—you're dealing with Thai kids. And the Thai kids, the young gang members who are working for the triads, they really are 22 to 28 years old, maybe 27, 28.
- 2.51 You know this, you have this, they think they're invincible. Then nothing can bother them. There's no sense of—we talked before about the Chicken Coop—morality or anything else that can change their mind. Time and time again, these kids seemed to us

far more dangerous than the triad people we were dealing in a suit and tie in Hong Kong because they had a volatility built to them.

- 2.52** Chiang Mai Bowl, not Chiang Rai, Chiang Mai, the city underneath, that bowling alley was a hangout for them back then; I'm sure today, it's a very, very good place. But we would meet gang members there constantly, in that little spot along the side. Once inside a temple that was being rebuilt, no one was there. They had us meet inside of there and talk to us there. We had a couple of Thais who were willing to take us up into the area at great bravery to themselves, because they knew what we were doing and the risk that was associated with it.
- 2.53** And once, one of the young, what I call muscle gang members, thought it would be very funny to take us to a local snake farm. The one thing you have to know, that's April of '87, if you're taken to a snake farm by a local gang member, and says, "Come on," you can't say no. You can't say, "I have a thing about snakes. I'm really not so wild about them. I think I'll pass," because that's going to be the end of your contact with them. So put it on, hope that it's fine, and it is. And there is somebody who is doing that there, so it can't be all bad. But you're in their world, and you are following them.
- 2.54** Now, information alone doesn't hold an audience. It's good to paint scenes, but people do it. So this Colonel Viraj Juttimita, he's a guy in Thailand that I have a chapter in the book called The Incorruptible Cop. You're in trouble if you're writing about a police system and international heroin trafficking, and you can write a chapter called The Incorruptible Cop. There should be a lot of incorruptible cops. But he would go around. He had a pistol in his car and in his seat. There had been attempts on his life. He had survived nine different attempts. He had a reputation for being able to say no. He couldn't be bought.
- 2.55** He made the story of what it's like to fight heroin traffickers, if you're an honest cop in Southeast Asia, real. As a reader, you read his story and forget all the things about the DEA standing up at a microphone and telling you about how tonnage has cut and how they've intercepted a ship and whatever else. He made it real in terms of the threats and everything else. He let me into that. And we went up to Northern Thailand. We went around with these men. There was one day they discovered a body of somebody who had been an informant, and they took us out to that spot. That body had been burned.
- 2.56** The same way that you, if you're doing this type of reporting in the field, you are reporting with the gang members, and so they say, "Put a boa around your neck, so you're willing to do that;" the same way here, you're willing to go out to a crime scene when somebody's just been murdered, because you're with those cops and you're not saying, "Oh, by the way, sorry to hear about that. We'll be back at our hotel. Call us when it's over, and then maybe we can continue the interview tomorrow." You've got to put yourself into the place, even if you're not ending up writing.

- 2.57** I didn't write in the book about going to the snake farm. I didn't write in the book about going to see the body. That's not the first-person stuff I'm doing. That's part of working in nonfiction: to get the story that you can then tell. Because these people, like the colonel, they do the narrative work for you. They're telling a story; to them, it's just their life, but they don't realize how interesting it is. By getting that window in there, you're providing the readers access to a story that they will never otherwise have.
- 2.58** I know. We'd finish those interviews; we'd go back to the hotel. We had to move hotels once because I— and I'll mention this in a bit—it turned out that the hotel, the little hotel we were in in Chiang Mai, was owned by a drug lord, and so we had to move to another hotel. Trish had to move on her own because I was actually out with the DEA in Burma. But the point of that is, you are trying to, if you can, tell this story that nobody put a spotlight on. When you're doing it, we would come back from these interviews with the colonel, and we would be excited about it. That's when you know it's good.
- 2.59** When you're doing 200 hours of interviews in all these different cities and everything else, and sometimes, I guarantee you, it happens; if you're doing a nonfiction book and you're interviewing people, there are some people you have the highest expectations for. You think, "Oh, my God, I've wanted to talk to that source forever because they know everything," and then they're not a good interview. They just give you the official story. They've got some pre-planned story, and they give you that, and you try to get underneath the skin, and they won't give it to you.
- 2.60** And then sometimes you're meeting with—we'd meet with these Hong Kong police and they'd be by the book and not tell us anything. And we'd say, "Crime stats are coming down." And then one of them would say, "You know what? You're here for a while in Hong Kong. Maybe we should get together for a beer once," and that opens the door. Then you'd have a beer with that person. Then they'd say, "I think you should talk to this one. Talk to that one." Then you'd meet Benny. Then you're off and running. So you don't know the interviews that'll be good, but you have to make yourself available and accessible for all of those as you go across the board.
- 2.61** That spot there was a place that we would meet gang member after member. That Inter Guest House hotel, we did not stay there, but a person came down from the Shan states, from Burma, that was involved in the transportation of heroin from refinery labs, decided to talk to us, boasting about how their distribution network was the best in the world, and stayed at that particular guest house.
- 2.62** That goes back to what we talked about with the Nazi war criminal. Remember the Nazi war criminal stayed free by not living the high life, not being surrounded in killer dogs and armed guards and chauffeured Mercedes? This guy, who had a lot of money, came in and stayed at a guest house. It was \$6 a day, because that's not where the police or DEA might be looking for him. And so, that would happen time and time again, this little corner spot that turned out to be key. And this was the view from our hotel room. It wasn't that bad. And that is a Volkswagen bus that took us up into the northern parts

of Thailand at one point. I worried as much about that bus and its safety as I did sometimes about the gang members.

- 2.63** The border. All right. We hear a lot about the border. Oh, my God. You're in Arizona. You hear a lot about the border. I'm in Miami. I hear a lot about the border. This is the border. That's the border of Thailand and, believe it or not, and Burma. There is no signpost. There's nothing else that says, by the way, you're leaving one country or another. It's that Golden Triangle you saw before, which is just like that. And one of the things, if I can, it's just a track along there. And that particular truck, the back of that guy, that's a DEA agent. They took me out into the edge of the Triangle, and then over the border into Burma.
- 2.64** We would run occasionally into people. You'd find an interesting group in there, sometimes a wandering elephant, and they would be armed. Sometimes we came into the Akha, which is this ethnic group up in Thailand. It's fantastic. Traditional attire. They don't have a written language. They have customs and everything else. They really were, in the late '80s—I'm only talking 40 years ago, only 40 years ago—they were like another world. This is, when I say to you that Northern Thailand along the edge of the Burmese border was another world, it was people who were indigenous to the area, who lived there unmolested, and then people who knew how to operate up there in terms of the drug trafficking trade.
- 2.65** The DEA agents who took me up north. We went into a compound in Chiang Mai, Trisha and I did, to meet them and their families one night. You saw some of the spots that we saw from our hotel. We're looking out on the roof and everything else. We're staying in very inexpensive places, and we're staying in areas that are not the best parts of these towns. Now, DEA says, "By the way, don't tell anyone, don't tell anyone you're meeting with the drug enforcement agency because it'll put you at risk." Six months before we arrived there, a DEA agent's wife had been shot in the head, what the Thai police later said was a robbery gone awry, so there's a risk.
- 2.66** They came to the hotel to pick us up, this little hotel, and I had my hair really cut short at that time. The guy came in, he was Thai driver, and he looked at me and Trisha, and he said, "DEA?" in front of this hotel. Everyone went like this, and I looked behind me like this. We went with him. There's a wall outside the compound, the DEA compound, and you enter through the guard's gate. And there, on the other side of the wall, was one of the most remarkable things that I did write about. It's like a slice of suburban America.
- 2.67** You go from the heart—they had created, there's tennis courts, there are people playing tennis, there's a spa, there's T-bone steaks, there's, oh my God, it's like, here they were. They were all guys on that particular thing, the wives, families. They took me later up to this trip at the border, and then went over the border to do a black bag job, where they did explosives on a makeshift heroin lab in Burma. I reported on that in

the book because they were not hiding that. They were upfront about that. But this is where sometimes you have to be careful. I didn't realize this. Afterwards, I did.

- 2.68** It got them into hot trouble, because the official position of the United States is: we operate with drug enforcement agency only in countries that allow us to be there, like Thailand. Burma never invited us in, because Burma was a closed country at that time. So the idea that American drug enforcement agents crossed the border, even if the border is that strip of dirt, and did a job to take out a heroin lab on the Burmese side, caused an international stink.
- 2.69** I really was worried that those agents would get punished for having been that forthright. One of them, the lead agent, got transferred to Miami, which may or may not have been a good thing for him. But you do have to be careful of those things, because the agents are fighting—as they view it, they're putting their lives at risk. They're doing it, and they're not thinking about the international ramifications necessarily.
- 2.70** While we were there, this is the guy who ran it, Khun Sa. This book taught me more than anything, you have to be disciplined about your journalism. In the '70s, '80s, and '90s, he is a warlord who liked to dress in military fatigues. He was a constant chain-smoker. He had an army of mercenaries who would go ahead and run the opium trade up in the collaboration with the triads. The hotel that we stayed at was owned by one of his associates in Chiang Mai; we moved out of that. A person showed up who knew him at one stage, when Trisha was at the hotel on her own, and Trisha had to deal with that, and he left without doing anything. We always had the knowledge that his people were around, but never him.
- 2.71** Now, think about this from a nonfiction perspective. I'm being published by a company, McGraw-Hill, traditional publisher. I'm going back to them and saying, by the way, I'm setting all these scenes and things, but I'm naming people. Benny is a fake name. That was a fake name for him. But on Khun Sa, I'm going to name him as he is. I've seen the DEA papers inside. I've seen the papers inside of Amsterdam. I know this is a bad guy, and I'm going to name him as the drug lord who's running over it all. Now, the problem was, I'm doing this in 1987, 1988. He hasn't been indicted yet. He's not indicted until 1990 by a federal grand jury in Brooklyn.
- 2.72** Lawyers, and I say this as a former lawyer, who do the legal check for publishers for nonfiction—you do nonfiction, you're writing about real people, and you're saying they're doing illegal things, they have outside lawyers check your work to make sure they're not going to get sued. They don't care so much if you get sued. They don't want to get sued. They'll get sued as the publisher. And you're now saying, Khun Sa is the drug lord, and he's never been indicted. How come he hasn't been charged if he's this great drug lord? If you have an indictment, they can hang their hat on that and say, "There's a 45-count indictment from Brooklyn. We're going to do that." So I had to

convince them, through documents, interviews, and my material, that I could do that. And I did, successfully.

- 2.73** You as readers and you as creators of nonfiction, one of the things you have to get over—it used to bother me slightly, but now it doesn't because it's the nature of the business—is that your reader will not see, appreciate, understand, or for the most part, care about how much work went into each page. They just want a good story. They want to read it from the beginning to the end, tell a good story. They don't care if I went to five continents and 30,000 pages, or if I did it all from the benefit of the New York Public Library, as long as I told that story, and it was real to them.
- 2.74** One of the things that happens behind the Khun Sa story in the book is a month of back and forth, finger-biting negotiations with the attorneys and the publisher and everything else, to get that in. In the end, the reader reads it and thinks there's no big deal. And a year later, after the book is published, a year and a half later, he's indicted, maybe in part because of that work, and it seems like old hat. But that's the nature of the business: no one sees the amount of work that goes behind it.
- 2.75** I think that one of the reasons that people don't realize how much work goes into nonfiction is, if you've done your job well, forget the accumulation of facts; you tell the story so it smoothly flows, they think you just started with word one and you ended up with the last word on the last page, and it just must have all come out that way. Forget about the editing and the fact-checking and the cross-checking and the drafts that get cut on the floor, the material you throw aside. The good book should make it seem effortless. But by making it seem effortless, you will diminish the amount of work you put in. There's no question about it. That's the nature of the beast. There was a time I used to think people should know more about how much work goes into it. Now, I believe, no. You don't want to see the sausages made. You just want to see the final product. That's it.
- 2.76** This is an opium poppy field up in Myanmar. It is where, again, the opium is grown. You will see here that there's a period—this is a soldier from the Burmese army. He's working with Khun Sa. They would be out around these poppy fields at the time, in the state. They were the unofficial guards for it, AKs, nobody was really charging on top of them. So this is how your own view of things changed. Remember before I said, you don't need to come up with a solution. You don't need to do the heroin trade and say, "Oh, by the way, I've got the answer to what happens." But you do start to think, as you're dealing with all these people, with gang members and heroin dealers and distributors and triads and the police and the DEA, is there a better way?
- 2.77** So there's this moment at which I thought, "Oh, they should do crop substitution." They should pay all of these farmers, because the farmers earned about, at that time, 1987, \$456. I remember this. Some numbers are embedded into your brain. \$456 is the average amount a year from the season of growing opium poppies. So if the US came in and said, "By the way, we're going to pay you \$456 not to grow opium—grow coffee

instead, grow rice, grow something else," you'll have the full amount of money you would have had from growing opium, and it would cost us, at that time, \$50 million. I thought, "What a great way to get rid of a lot of the opium."

- 2.78** The problem was that you learned over time that we had tried crop substitution programs. And what happened? None of you will be surprised. If you devise a system, there will be people who will follow it, who are willing to say, "I'll abide by the rules." And there are people who say, "Oh, that's the rules now? That's the new system? I know how to game that." The way they gamed the crop substitution was, they had the farmers agree not to grow opium. We paid them the full amount for what they would have gotten for the year, and then they grew opium anyway, essentially doubling their income. And the guards from Khun Sa and the army protected them. Why should I be surprised? So the initial idea that I thought, it sounds great on paper. Some academic, I'm sure, at a university, is still arguing for crop substitution, but I guarantee you that, unless you can control the ground, it's not going to work.
- 2.79** We were taken by people to the captured remnants of a heroin lab. Now, you look at that, and I don't know about you—you've seen *Breaking Bad* or you've seen some film or whatever else—you expect a lab. You expect a real lab. It is a collection of chemicals, and it's a tray, and these guys can turn it out in just small batches of heroin that's worth, at that time, hundreds of thousands of dollars on the street. I marveled and explained in the book the idea that we—and I will show you a heroin lab that's a little bit bigger, what I call one of the fancier ones—but this material is seized in these runs up in Chiang Mai by the local police; that's the end of it. And they would lay it out. They would have some heroin that they would catch at the same time.
- 2.80** This is opium arriving at heroin refineries. Those balls are wrapped in banana leaf and paper, plastic, not to disguise them, not to keep dogs out, because no dogs, nobody is actually trying to find it on these shipments. That's to protect it from rain. It rains a lot in Thailand, and they don't want the product getting wet. This is the biggest heroin lab that I saw at the time, and that's a pretty sophisticated one. That's up right at the border of what was then Burma and Thailand. This is the height of the season; this lab could be disassembled and moved within a couple of hours' notice. You're not talking about any infrastructure that made it difficult at all.
- 2.81** Then where does it all come back to? So it comes back, at this time, opium, inexpensive, farmers make their money; it comes down, it's refined into heroin, mostly in northern Thailand, because it can be transported on the trucks in much smaller amounts. Ten times the opium, down to one-tenth the size of the heroin. It arrives in Bangkok, where it goes by land over through southern China. We think of China: China, communists, they must have no corruption at all. They have enough corruption, so money buys compliance along there. It goes through the southern end of China into Hong Kong at that point, or by boat into Hong Kong, where it then goes out to Amsterdam, New York, Vancouver, and other cities.

- 2.82** In 1977—I was born and raised in San Francisco. I went to law school in San Francisco. I was in law school at University of California, San Francisco, in '77, 23 years old, and there was a shooting in Chinatown, at the Golden Dragon. A bunch of young kids went in, what I call the foot soldiers for triads, and two rival gangs, the Wah Ching and the Joe Boys. And they shot the place up, shooting at each other. They killed five, they wounded like a dozen.
- 2.83** Nobody killed or wounded was a gang member, of course. And that put it on national headlines because killing non-gang members in a tourist area like Chinatown is bad for tourism, bad for business. The city jumps on it immediately. And what does San Francisco do? They formed their first gang task force as a result of that. Took a shooting to do it, but they eventually are able to do that.
- 2.84** And these are the traditional, what I call tongs. One of the things you run into in the US, which makes the book difficult in terms of nonfiction, is, Tongs are fraternal organizations that are operating in Chinatown that actually do help the Chinese community. They were formed when the Chinese came over here, were greatly segregated, and the laws were passed against them for exclusion. They're working on the railways. And literally, the Tongs grew up in the Chinese communities to say, "We'll take care of you. You can't go to the police because you don't trust them. You can't go to the Westerners. We'll take care of it. We'll do all here."
- 2.85** Those tongs, over time, became powerful organizations within the community in business. You had to know tong members to do business, and the triads grew out of them. The triads were the dirty bad boys from the tongs. So if somebody says, "By the way, my father was the president of the San Francisco Tong Association," that's not a bad thing. It's the triad that brings it one layer over, and nobody's going to be telling you that at the time.
- 2.86** You get people like this in New York, the "shrimp boy," he was called, and later sentenced to a long prison sentence. These are the young guys who came out of Hong Kong who later operate here. Who was the big boss inside of New York City, when I was working on all this? Federal investigation in '84 had found him to be the crime boss of all of Chinatown? You'll love this: a former Hong Kong police sergeant, another one. They knew the business, from having investigated the triads and the drug business. They knew where the weaknesses were. They knew who the contacts were. They moved over here as guys with a pension, as sergeants, and some payoff money from the triads, and they became the real bosses over a period of time.
- 2.87** The book was published in '87, '88, it came into, and we didn't know if anybody would be interested or anybody would review it. And there was a review. The way this works—I'm taking the fun out of one process of nonfiction writing pleasure. I view it as a pleasure that you'll never have, unfortunately, which is, nowadays, if you write a nonfiction book, you get a review, you're going to know about it because you're going

to get a notification. The minute it's up on there, you're going to read about it, you're going to share it with friends, whatever else.

- 2.88** Back in the day, pre-Internet, pre-social media, if The New York Times did a review of your book, it was in the paper, and all they would tell the publisher is, "A review will be done on Posner's book on Thursday." Now, The New York Times would deliver the physical copies of the paper to the newsstands in New York City—we lived in Manhattan— around 11, 11:30 at night, the night before. They dumped them. If you ever see them, they're these big stacks of papers all tied up; they throw them out of the back of a truck.
- 2.89** We lived on 54th Street, and I'd have a pair of binoculars to look down the street to the little newsstand the night before the review was coming out, to see when the truck pulled up and dropped the papers off. Then I would go down, Trisha would stay at home, because we both couldn't be terrorized by what the review would say. And although you're not writing for the review—remember before I said, you're not writing for a review, you're not writing for a bestseller— the reviews are important for this, not for your own ego, not for the sense of your mother or father being able to say, "What a great thing," because that starts the word of mouth often.
- 2.90** A good review won't make a bestseller, but a terrible review in a prominent publication—back then, the New York Times was the spot—can kill a book. The people who buy books, they'll say, "If they don't like it, I don't like it." So we would go down, pick up that, open up the paper, and see what it was. The great thing about that: it was a short review. It wasn't truncated, it wasn't cut, they hadn't put anything aside. It ran full in the paper.
- 2.91** And it has a part at the end from this crime writer, who says that, yes, I write about—I had some very courageous research during this book, which we didn't think was courageous at the time, but looking back on it, maybe some of it was; and that I said that it will be a time in which the Chinese triads may make the Colombian cartels and the Mafia look like child's play. The last line is what I like, which is that "Warlords of Crime is powerful, frightening, and unfortunately, nonfiction." I love that line.
- 2.92** You'll each have your own lines when you publish something that you like. You'll each remember the line where somebody says something bad that you don't like. But that I liked, because that was the purpose of the book. Yes, I hoped it would be powerful. I hoped it would be a little scary, because it was scary for us while doing it. But the key was, it was always, this is just nonfiction. This is true. This isn't just an incident made up.
- 2.93** Now, you asked before about whether anybody was doing a documentary on Mengele. So this was our first experience with what I call Hollywood. People option a book. When you do nonfiction and you've never had a book optioned before, option is just a small amount of money. Somebody gives you a very tiny amount, and I do mean tiny, to tie

up the rights to a book for a year. And they say, "Let me have the exclusive rights to go out and sell your book." And often they have a name. It's fantastic. It's great. And you think, "Oh, my goodness. That means there's going to be a movie in six months. I can't wait to go to the premiere. That'll be it."

- 2.94** That's not how Hollywood works. And we learned this way. So there had been *The Godfather*; there had been *Year of the Dragon*, which had been a fictionalized account of Chinese gangs; and then there was an article in the *Los Angeles Times*, "Coming to America?", that announced a year afterwards that the book had been optioned by, as a matter of fact, Hollywood, and that it was going to be made into a movie by Touchstone, which at that time was associated with Disney, and they were looking at casting a writer and everything else.
- 2.95** I assure you, lesson one: don't believe anything will ever become a movie until you see it on the screen. Here was the case in which they thought they could do it. Then for a whole host of reasons, it sat there, and they did nothing, and other people came to it. But it was a very good lesson for us. We might think it's a cinematic movie; it's something to tell, but it never got made into one. Although there is somebody, by the way, today, a producer in Hollywood who originally has done a number of things, who is trying to sell a version of the *Golden Triangle* based on this book. So maybe, some almost 30 years later, something, or coming on 40 years, something will be done.
- 2.96** Here are the lessons from *Warlords of Crime* about writing bestselling nonfiction: big subjects require bigger reporting. No question about it. And I don't think you can write in a sense of style to cover up if you don't have the evidence. You have to have the evidence. You have to know what you have there.
- 2.97** Scenes, people use them for decoration, but they aren't decoration. They're real. They bring in some sense of the story. If a scene didn't advance— you saw the spots where we were wandering around Hong Kong or Bangkok or places like that, a whole host of meetings and things like that never made it into the book; not because they weren't worthwhile, I used the information, but the scenes didn't advance the story, so they got cut out.
- 2.98** Systems, triads, big international conglomerates, heroin trafficking, money laundering, crime on the street—too big a story to tell in one big chunk, you try to tell it in human scale units, in terms of understanding the criminals, the people, the cops who are changing it. That became for me city's roots, people, moments. The characters became the lenses, not the heroes, but they're definitely the lenses, the Bennys and that of the world. You use them to travel into something much larger.
- 2.99** Ethics, at least for me, remained an integral part of the entire process. You're dealing with very dicey characters, and how you get the story really, really matters. There's a moral and ethical center to this book, and I think that, for me, it was absolutely critical. I guess, in the end, my view is that commercial success is really built. It's not something

that you pitch to a publisher. I can assure you, the publisher didn't know if anybody would read a book about this, but they took a gamble on it, and the book was successful.

- 2.100** As a footnote, if we wrap up, you should just note, there's still heroin that comes out of the Golden Triangle, but it's minuscule in terms of the world's heroin. The market for heroin moved in the 1990s and early 2000s to the Golden Crescent, which is an area in the Middle East, of the mountains, the Taliban, Afghanistan. While the Taliban cracked down on opium use inside their own country, they subsidized their battle against the Russians with the sales of drugs, just as the Chinese armies had financed their war against Mao with sales. They have a justification for it.
- 2.101** The Golden Crescent became a massive producer of, and they replaced the triads for the most part. The new gangs were Bosnian and Muslim gangs from Eastern Europe. The transportation to Amsterdam and the rest of Europe was easier. And now the great challenge in the heroin trade for the Golden Crescent, and the instability there, is Mexico, where they have regions that can grow opium quite well, and in some areas of South America. So the production of heroin has moved from what I call Golden Triangle, golden Crescent, more to the Western hemisphere.
- 2.102** And of course—and this we could talk about another time—the entire heroin trade is under assault from synthetic drugs that have replaced it, that are much more powerful, like fentanyl. So now you're in a stage in which—and I wrote about fentanyl, by the way, 32 years ago, 33 years ago for the first time. And it was the DEA agents who took us up, told us about this new synthetic drug, fentanyl, and what a threat it could be.
- 2.103** I went to the New York Times about it. They said no. I ended up going to Washington Post. We ended up talking to Vanity Fair. Nobody wanted that article. It was published in Penthouse magazine, which was like a Playboy magazine at the time, the only magazine, 32 years ago, warning about fentanyl. It was too early; it wasn't on the news radar yet. Fentanyl has put a lot of these heroin dealers out of business, although some of them have moved over to it.
- 2.104** That's the story. It's impossible to talk about this book and making a bestseller out of it without also talking about the human cost. And that, to me, is always part of it. And the human costs are the, unfortunately, the addicts and the families that pay the cost by losing people and relatives and loved ones. For decades, we've had this. Thank you very much.

Lecture 3: Challenging Conventional Narratives

At a glance — Challenging conventional narratives.

- 3.1 Welcome back. Good to see you all. So, journalism and how to write a nonfiction book as a bestseller. Maybe there's no better example of having low expectations, and then a book turns out to be a hit. I think people sometimes think that their book is going to be a fantastic success, and it's always great. Be positive. Power of positive thinking, I believe in it. And then it's published, and for whatever reason, it doesn't hit right, the timing is not right.
- 3.2 And then other times, you have an expectation that the book is not going to reach a wide market, because it's the subject that you've stuck to or what you've reached as your conclusion. And then it does. That's always a pleasant surprise. No better example of that than this book called *Case Closed*, about the JFK assassination. After *Warlords of Crime*, I ended up saying, Trisha and I talked about it. We said, "We're putting our lives at risk, selling a few copies here and there. This business is not worth it. Let's write a novel."
- 3.3 We did write a novel about a bacteriological warfare, a thriller called *Bio-Assassins*. It didn't sell very well, so we weren't going to pay the mortgage doing that. So instead, I decided I'll go back to nonfiction. I was changing publishers from McGraw-Hill to Random House. I went to them, and I said, "I have this idea for a book about the Kennedy assassination." I was at law school when the House Select Committee on Assassinations reexamined the case. I was always interested in it. I wasn't a buff in terms of following it and knowing it and everything else, but I had an interest in the case.
- 3.4 I was in the fourth grade when Kennedy was killed, at a Catholic grammar school—the first time I ever saw nuns cry, much less my mother. So it was always there. I said to Random House, a new editor, great editor, Maya Angelou's only editor, Bob Loomis, legendary editor in publishing, "All I know is that all the theories can't be right. It can't be that the CIA killed him, if the Mafia killed him, if the KGB killed him, if the Cubans killed him. So, let me go through the evidence after nearly 30 years, reexamine it, and come to a conclusion about what's credible and what's not."
- 3.5 And then there are four or five issues, who knows how many at the end, in which you say, "We can't resolve those." So if you want to know about the Kennedy assassination, read this book before you read anything else, because you'll know what the real issues are. And they said, one of the things you have to get used to in publishing, if you do nonfiction: rejections. You think, you look at my list of books, they just said yes to everything I proposed. Not at all. In between those are four no's to every book that gets done, or some book gets held for a long time. And they said, "That's not interesting. No one will read that book."

- 3.6** So I went off and did a book instead called Hitler's Children, interviews with sons and daughters of Nazi war criminals, getting the idea from my interviews with the son of Josef Mengele, from the first book. And then Oliver Stone did, as I say, the one good thing he ever did for me. He made a great film. It was a terrible history, JFK, and he reenergized the American public for the JFK assassination. And then my publisher said, "You know what? That book you're thinking about for Kennedy, maybe there's a market for it now as a serious nonfiction book."
- 3.7** They didn't pay much for it. They had low expectations. And I did what I do, which is go ahead and start to do the research for it. So, why Case Closed? Why not? I like challenging projects, so let me delve into this. One of the things is, the key to unlocking the assassination, as far as I'm concerned, and you'll find out about this, is this person. Whether you're going to conclude it's a conspiracy or not a conspiracy, he's at the heart of so much of this story.
- 3.8** Remember, something very interesting that I had forgotten until I got back into studying the case is that he had just turned 24 years old. He was 23, turned 24 the month before. We forget how young Oswald is, he somehow looks older. We think of him as older, but that age at which you think you have all the answers to everything. So what was it like in a pre-digital age? That slide pretty much summarizes how I feel about the difference between writing Case Closed and what you can do today.
- 3.9** Today, if you want to start with the Warren Commission, start with the House Select Committee on Assassinations, you can go online and find the archives. They're there; they're available. They weren't there, believe it or not, in 1990-91. You had to go out, we had to physically find a copy of the Warren Commission, 30-some odd volumes, buy them, and then I started to do index cards, three-by-five cards to make an index, because guess what? Warren Commission doesn't have an index. They never, I guess, thought anybody was going to go back and use it for research down the road. Simple little things like that. The House Select Committee on Assassinations.
- 3.10** Lots of time in Dallas. We talked to a lot of witnesses, including all the doctors at Parkland Hospital who treated Kennedy when he first went over. Here's a big caveat: one of the things that was critical on the book about the heroin trade, I had learned this, and even on the Mengele book, was that when you say to somebody "off the record" or "background," that's your bond. We would hear some amazing stories sometimes in the gangland world that were off the record, and we couldn't print that because we could not go out and independently corroborate it.
- 3.11** You give me the off-the-record story, and I can go out and find it elsewhere. I can put it together. I think it's right. I'll do that, but I didn't. That word becomes your bond because once you lose that, if somebody says after a book, "That reporter can't be trusted because I told them this off the record, and then they broke their word," you'll never publish anything else.

- 3.12** On the Kennedy assassination, it wasn't a matter of having things off the record as much as it was talking to people and witnesses. One of my biases in terms of witnesses—we all have biases that we go in. So when somebody says to me, they could sit on a jury and judge somebody who's in a public crime and be fair about it, they're not saying they don't have a bias. You go in to sit on a jury, let's say on a high-profile crime, with an intuition about what you think might have happened; what you're saying when you are unbiased is that you're willing to follow the evidence. You're willing to come to a conclusion that may be different than your original conclusion.
- 3.13** So if you ask me what my bias was going into this, I thought the most likely culprit was that the Mafia was involved. The reason for that was Jack Ruby, the nightclub owner from Dallas, his murder of the man accused of assassinating the President two days later. I've seen enough movies. It has all the earmarks of a mob silencing, so that's my bias. And the House Select Committee on Assassinations in the late '70s had put their finger on the scale by saying that they thought the Mafia might well be involved. So that's how I went into it.
- 3.14** When I talked to witnesses, and we talked to a lot of witnesses, here's my other bias, and I think this comes as a lawyer. People will sit down and tell you a fantastic story about what transpired. And then the question you have to ask yourself is: Are you going to publish it exactly as they said it, or are you going to verify whether it's true or not? Unfortunately, some of the best stories I've been given as personal recollections turn out not to be true.
- 3.15** Sometimes it's because witnesses change their accounts, not because they're cashing in, not because they're looking for 15 minutes of fame. Often it's because memory changes over time. They've interviewed with people so many times. They've been in documentaries; they've been quoted in books, and their recollection expands. There's a witness to the assassination who was there, and over time, her story continues to expand to a much more dramatic version of chasing across the grassy knoll after two people who she saw, who she thought might be involved in this shooting. But she was interviewed within minutes of the assassination by a local news crew, and none of that's in there.
- 3.16** So, if you tell me a story and an account, when I'm doing this book in 1991 and '92, that has much more detail, more vivid, and a more powerful recollection than what you said contemporaneously 30 years ago, you must give me a good reason as to why your memory got better. Now, if you give me a good reason, if you say, "By the way, I was afraid to tell the police back then because I was afraid I was going to be killed," and you have reasons for this, that's different. But my general take is that I want to interview those people who are key witnesses, but I don't necessarily give it a stamp of approval. I want to go back and compare to their original statements.
- 3.17** And so, it was through this material that I also ended up getting, as you'll see later, the first interview with a Russian defector that was very important. It goes back to that idea

we talked about, which is, always feel free to ask people for everything. So, no searchable databases, no master index, build your own tools, no Google, no PDFs, no keyword search. It's not to say it's easier. If you were doing the same task today, you decided you were going to reexamine the assassination and write a book about it, you're still going to have backbreaking work. You're just going to find it easier to get to some of the material before you start drowning in it.

- 3.18** A little bit about Oswald, the orphanage. We talked before about kids who have an easy time or not an easy time. He had an unusual childhood. He moved 21 times by the time he was 16. Eleven different schools, and that's not him; it's his mother moving around. Threw a butcher knife at his stepbrother, pulled another knife on his sister-in-law once, and punched his mother in the face when she tried to break it up.
- 3.19** Now, look, there are a lot of kids who come from troubled backgrounds and [are] just as violent as that, and they don't end up later being accused of killing the President. So I'm not saying that's it, but I want to understand this person, because if I don't understand him and what drives him from the earliest days, I can't determine whether he's part of a conspiracy, not part of a conspiracy. Can they work with him?
- 3.20** So, at 13 in New York City, he was a truant because he didn't go to school. Now, hold on a second. You'll say, "You've got to be kidding. Truant? Not going to school? That's like the lightest thing on somebody's record today. Who gets punished for not going to school?" Back then, believe it or not, they would actually file a complaint that somebody hadn't been to school. And what they did in the case of someone like Oswald is, they'd have you go over to a child development area where a psychiatrist would then interview.
- 3.21** Now, think of this. Years later, after the Kennedy assassination, that psychiatrist, Renatus Hartogs, was called by the Warren Commission. They wanted to talk to him. They said, "You had this kid, Oswald, that you talked to." He said, "I remember that case." Why? He said, "Because he was over on one of the mildest of charges, truancy. And yet, what I saw in him was so different that I have case notes about him." So, three weeks of psychiatric evaluation. What are the conclusions for that time?
- 3.22** "Definite traits of dangerousness. Child has a potential for explosive, aggressive, assaultive acting out. Vivid fantasy life, turning around the topics of omnipotence and power." Diagnosis? "Personality pattern disturbance with schizoid features and passive-aggressive tendencies. An emotionally quite-disturbed youngster who suffers under the impact of really existing emotional isolation and deprivation, lack of affection, absence of family life, and rejection by a self-involved and conflicted mother." Treatment? "Mandatory psychiatric care at a home for disturbed boys."
- 3.23** What does his mother do? She says, "The hell with that," doesn't believe the psychiatrist, and takes him back to Texas, and that's the end of it. So, Oswald at 18 decides to do something interesting. He's sort of enamored a little bit with what's

happening in Russia, but he decides to follow his stepbrother into the Marines, because his stepbrother went into the Marines at 18, and it brought him away from that crazy family life he has. So he goes into the Marines.

- 3.24** The Marine Corps, for him, turns out to be an unmitigated disaster for the following reason: his fellow Marines pick on him. Some of them think that he's gay. They call him Mrs. Oswald. They throw him in the shower at different times. He starts to read a Russian-language paper. They call him Oswaldovitch. They push him out on the edge. He hates the Marine Corps in a very short amount of time. And one of the things, the only thing that he's good at in the Marines, as a matter of fact, is on the rifle range. Sharpshooter, 212, pretty good. Hit an eight-inch target eight times out of 10 to 200 yards. He can do it.
- 3.25** And at the end of his tenure in the Marines, just before he leaves, when he's not happy at all, and he's dejected, and he's sloughing along, and he's already been court-martialed for having a pistol at one point, he still goes on and, in his sleep, does a marksman at 191. So he's capable in the range. Does that mean that he did the shots to kill Kennedy? Not at all. It just means that he is competent with the gun.
- 3.26** And what does he do when he leaves the Marines? Oswald's a fascinating character as a kid. He does something nobody does in the middle of the Cold War; he defects to the Soviet Union. So, I call him the disappointed revolutionary. He defects to the Soviet Union, and he writes about this in his own letters. He expects to be greeted as a hero. He's a defecting Marine. He's coming in. He says, "I want to be here in Russia," and they're going to accept him with open arms. KGB, they interrogate him. They conclude he has no value to them in intelligence. They say, "You've got to leave Russia."
- 3.27** And what does he do? He tries to kill himself. He slits his wrist inside a bathtub, inside the hotel, when the Russians are coming to bring him out of the country. They don't send him out of the country. They put him instead with a psychiatric board, with two psychiatrists who evaluate him for three days. With the fall of the Soviet Union in 1991, we start to see those files for the first time. So what's the reason that Renatus Hartogs' diagnosis is important when he was 13? Because now you get some confirmation from a completely different set of eyes that are independent from the Russians, who are viewing him and coming to the same conclusion about his instability. "Mentally unstable" is the final line, "more capable of irrational acts."
- 3.28** So this is what I say, in nonfiction, if you're creating something that's readable: independent systems can corroborate information sometimes, to the extent that they corroborate it. The CIA has no incentive at that point to say, "Oswald is this unstable character." Their contemporaneous reports are what matters. And what does he do? They move him out to the provincial capital of Minsk, and they watch him. They have surveillance on him because they aren't sure he's not an American spy. They're not sure that he hasn't been sent in there as an agent.

- 3.29** And those tapes and that information on Oswald comes out. Norman Mailer, the writer who has the same publishing house I had, puts a book out later called Oswald's Tale, in which he gets access to all those tapes. And the Russians are amazed that he's not an agent. He's working at a factory. He meets a young Russian girl, Marina Prusakova, and he marries her, and they have a daughter while he's still in Russia.
- 3.30** But Oswald, you won't be surprised, he's not happy in the US, hates capitalism, hates what the system is, but he's not happy now in the Soviet Union, either. So he decides he wants to come back to US. So you say, well, hold on, you defected. How is it possible you can come back to the US? Must be wrong. I would have thought that was impossible, except it turns out that several dozen defectors to the Soviet Union over the Cold War period decided they didn't like Moscow winters, came back to the US. They had to apply through a process. There was a process through which you went through.
- 3.31** And for Oswald, it was easier than for most of them, because some of them had renounced their citizenship. They went to the Soviet Union and said, "I renounce being an American citizen." He didn't do that. The day he wanted to renounce his citizenship, the person at the US Embassy wasn't there, so he didn't do it. And as a result, that turned out to be a blessing in disguise for him because he was able to get back. He was still aggravated. He was still mad that it took so long to process him back to the US. But he had chosen, essentially, what he called "the lesser of two evils." He didn't like the US, he didn't like Russia, but he knew the US was a little bit better.
- 3.32** So he comes back, disillusioned in under a year. In April of '61, he marries Marina. More than a year to get US and Soviet approval to return to America, a country he told his brother, "I hate," still the lesser of two evils. And when he arrives in June of '62 in Dallas, we talk about expectations. Here's a guy who thinks that when he defected to Russia, the Russians were going to say, "Hey, great, heroic guy." Now he's coming back to America. There's going to be a press corps, says, "Hey, you didn't like Russia. You're great." Nobody was there. He was so disappointed that no reporters were there when he returned to Dallas in June of '62. And he wrote in this book that he had, or this collection called The Collective, "I despise the representatives of both systems."
- 3.33** Oswald back in the US. So who does he hang out with? You now, as a reporter doing a book, you get corroboration through social circles. His social circles were Russian émigrés. They were Russians who had moved to the US, and they were especially helpful for Marina, who spoke no English, because they made a community for her. Here's how they described him.
- 3.34** George Bouhe: "He had a mind of his own. I think it was a diseased one." Katya Ford: "Unstable. Something was rather wrong with the man. He was a mental case. We all thought that at some point." Anna Meller: "Absolutely sick. I mean, mentally sick. You could not speak with him about anything." Paul Gregory: "Bad temper, mixed up,

seemed to be a small person that's all ready to flare up." George de Mohrenschildt, his best friend: "I pitied him."

- 3.35** My point on that is: Are they right? I don't know that, because I haven't done the corroboration yet. I haven't gone out to see. But I know they share independently, told independently at times, a view of him that's interesting. Now, did he aggravate them? Did he do something against them? That's still to be found out, but the consensus on him from those was interesting.
- 3.36** Then, something that I didn't know when I started to do the book, what I call the abuse of Marina. So the Russian emigrés and friends of hers would see her at times with black and blue over half of her face. She would tell some of the Russian emigrés that he beat her regularly. She told de Mohrenschildt he had threatened to kill her. She later said in '62, he was "brutal and cruel." New Year's Eve in '63, she wrote an old boyfriend, "Well, you talk about mistakes." When Lee returned, he found that and battered her. And during January of '63, he was "unrestrained and explosive," nine months before the assassination, 11 months.
- 3.37** When she called him crazy once, he grabbed her by the throat and said he'd kill her if she did it again. And in February, although she was pregnant again with their second child, he continued to pummel her. He made her write to the Soviet mission in Washington, asking to return to Russia, and the following week was the most violent of their marriage. And after beating her one night, he said, "I won't let you out of this alive." Near the end of February, she made a feeble suicide attempt. I think it was more a cry for help, with a clothesline. And he found her and he punched her and sent her to bed.
- 3.38** Now, he's got a violent side. There are domestic abusers who don't go on to shoot at the President. So I'm saying, every point that I come to, I am understanding a little bit more about Oswald. It doesn't mean that he was the shooter, that he was the assassin. You have to keep them separate. That's why, in a courtroom, judges will not allow information about prior bad acts because they don't want the jury to be influenced. If you've presented this information so far on Oswald, you might be thinking, "Well, maybe he's more likely to have done it." You have to keep [in mind] that there's separate instances.
- 3.39** Oswald's fantasy world, as I call it. Trouble holding a job in America, no question about it. Unhappy back in America. His mother is back in his life, which makes him even unhappier. Marguerite is an unusual character. The book that he buys is *How to Be a Spy*. It's interesting. It's an early book. I don't recommend it. It's not a very good book, but it was one of his books that he had. He has made his own identification card as Alek James Hidell. He's making fake IDs in a very rudimentary way. Why? We have no idea. But then we know why, because in January of '63, he buys a pistol by mail order that he uses under a different name.

- 3.40 And then in March of '63, he buys the rifle, a military World War II Italian carbine, 6.5mm shells for anybody who's not a shooter, it's 160 grains. It's a bullet designed in a gun, designed after World War I, to pass through a body, because the thought was that, if you have bullets that are fully metal jacketed, instead of hitting the body and expanding, they'll pass through. So people will be wounded; they won't necessarily die. So this is a fully metal jacketed bullet. It's the same as an AK-47 in terms of its speed. It's used by some game hunters for big game, and one of them calls it like a flying drill. So it's an effective gun if you know how to use it.
- 3.41 What does he do? He's had it only a couple of days, and he tells Marina, "Here's a camera. Come in the backyard. I want to take some pictures." And he takes his gun and his pistol, and he has a copy of The Militant, and he sends pictures of this later to some left-wing organizations in the US. He's trying to show them who he is.
- 3.42 Now, the part in the middle there, where you see that sort of, what I call part of Oswald's face, then a blow-up of pixels—one of the things I learned very quickly in doing this was that there are people in the Kennedy assassination who have studied it for years. I was a Johnny-come-lately. I was somebody who'd just started in the '90s, so I hadn't paid the dues. There are people who have been doing it since the '60s.
- 3.43 There are some people that are focused on only one particular issue. Trisha and I met with a father and son in Dallas whose only focus was Tippit, the Tippit murder of J.D. Tippit, the Dallas policeman. That's all they did. We went to a lecture at a local university in which a young researcher said, after an hour of presentation one night, "I found a shell casing recently at Dealey Plaza. And I think I can tie this to who the shooter was." And we were on the edge of our seat, and he said, "And I'll get into that next week." I was thinking, "That's impossible. You could be killed by next week if you really found out who the shooter was, but okay."
- 3.44 But there are people who have focused just on the question of these backyard photos because they believe that it's impossible that Oswald, whom they don't see as the killer, would have posed for these pictures. So they must be fake. They've looked for some evidence of fakery, that there's some doctoring that takes place. The House Select Committee on Assassinations had photographic experts come in. They examine, and they look for the fakery. No evidence of fakery after all these years.
- 3.45 But I will tell you that I spent weeks on that, because people make serious arguments. They talk about the shadows, the shadow there that you see behind Oswald. "Marina says she took these pictures around 1 PM, and 1 PM on that day, the sun would have been further over to the west, so the shadow would have been a little bit more to this side." They have dissected it to the 10th degree.
- 3.46 The thing is, of course, as I always say, there's a bit of what I think makes for good nonfiction storytelling. If your reader has trust in you, they'll have trust in what you're presenting. And one of the things that I have is, whether cursed or blessed or whatever,

with this sense of logic, so my question is: If they're fake, let's assume for a second they're fake, what about Marina? She says she took them. So, why would she say she took them if they were fake?

- 3.47** People answered that by saying to me, originally, that she said that because she was afraid after the assassination. She was Russian. She didn't know anything. Her husband's been charged with the crime, that they were going to put her in jail or send her back to Russia. So she said whatever they told her to. I said, all right, so let's assume that's correct. Then she's remarried. Her children are grown. She lives in Texas. What about 30 years later, when she's no longer worried about being—wouldn't she have then said it?
- 3.48** And I actually had people say to me, "She has said the lie for so long that she now believes it." So, now there's no answer to that. There's some point at which you can no longer answer that. But I believe these photos are absolutely real. Do they prove that he shot at the President? No, they don't. But you have to put everything into its place. But it's remarkable how much effort is put into these by people.
- 3.49** So he says, Oswald, in one of his writings, "No man, having known, having lived, under the Russian Communist and American capitalist system, could possibly make a choice between them—two brands of slavery, one twisted beyond recognition by its misuse, the other decadent and dying in its final evolution."
- 3.50** And Marina said about that day, with those pictures, "I thought he had gone crazy." But something comes up in April of that year. This we know, without a doubt, before we even get to the Kennedy assassination, and that is that Oswald decided that assassination was what he would do to enter the history books. And who? This man, who most people will never have seen or heard of before. I can't tell you how many times I talk about the Kennedy assassination, and this is a surprise to people, Edwin Walker.
- 3.51** Edwin Walker was a right-wing military general, disciplined by the army, essentially resigned, because of his right-wing comments about the Allies and everything else. And he decided he was going to run for the governorship of Texas. He'd already lost once. He was in local politics. He had backing from the John Birch Society, which was the right-wing groups of hardcore right-wing racists and everything that existed back in the '60s. Oswald focused on him, and Oswald was convinced that he was an up-and-coming Hitler.
- 3.52** Now, given the opportunity, one of the reasons that I hate—and I write about this, I wrote a piece in the Wall Street Journal recently, that I hate the Hitler analogy for public figures on either side of the aisle is, who in history would not travel back, if you were a time traveler, to kill the infant Hitler, to stop what happened in World War II? So once you brand somebody as Hitler, it's so inflammatory. You're saying, "This person

is going to commit these evils." That's how he saw Walker. It doesn't matter right or wrong. That was Oswald's view of him. And so, that becomes critical.

- 3.53** So what does he do? He starts to do surveillance on him. He goes out to Walker's home. That back of that car with a license plate was cut out, that's how the federal government, when they released photographs years ago, used to protect somebody's identity. They didn't do it by just fuzzing it over. They actually cut it out on the picture like that. He would monitor Walker's home, and then he went there one night with his rifle. He shot at Walker, who was sitting in his study, and Oswald thought he had killed him, because the crash takes place. He sees Walker, he thinks, go down, and he thinks that one bullet is it.
- 3.54** He gets home, and he was devastated to find out later that that bullet, he couldn't see the window sash from the bright light inside, grazed just along the bottom of the edge of the window frame, the wooden frame, and literally missed Walker's head by a few inches and went into a case right behind him. So nobody knows at this point that it's Walker, except for one person, Marina, because she has seen all of his preparations and everything that he's done. "A rifle for him was not a good toy, a toy that was too enticing. I told him he had no right to kill people."
- 3.55** Now, where does he go? She says, "Lee, we're going to New Orleans." He had an uncle who was from New Orleans. It's fantastic. Let's get away from Dallas because she thinks that if he stays in Dallas, he's going to try to go after Walker again. So Lee goes down to New Orleans, and he starts—he has decided now that there's a new and pure place for the revolution. He's not a pure Marxist. He's not a straight left. He's got a bit of Marxist ideology mixed with a bit of anarchy. He's got his own unusual political philosophy.
- 3.56** But he's decided the place where it's really happening is Cuba. He wants to get to Havana because Fidel Castro is the real deal. So he forms his own Fair Play for Cuba organization. Fantastic. They don't have much money. He spends some money on printing off pamphlets that say, "Join my organization, Fair Play for Cuba," gets a couple of guys at the bus station help him hand them out, puts on a tie, and does everything else. This is fantastic.
- 3.57** And you can see here, he prints off his own card, Fair Play for Cuba, New Orleans Chapter. By the way, the New Orleans Chapter is Oswald. That's it. No one else. Didn't have another member. The "pamphlet case sentence given," because he was actually sentenced to pay \$10 or serve 10 days, having been arrested for giving them out without permission. But he was handing these pamphlets out. "Hands off Cuba! Join the Fair Play for Cuba Committee."
- 3.58** Think about this for a second. So here's a kid who joins the Marines, and it turns out that he's bullied, and it's a disaster for him. He goes over to the Russians as a defector, and they say, "Get lost." Comes back to the United States, where he thinks he'll be

something of a hero, and it doesn't work. Says, " Screw it. I'm going to at least stop this guy, Walker, from becoming a leader," and that fails.

- 3.59** Now he goes to New Orleans. And when, over the summer of 1963—you've been to New Orleans? I live in Miami. New Orleans is tough in the summer. On the streets of New Orleans, no air conditioning. He doesn't have it in their house. He's handing out these pamphlets. And you know how many volunteers he signs up? Zero. Nobody. It's another venture of his that he's tried that's failed. So, he decides at the end of the summer, "All right, I'm going to go to Cuba. I'm going to get to Havana, and there I'll prove my worth." And Marina is going to go back to Dallas, where she will live with a friend that they had, Ruth Paine, during the time that he applies. And then he, Oswald, will call Marina down to Havana once it happens.
- 3.60** Now, this, for me, became a critical part of this case, and I'll tell you why. So Oswald gets on September 25, '63—we're not talking that far before the assassination now—on a Continental Trailways bus bound for Houston. And the next day at 2:35 in the morning, he boards a Continental Trailways bus for Laredo, Texas. Twelve hours later—this is a long journey down there—at 2 PM on September 26, he crosses into Mexico. And at 2:15 on the 26th, he boards Flecha Roja bus 516 for an overnight trip to Mexico City that will put him there on Friday morning, the 27th.
- 3.61** Now, why is that so important? Because when you're putting together your book to tell a story, although you're amassing the information, you want to tell it as a straight-through story, something was happening in Washington over the time that Oswald was on the bus. It was this: the White House announced for the first time on September 26th, when Oswald was on the bus going to Mexico City, that Kennedy would visit Texas. They didn't even name the cities yet, but they named a trip to Texas coming up in November. It was a political trip that he was going to take.
- 3.62** The reason that is so critical is because, if you're planning a conspiracy, you want to name Oswald as the patsy, so you want to set him up, or you want Oswald as part of a plot, you cannot plan an assassination in Dallas until you know the President is going there. Oswald was on his way to Cuba at the time they announced that. So the question is: How does he end up back in Dallas?
- 3.63** This is how: he ends up going to the Soviet mission, where he applies. He goes to the Cuban mission. They met with Oswald, and he said in his faltering Russian, "Hey, I want to go to Cuba." And they telexed back to KGB headquarters and said, "We've got this guy here who said he lived in Russia. What do we do with him?" The information that came back from the KGB was, "Get rid of him. He's unstable." He comes in, Oswald; he's so furious, he takes his pistol out because he's traveled down there with it and slams it on the desk of the Russians and the KGB agent. One of them takes a pistol, and they send him out of that place. At the Cuban mission, he gets rejected again and again. So, think of this. He wants to get to Havana and he can't, because of the fact that the Russians and the Cubans won't give him that permission.

- 3.64** He comes back to America, and one of the things that I know, going where no one thought to ask—remember I said before, always ask for information? There was a Soviet defector who came to the United States in the 1960s, Yuri Nosenko. He handled the Oswald file when he was in Russia. For a while, the CIA thought he was a fake defector, and they kept him in a safe house, and they tortured him, and did all the things the CIA can do. Terrible stuff. Then they decided, after years, "Oh, he's not a fake defector. He's a real defector." They let him out, and he was living under witness protection.
- 3.65** I applied to see him. I sent it through CIA Freedom of Information headquarters, and they sent it on to Nosenko, who, I didn't know at the time, was willing to talk to journalists. He later talked to ABC because the Soviet Union had fallen in '91, and he no longer felt the KGB was out to kill him. So I interviewed him. He gave me the information because he was in Moscow in '63 when the Russians from Mexico City had sent the information back and said, "What about Oswald?" He was the one that said, "Get rid of him."
- 3.66** Now, what happens back in Dallas? Oswald is trying to find a job. He's not happy. Marina is still living outside. Oswald lives in a rooming house with other men. One of the reasons that's so critical is because I've said something before, which is, if you have a situation in which the White House announces a trip to Texas by the President in November, Oswald comes back in early October to Dallas. If there's a conspiracy that he's involved with, somebody has to bring him into it. You can't do it through telepathy. There's no text message. There's nobody that can give you something in an encrypted room.
- 3.67** It has to be the old-fashioned way: a personal meeting or a telephone call. Somebody has to do that. And he wasn't living on his own. So we don't know if he got a visit. He was living with other men and the woman, Earlene Roberts, who ran this rooming house. And they would say, no, nobody ever came to visit him, but he would make a call every other day or that, and he would speak in a foreign language. That sounds interesting, until you realize, when they check the records, he's calling Marina and talking to her in Russian. So, there has to be some point at which that happens, and you're looking for that.
- 3.68** But he lands a job. He gets a job at the Texas School Book Depository. History is a cruel fate sometimes. When he called up to get that job, the woman, by the way, who called up for him was Ruth Paine, who Marina was staying at. She asked a friend of hers, "Do you know any place that has a job?" And one said, "A relative of mine just landed a job at the Texas School Book Depository. They need some seasonal work." So when Oswald calls in, Roy Truly, who's the foreman, says, "I've got two spots, one outside of Dallas and one down at the main School Book Depository. I'll put you downtown." So they put him downtown at the School Book Depository, and that's where Oswald was working.

- 3.69** Now, there's something interesting about this. We live in a day and age in which we think that everything is so high security, and it is high security. But there was a time in which the newspapers would print the President's motorcade route and tell you, street by street, where they were turning. Today, we would think that was telling a potential killer where they could take their best shot. But back then, the Dallas Times Herald, "From the airport, the President's party will proceed to Mockingbird, to Lemmon, then along Turtle Creek, turning right on Cedar. It'll go through west on Main, turning back to Elm at Houston." That's right in front of the Texas School Book depository.
- 3.70** The same thing gets printed in The Dallas Morning News on the 19th. Now, the next day, just in case you hadn't read the paper on the 21st and on the 22nd, they print the route. They want to share with you the route so you could see it. Now, something interesting about Oswald on this. He had a habit—he was a voracious reader of the newspapers, but he didn't have a lot of money. So he often read them the day after they were published, in the lunchroom at the Texas School Book Depository. People would read a paper and leave it on the side.
- 3.71** So we don't know, no one will ever know, whether Oswald read it on the 19th, when it was first published, or on the 20th. Just not sure. But on one of those two days, he would have learned that the President's motorcade was passing right in front of him. What does he do on the 21st, the night before? He goes out to see Marina and Ruth Paine at their house, which is unusual for him, because he only goes on a weekend, normally. If he goes at all, it's on a weekend.
- 3.72** The FBI has a file on him. They've interviewed him, and they want to interview him again. He goes out to the house on the 21st. Marina doesn't know why, but it's to retrieve his rifle, the one that he bought back in March, which is in the garage of the Paine residence, and he covers it in brown paper. Oswald doesn't drive. He never learned to drive. When he goes to work the next morning on the 22nd, the day of the assassination, the person who's driving him, Wesley Frazier, says, "What are those?" And he says, "Curtain rods." You won't be surprised that there are no curtains in his room at his rooming house, or no need for curtain rods, but that's what he said they were.
- 3.73** The interesting thing about the 21st is this: the night before, think of this, one of the most momentous events in American history, the successful assassination of a president—and I don't mean success in a good way, but successful in terms of having changed history—Oswald has this long discussion with Marina, because they have been fighting. They're separated. And he says to her, "Come back with me. Let's get back together. Give it another chance. I'll buy you a washing machine."
- 3.74** Now, that may not seem like a big deal; for him, it was a big deal. It's like saying, "I'll buy you a car." He had saved up the money for a washing machine. She had wanted one. And she said later, "I was so stubborn. I just rejected everything he said. I just kept saying, 'No, no, I won't do it. I won't do it.'" And during the night when they were

sleeping together, at one point, she remembered putting her foot over on top of his leg, and he kicked it away with this ferocity that surprised her. And she thought to herself, "My, he's in a mean mood."

3.75 The next day, when she got up, he had already left for work. He had left almost \$200 on the dresser, which was their life savings. And that bothered her a little bit, but she didn't think anything other. And what she didn't see is that he had taken off his wedding ring for the first time and put it in this little demitasse teacup that was her grandmother's on the back, which she saw later.

3.76 The question that I have—assume with me for a second that you get to the point where you think Oswald's the shooter, as I do—is: Is it possible that, on the night of the 21st, he was serious in saying to Marina, "Let's get back together," that if she had said yes, something as momentous as the assassination of a president might not have happened? I don't mean to put the blame on her. I'm not saying Marina is responsible for the fact that JFK died, but I'm saying that we tend to think, as rational people, that in order to kill a public figure of any notoriety, of any fame, that you must be obsessed with that person and view them as a danger.

3.77 We don't like the idea that somebody could be an equivocal assassin, that you might be committed to killing the President the next day, "unless my wife comes back together with me." It throws off our balance of what the world is. We'd rather have somebody so filled with hate and rage that you say, "Now I understand how they ended up there." And with Oswald, he's perplexing in many ways. You just can't be sure on that night before.

3.78 Now, put aside for a second whether he's the shooter. He's on the sixth floor of the Depository, half an hour before the shooting, with six of his coworkers. They break to go to lunch. They say, "Are you coming with us?" He said, "I'll be down in a minute." He stays up there. Oswald can have no idea what the security is going to be like in a presidential motorcade. He's never been to one before. So he doesn't know if there will be a secret service in his building, on his floor. He doesn't know if one of the coworkers will come back up to the sixth floor and stay with him.

3.79 This was not a suicide mission. This was a mission; if he could carry it off, he would try to do it. But if he couldn't, he wouldn't. He has half an hour on his own, and he sets up essentially there, and this is a shot of the sixth floor in the immediate aftermath. What I call, whoever the shooter is, sets up a sniper's nest. That sniper's nest is those three boxes in front of the window where you place the gun; you're looking straight down the roadway, from which the President is shot.

3.80 So, what happens? What do we find when you examine this later? Left palm print of Oswald on the corner of the top box, the right palm print on the end of the wooden stock on the rifle, the right index finger on the top of what I call the resting box, the

right palm print on the box behind from which you're sitting, the left index finger and right palm prints on the paper bag, no other prints found on the gun or anything else.

- 3.81** So now you say, if he's handing the gun or he's been set up as a patsy, but he's got evidence that Oswald's gun—what about the gun itself? What did they do with it? So that gun is found on the sixth floor of the depository. Oswald leaves within a minute and a half. I'll show you that afterwards, how he gets out of the building.
- 3.82** People say often, and I thought about this when I first approached the case, "He shot the President. Why would you throw the gun away?" Well, of course, it makes sense you throw the gun away, because if you're caught with the gun on the way out of the building, it's game over. They know it's you. That's the end of it. You have to hide it in a place in which you think nobody's going to find it for a while and hope that you're out of town before they can be able to stop you.
- 3.83** Now, forget for a second who it is that's doing the shooting, if that's possible, whether it's Oswald or a world-class assassin. Here's what I wanted to know. Journalists, writers, nonfiction authors, you must learn enough about your subject to ask intelligent questions. Then you don't need to be a forensics expert, but you need to know when to rely on ballistics and forensics experts. What I wanted to know in 1992, when this book was being put together, it's been out in '93, is: What's new today that you can do that you couldn't do back in 1963 and 1964?
- 3.84** And it turns out that they can do considerable things differently. They can now determine, based upon the shots that hit the President and the governor, where the shooter had to be within this cone, as I call it. And they pretty much center on that one side of the Texas School Book Depository. It doesn't tell you that it was Oswald. It tells you at least it was a part of the building where he was beforehand.
- 3.85** What about the so-called famous single bullet? We've lived on the single bullet forever. Failure Analysis is a firm that does recreations for courtroom work. The American Bar Association in 1992 decided to have a recreation about who killed Kennedy. They had Failure Analysis come in and present both sides of the equation, for and against the single bullet. Their breakthrough in terms of science was this material here, which is, in some ways, common sense, and in other ways, you think, why didn't the FBI or anybody else think of it years earlier?
- 3.86** People often ask the question: How is it possible that a bullet went through the President and went on to wound the governor and inflict a set of wounds and emerge in such good condition? The words that people like to use about that bullet is "almost pristine." You hear that all the time. "It's almost pristine." That's bad. That's like saying a woman's almost pregnant. You're either pregnant or you're not pregnant. The bullet's either pristine or it's not pristine. I've examined it in person at the National Archives. It's not pristine. It's flattened out on one side. It's lost a little bit of its grains, but it's in very good shape, I agree, for doing that set of wounds.

- 3.87** Here's how: it's fired from Oswald's gun, like 2,000 feet a second. It hits Kennedy at 1,700 to 1,800 feet a second in the high neck, rear portion. It doesn't hit any bone. It travels through Kennedy and out his throat, not hitting any bone. It nicks a part of the tie. He has a neurological response from that. You'll see on the Zapruder film, his arms come up and lock into place. Jackie Kennedy, next to him, is trying to push his arm down. It doesn't come down.
- 3.88** It goes on to Connally, and the entrance wound on Connally's back is an inch and a quarter long. Why is that important? Because the bullet is tumbling at that point. That's the length of the bullet, an inch and a quarter. It's hitting Connally on the side as it goes into Connally. It's not coming on the direct flight—important because if they're hit by separate bullets, there are two shooters. The only time here for three shots, one of them misses, one of them is this shot, the second shot, and the third is the fatal headshot.
- 3.89** And then when it hits Connally's rib, and finally, the first bone that it hits and hits his wrist bone, it's traveling at rates of speed 1,200 to 900 feet a second on these different wounds, enough to shatter the bone and not enough to deform the bullet. And when you say, "Hey, nice theory, but how do I know that's real?", here's the National Archives. That's the back of the bullet. That's where you can see it was pressed down a little bit. That's the bullet that actually went through the two men.
- 3.90** Failure Analysis reproduced that bullet. I have pictures of it in my book. They reconstructed it by having two men, carcasses of the size and weight of the governor and Oswald, and firing bullets through the two of them. They would reproduce, essentially, that bullet as it looks like that inside the book, where you can't tell the difference.
- 3.91** Now, when I came to the realization that the single bullet had happened, you would think that meant I thought Oswald had killed Kennedy, or that Oswald had acted alone. Nothing of the kind. All it says to me is that one of the shots fired by an assassin from behind the President that day was that bullet. It doesn't tell you if there were other shooters; it doesn't tell you if there was a shooter on the grassy knoll; it doesn't tell you if the President's headshot was from somewhere else; it doesn't tell you who was pulling the trigger.
- 3.92** And even when you conclude that it's Oswald, it doesn't tell you if he was doing it for himself or as part of a plot. So people assume that if I say the single bullet happened, that I must therefore immediately conclude Oswald did it alone. Not at all. It's just one piece of evidence in getting to a final answer. So, if you can't get past that, you conclude that didn't happen, then you've got a conspiracy from the get-go. And unfortunately, the fatal headshot, there's something on this that I'm not sure, and I know it's graphic. Frame 313 is the headshot of the president.

- 3.93** And remember, we live in a day and age—think about this, oh, my God. There's an attack, there's somebody drives a car through a group of people, there's a shooting. Charlie Kirk's assassinated, whatever. We expect to have dozens and dozens and dozens of cell phone videos. Everybody whips out their phone, and they get the aftermath and everything else. This was unheard of. Somebody was at the assassination, a Dallas dressmaker, Abraham Zapruder, testing out his new 8mm Bell & Howell camera. And not only was he doing that, but he captured the assassination and didn't bring the camera down.
- 3.94** I think about that often, because you're there and you're watching this horror play out in front of you, and your tendency might be, "What?" Like this. Instead, he stays with it. We see the Secret Service agent jumping on the back of the car as the car zooms out. When I first saw the film, the Zapruder film, in 1975, when Geraldo Rivera put it on a show, America Overnight, it's a disgrace. No wonder.
- 3.95** Oh, why do people think it's a conspiracy? Because we don't believe in presidential commissions appointed with blue ribbon panels that, a year later, come out with a report, and there's no follow-up, because the information was hidden from the American public, because the assassin was killed, because of the fact that not only were the files hidden, but the public didn't even see the Zapruder film for 12 years after. Time-Life had bought it. That's a disgrace.
- 3.96** And when you first watch that film, as I remember I did in '75, I was convinced, "Oh, God, look at that." You watch it in real-time, Kennedy's shot from the front, no question about that. There's no way Oswald shot him from behind because it happens in real time, and the President's head appears to go back and to the left. Oliver Stone tells you that constantly in the film. Back and to the left, indicating— we've all watched Westerns and war movies—you get shot from the front, you go the other way, and you see it in real time. That's it.
- 3.97** One of the things that ballistics experts and video film experts can do over a period of time is, they can isolate it. They can do it frame by frame. And when they do it frame by frame, there's something that happens. Frame 312, the frame right before, they measure the distance on the top left frame to frame 313. Kennedy's body comes up a little over an inch. The bullet's entered at 3:12. It explodes at 3:13. And when I give you frames, I'm giving you time references, 18.3 frames to a second. That's the speed at which the film ran. So, an 18th of a second, a split second, literally.
- 3.98** And at 3:13, the bullet that's entered here, the high right rear portion of Kennedy's head—God, I'm sorry, as a distraction, I think about this often. I want to turn the car around when I see it turn in front of the Depository. I want it to go back or something. When Reagan was shot by Hinckley, we now know that if the bullet was an inch over, he'd be dead. That's the difference. The difference between a successful and unsuccessful assassination, from the killer's viewpoint, can be a matter of inches. That's certainly the case here.

- 3.99** Kennedy, wounded from the second shot. The driver of the limousine says to the Warren Commission when he's interviewed, the oldest member of the security detail, William Greer, 52 years old, he says, "Oh, by the way, I heard the first shot, and then I looked around when the second shot was taking place, and I saw the President reacting, and then I turned around and I was accelerating out of Dealey Plaza when I heard this terrible sound, and it was the third shot."
- 3.100** Guess what? Video doesn't lie. Not true. That's how he remembers it. But what he actually did, the driver of the car, he's driving. The first shot takes place and misses. He's not responding at all. The Secret Service agent sitting in the front right of the car isn't responding, never comes over the back. The second shot takes place and wounds the President. That's when the driver turns around. The car is going 7 to 10 miles an hour. It's going on this slow motorcade, now slows down. Takes no evasive actions at all.
- 3.101** Kennedy's in a back brace. We forget about that. He's got a bad back. He's propped up a little bit. His head's lolled a little bit to the left from being wounded. Oswald is 100 yards away. It looks like 25 yards away with his 4x scope. The shooter—let's call him the shooter for a second—he takes that shot, and he still almost misses: an inch and a quarter higher. It's a failed assassination, and the driver is out of Dealey Plaza. But it hits Kennedy, and what happens is, it blows out the front part of the President's brain and blood matter, and about a third of his brain, blood matter. They tried to save him at Parkland, but he was essentially dead at that moment.
- 3.102** There was, for years, one of the Bible items that was used to indicate that Kennedy was shot from the front, from a grassy knoll assassin, was that the two Dallas motorcycle policemen who were riding in the back of the motorcade got sprayed with blood and brain matter. So it makes sense. You say, "Hey, they got hit." Billy Hargis. These other guys that were riding behind, the President must have been shot from the front, and it went back on them. When you slow it up, frame by frame, remember, this is eightieths of a second. You see the two of them, as the car is moving along, drive right into this sort of what I call a cloud of red mixture. And that's how they get sprayed as they drive into it.
- 3.103** What's Oswald doing? Of all the employees at the Texas School Book Depository, only one left after the assassination. It was Lee. And let me tell you one thing I know. He crossed down, he went down the floor. He's greeted by a cop who runs into the building because a construction worker said, "I see a guy." They put out an all-points bulletin based on a mid-20s, brown hair, white Caucasian guy, based upon one eyewitness testimony.
- 3.104** A cop who ran into that building. And when Oswald's coming down the stairs, that cop is with the supervisor. He said to the supervisor, "Who's that?" He said, "Oh, he works here," and they let him go. And where did Lee Oswald walk out? He walked out the front of the building. He walks into one of the guys who worked at that time for PBS,

who's looking for a telephone, and said, "Do you know where a telephone is?" And he said, "Yeah, inside there." Only later did he realize that that was the person accused of the assassination.

- 3.105** Oswald, who never spends money that he doesn't have to, takes a taxi for the first time in his life, which is really extraordinary, and the taxi is stuck in traffic. The President has just been shot at. It's a presidential motorcade. You're not moving. So he gets out, and he gets on a bus. And where's he going? He goes back to his rooming house to get his pistol. And then he starts to walk.
- 3.106** And this is the part that no one will be able to answer, no matter how much you study the assassination: What was his escape plan? Where was he going? Because we don't know that. We know he had something. It wasn't a suicide mission, as I said. He had some idea of where he was going, but he was interrupted by a Dallas cop who was answering the all-points bulletin. He thought he looked a little suspicious. And when he pulled him aside, Oswald whipped out the pistol and shot him point-blank in front of a dozen witnesses.
- 3.107** Now, why don't we know the answer? No trial. This guy, Jack Ruby. I will tell you, the worst thing that happened in the case, Jack Ruby, because once he kills Oswald a few days later— Ruby, by the way, is a story on his own. I have chapters in there that follow him in detail because you can't answer Oswald without answering Ruby. Ruby has this view in his rough-and-tumble world, wannabe mobster, everything else, he's going to be the tough guy who avenged the stain on Dallas for Oswald having killed the President. People are going to say, "Jack, you know what? You got rid of that no-good guy. Good for you."
- 3.108** There was a charge in Texas then, called murder without malice. Maximum sentence, five years. He thought that would be a no-brainer for him, that a jury would never really hold him. We forget the animosity toward Oswald at that moment, in the immediate aftermath. Years later, the majority of the American public came to believe that he wasn't guilty of the assassination. But he, at that moment, when he was first arrested, the public thought, "This is the guy."
- 3.109** When the word spread out onto the street that morning, there was a crowd that had gathered for Oswald to be transferred out of the jail, that he had been shot, they didn't know if he was alive or dead, that he had been shot, there's a local Dallas news crew that's filming the street, and they catch the reaction of the crowd, and they break into applause. It's really chilling to think that that was—and that was the American public that Jack Ruby thought he was walking into, that he could do that.
- 3.110** When Trisha and I went to do this research in '92, the fellow with the 10-gallon, the Stetson hat and the white suit, who is handcuffed to Lee Oswald and looks as though he's as shocked as anybody that the shooting is taking place, that's him. You go to visit

him and interview him, and he puts the same handcuffs on you. Interviews are unusual at times.

- 3.111** And so, when the book came out, we thought—we meaning Random House, me, Trisha. I'd done a book in which I went back to Random House in the middle of my work—this is when I say you have to follow what's true— and I said to my editor and the editor-in-chief, "You don't need to put out a book that says, 'Here are the five or six issues in the Kennedy assassination.' You can put out a book that draws my conclusion that Lee Oswald is the assassin in this case. If he is part of a conspiracy, the evidence isn't there yet."
- 3.112** They looked at each other, and they thought, "What are we going to do with this? He's read the Warren Commission, and that's it. No one's going to be interested in that. He's got to be wrong." Then, when they saw what was new—the new ballistics, the new sound material, the new witnesses, Yuri Nosenko, the Soviet files—then they got excited about it. Published on the 30th anniversary of the assassination, that's just beforehand, and it was a cover story in US News & World Report, and it received praise from people like Stephen Ambrose, the historian Tom Wicker, and William Styron.
- 3.113** One of the things that was unexpected—I thought people were only interested in a conspiracy. On that anniversary, there were 12 or 13 books published about massive conspiracies in the Kennedy case. It turned out that after 30 years, and now we're past 60 years, that if you said as a serious journalist, "Guess what? I've reexamined the evidence. And although I wish I could say that there was a conspiracy because it would be the biggest story ever, and present you the evidence, I think it's most likely that Oswald did it on his own," people thought you were from outer space.
- 3.114** They thought something had to be wrong. It's impossible that you really reached that conclusion. You're serious? You think that? And then you argue your case. So that was the most of the outlandish theories, in the sense that it said something, little did I think that. I would argue with anybody about why I thought that was the case.
- 3.115** So Cyril Wecht, who was a medical examiner in Pittsburgh, thought that it was a conspiracy, and a single bullet was impossible. We would go on Crossfire. Conan O'Brien had just started his show. I would be on the Today show, talking with my boards at that time about the single bullet. Dan Rather did a special on it. Dick Cavett, Charlie Rose, before he ran into all of his problems and was dismissed. Even Bill Maher, at a very young time on Comedy Central. So that book hit a nerve. People wanted to know the answer to how.
- 3.116** The New York Times again: "brilliantly illuminating section on the timing of Oswald, more satisfying than any conspiracy theory." And I remember the first week that that book got on the New York Times bestseller list, you could have knocked me over with a feather, because I was so surprised that that book that said, "By the way, I think the Warren Commission made a whole bunch of errors. They got the shooting sequence

wrong, they hid the evidence when they shouldn't have, they've set the basis for all the conspiracy theories, but in the end, they came to the basic right conclusion," would not be something that would be like that.

3.117 Now, of course, I continue to get punished every time I go to the grocery store, because it seems like every month or two, there is a new tabloid with yet something else. "JFK Autopsy," "Hoover Ordered—," "Proof of Five Shooters"—I love that one, "Oswald Was KGB Assassin!," "Oswald Didn't Kill JFK," "3 JFK Shooters"—says the Enquirer this time. "I killed JFK!" There are over 30 people who have confessed to being the JFK grassy knoll assassin. Not one of them has proven to be the case. "Biden Buries Proof that CIA Killed Kennedy."

3.118 You cannot publish in a vacuum, meaning that, I always say, you know how much tribute I give to Trisha for having done the work with me. But if I didn't have a publisher who stood behind me and was willing to take the heat, and we did take heat—we had to open up a police file; I was assaulted on the street in New York, on an airplane; we received dead fish once in the mail; we received a rat's tail cut off.

3.119 People who believe it was a conspiracy—and I didn't understand this at the time, but now I do—then see this book come out that says, "I think Oswald did it," and then the national media embraces it, and you say, "That's part of the conspiracy. That's what they're doing. They're covering it up. They're continuing to cover up. They've got this guy, Posner, who either got paid off or is a CIA asset or something like that, to write this book." And then they all embrace it and say, "Great job," because they're all covering up the truth. They were furious at me. And I would debate people all day long about the evidence. I'm happy to do that. But that was a surprise to me.

3.120 One thing that I remember is—this is a flashback to a pre-digital age—if we get notifications on our phones and devices now about breaking news all the time, sometimes too much, I don't think actually breaking news is breaking news anymore. It seemed to be anything. If somebody sneezes, it's breaking news, but it used to be really breaking news. You'll never have that moment today, in which we learn of a national tragedy at once, by somebody telling us, and you have that shared reaction of just shock. There's something, yes. I use notifications. I like to get them and stay abreast of what's happening. But I realize when I hear that, there's a moment of shared experience that you lose, and that reaction is pretty much it.

3.121 Case Closed teaches us as journalists, in trying to make a book: follow the evidence, not the appetite. I certainly didn't follow the appetite. The appetite would have been for a conspiracy story. Understand belief systems. Expect backlash, but it's more than you think.

3.122 Start with a willingness to be wrong. I thought it was the Mafia. I was wrong in a way that I would never have expected. I went to Berkeley as an undergraduate in 1972 to '75. If you told me when I was an undergraduate at UC Berkeley in the early '70s, that

one day I would think Oswald alone had killed the President, I would have thought you were insane. So have a willingness to follow the evidence, and it takes you where it does.

- 3.123** Build your own infrastructure when none exists. So this time, pre-digital, you had to do it. Read before you interview. We read a ton before we interviewed, so we know when somebody was giving us something that was wrong.
- 3.124** Use conspiracy believers as archival allies. Harold Weisberg and Mary Ferrell believed it was a conspiracy, and they allowed me into their archives. They gave me great access to that information. They disagreed with my conclusion, vociferously. Harold wrote a book called Case Open, so he clearly disagreed with me. But that's the nature of doing historical work and putting your byline by it.
- 3.125** Understand your subject before explaining the crime. To me, Oswald's psychology explains who he is and why nobody would trust him in terms of a wider plot.
- 3.126** Expect emotional backlash when you puncture beliefs. Conspiracy thinking can sometimes be like a religion. And publish anyway. I am not immune from the threats, but if you don't want to take the heat, you shouldn't do the work. That's my feeling on it. But if you do the work, it's great sometimes when the public responds to it. So that's it on Case Closed. Thank you.

Lecture 4: Reconstructing Contested Events

At a glance — Reconstructing contested events.

- 4.1 Thank you for coming to lecture four of writing nonfiction, and hopefully how to create nonfiction to bestsellers. I think, I said to you in the very beginning, I wish there was a handout sheet I could give you and say, "Here are the eight things." The one thing I mentioned, I think, in an earlier lecture, absolutely convinced of, you have no chance of writing a successful book if you're not on fire on it. You have to have a passion about it. So it can't be assigned to you.
- 4.2 There's no better example of that than this book, *Killing the Dream*, that I did on the Martin Luther King assassination, because it wasn't supposed to be the book after *Case Closed*. *Case Closed*, I'd had enough with assassinations. I actually went ahead, and after a lot of research, it takes Trisha and me anywhere from three to four months to do the preliminary research to put together a proposal, to say, "Hey, we think we can write a book about this subject that nobody else has done quite the same before." We don't know where we will land until we do it.
- 4.3 And then you have to have a publisher that says, "Okay, you produce interesting things. We'll gamble on you that you'll come up with a story in the end." And so, the book that I wanted to do, which we'll talk about in the next lecture, is the business history of Motown Records, one of the greatest record labels of all time. I said, "You know what? Enough with assassinations. Enough with people saying, 'You must be a CIA stooge because you concluded that it was Oswald.' So I'm going to do a good history of Motown and what Berry Gordy achieved."
- 4.4 Trisha said to me, "Knowing you, you always uncover something. You'll probably find out that Stevie Wonder was lip-syncing or something, and you'll have Motown fans coming after you." I said, "It's worth the risk. We'll do it." So we actually had the publisher agree to that. And very seldom— this is now, you're talking '93. In that period, we did a book on Ross Perot as well, in '96, *Citizen Perot*, when he was running for President the second time. I thought he would have a bigger impact than he did, but he didn't, and he gave us access to that.
- 4.5 We had the Motown book ready to go. So assassinations are far off our mind. And then in late '96, something happens on *Killing the Dream*. It's this. It's the meeting, as I call it. It's Dexter King, Martin Luther King's son, meeting with James Earl Ray, who had pled guilty and then withdrew his plea just a couple of days later, to killing King. And Dexter King visited Ray in prison and said, "We believe you. We think you're just a patsy, and we are hoping to get to the truth."
- 4.6 That meeting, you had to be not paying attention to what was happening in the world in terms of history, my thinking and everything else. At the time when King was killed, I was 14 years old. And that year, when Martin Luther King was killed, and Bobby

Kennedy was killed in 1968, and living in San Francisco, it seemed like the world was coming apart. So you couldn't have, all these years later, somebody come in, have the son of the man who was the leader of the civil rights movement in America and changed the American perspective more than any other single individual, then he's murdered at the age of 39. Remember how young he is; we forget about that with King.

- 4.7 And then the son of that man goes into prison and says to the man who pled guilty as the assassin, "We believe you." I'll tell you, that's a big story. So I said to my publisher, "Maybe I can do a book in time for the 30th anniversary of the King assassination, 1998." They thought that was insane, because the turnaround was so fast. With a nonfiction book, you don't just turn it into your publisher, and they put it out. With a self-published book, it's fantastic. You have to do your own editing and your own copyright. You still have to make sure that everything's good. You have to get your images lined up and you're worried about formatting. I understand all of that.
- 4.8 But in a nonfiction book for a traditional publisher, you submit a manuscript, and then they go through it with their editor, who tells you if they like this or that. Then a copy editor goes through it, line by line, looking for what we think of editors doing, which is grammatical mistakes and questions about accuracy. Then the lawyers come in and go through it, because you're writing about real people who you might accuse of being part of an assassination plot or that, and that slows it up. Then the publisher sets it to print and decides to publish it three or four or five months later, because they want to try to sell it to magazines and set up an interview for television and all of this.
- 4.9 So the idea that you could do the book research, write the manuscript, get it turned around, and in time out for the 30th anniversary in a year and a half, seemed rather insane, but it did focus, I will say, Trisha and me, on the work. We were in the cave. So the question is, how to start? You know why I took the case on. The state of the assassination in the 1990s officially resolved with Ray's plea, but I mean officially; there's not many people still hung onto that. Publicly, completely unresolved, especially in civil rights circles and among many historians.
- 4.10 There was an explosion of conspiracy theories around Martin Luther King's death, and that really created a vacuum. So not only did people think at times the CIA did it, and the FBI did it, the Mafia did, the Green Berets did, the military. Some of the most popular books about the assassination of Dr. King were put out by James Earl Ray's own attorneys. So I always look at those books through the eyes of advocacy, not necessarily historical. They are defense attorneys, and they are doing what they should do, create doubt about their client and whether their client was guilty; and they do that very effectively, especially the last attorney that Ray had, William Pepper, and we'll talk about that.
- 4.11 So, that was one of the issues. And I thought that, three decades later, the unresolved questions about it, the problem that I faced was in finding a story narrative that might settle some of these existing issues that might run counter to what people thought

popularly, or might embrace those theories and make the book even larger. In the end, you're just following the facts for what they are, and hoping that you're going to be able to find a story, a willingness to pay off the emotional toll of having sat through the book.

- 4.12** So my challenge was to handle a national trauma that's already attracted all these readers and advocacy and people who believed that Ray was innocent, and sometimes bad history, and then tell it under this political pressure in a short amount of time. How do you start? Before writing a single page of the book, I decided to do what I like to do, which is bad for me in time, which is to recreate the investigation from the ground up. I don't want to necessarily look at anybody else's investigation. Nobody else has a master theory that I'm convinced is the right theory.
- 4.13** I'm going to look at it all and try to make it from the ground up. I'm going to look at Ray again, his years on the run, his 30 years of political and legal aftershocks, the story of Raoul, a mystery character, and see what I can make of it. This meant planning for a volume of material, like with the JFK case, that was extraordinarily large and pre-digital, so you couldn't search through it.
- 4.14** So the research universe. We lived with literally tens of thousands of pages of documents before we went out in the field, before we went to Memphis, before we went anywhere else. FBI files on King's murder, what the bureau called the MURKIN file.
- 4.15** Now, you'll understand this: if you're doing research for a nonfiction book, you get access to files. You have to look at those files and the information gathered through the bias of those who have been collecting the information. So using the FBI MURKIN files, the FBI had ingrained horrible, nonstop hostility to Dr. King. J. Edgar Hoover, the head of the FBI, had an obsessive desire to destroy King's reputation. They had sent a letter to Coretta Scott King, urging that her husband should consider killing himself. They had spied on King illegally. They had wiretaps and videos.
- 4.16** They thought that he was a philanderer, and Hoover—a straight-laced fellow who might have at one stage worn a dress, but that's in a different book—was so horrified at the idea that King was not staying in his marriage that he had all these FBI agents spying on him and recording this material, in the hope that King would be publicly humiliated. He didn't necessarily want to kill King. He didn't want to make Martin Luther King into a national holiday, but he wanted him destroyed in his own time, so that the man who won the Nobel Prize would have to say, "Yes, I'm not this person that you think I am."
- 4.17** So I went through the FBI files with that in mind, which is that they had a bias to paint King in the worst possible way. So the FBI files on the surveillance of King, what they call the MLK FBI files. The Justice Department's own internal review of the FBI's King work, held at the National Archives, tens of thousands of pages of material. The House

Select Committee that investigated the Kennedy case had also done the King assassination. They had volumes that went on, of 13 volumes of hearings and appendices, which we had to go through and mark down who we wanted to talk to.

- 4.18 Local Memphis sources, the sanitation strike, the local police, the DA files about that time in the follow-up when Ray was finally brought back to Tennessee for trial. Earlier investigators' papers. I wasn't the first person to look at the King assassination. There have been people that have done great work on the King assassination before it was independent, especially an author journalist who had passed away by the time I started, called George McMillan. He had interviewed Ray's brothers and inside the family and a group of people; some of them would talk to me, but some were already dead. You couldn't get access to them. The McMillan papers, which were at the University of North Carolina at Chapel Hill, were absolutely, incredibly important. And the big breakthrough was the Memphis district attorney investigation.
- 4.19 Now, before I tell you that, we ended up in St. Louis. We're going through the St. Louis police records department because Ray had been there for a while, and I needed information on him when he was in prison. We ended up going to the Los Angeles police records department, digging out Ray's arrest records, went through the Missouri Department of Corrections, where he had spent time, for details of his prison years. The Lyndon Johnson Library had oral histories back in Texas. The National Archives at College Park, we were at.
- 4.20 And then, the Memphis district attorney reinvestigation. Once Dexter King went in and said to James Earl Ray, "We think that you're innocent," the local Memphis district attorney essentially reopened the case, which was the right thing to do, because there could be new information. There was a person, Loyd Jowers, we'll talk about him later, who had owned a grill which was underneath where the flophouse was, who later said, "I fired the shot." So you have a lot taking place at a big time.
- 4.21 They reopened that case, and Trisha and I went down to Memphis. We met with them and said, "Hey, we're doing a book, a reexamination on the King assassination. Could we get access to your investigation as you go along, so that we can get an idea of what's going on?" And they said, "No, it's a private investigation. We don't share it until the results are published. When are you publishing?" they asked us. We said, "Oh, we hope to publish by the 30th anniversary at the very latest, so April of 1998." They said, "Oh, no problem. We're going to publish at the end of 1997 with a big, massive report. So you can come in and then watch as we go along, and get some feeling for what's happening if there's any new evidence."
- 4.22 Perfect. Because typical government—well-intentioned, but inefficient and slow—they published after I actually published my book. So I ended up getting access to their investigative material, which would have been impossible for me to go ahead in doing. They had investigators on the road getting material. They had wiretaps. They had all types of material. And they ended up actually publishing it a little bit later, which made

it look as though there was a lot of fresh information in the book, some of which actually ended up coming from their own investigation.

- 4.23** And Judge Joe Brown, as some of you may know, became a very popular judge— we ended up applying for a court order, Trisha and I did, in Memphis, to get access to the original Ray evidence. So all of the evidence, including the rifle and his cigarette butts that he threw on the side and the suits that he wore, everything was still on file. It had been taken out of the archives. It was available as part of a live case there. You had to get a court order to get into it. They brought you down the hallway. They signed you in. You had to put on the gloves. It was all very serious, but it did give you the feeling that the case was open again, and there might be some new developments.
- 4.24** At this scale, the landscape of previous work on King, you talk about how to create the book. I've got George McMillan, who had been in with Ray and his family. David Garrow, who did a fantastic biography on Martin Luther King, had done work on King and civil rights; he was actually the one who encouraged me to try to take a look at the book. G. Robert Blakey is called the father of RICO, the RICO statute used to go after a criminal; he's the one who came up with that. And he was the chief counsel for the House Select Committee on Assassinations. His formal investigation was no-nonsense.
- 4.25** So, I mined McMillan's papers for family interviews and correspondence. I used Garrow's insistence on meticulous sourcing as my standard; and I ended up treating the House Select Committee as a starting point, not as their conclusion, and I emphasized the principal effort, not necessarily the conclusions. Take the work of what they've done, and then see how you can go ahead and craft a different story from it. So, the tools that I learned from this, more than any other book: respect the effort of what predecessors have done.
- 4.26** When I was doing the book on the Chinese triads and the heroin business, there weren't a lot of previous journalists that had done books on it, so I didn't have to follow in their footsteps. On the Kennedy assassination, there were a lot of books that said conspiracy. In the King assassination, there were books on both sides, a lot of books that said conspiracy, and some books that thought Ray did it. So you can take the work from both of them. You can go back and mine the original, but without adhering to what their conclusions are. You can admire somebody's reporting and disagree with it where they landed, so that's why those interviews were absolutely invaluable.
- 4.27** If McMillan quoted a brother, one of Ray's two brothers, John or Jerry, I always went out to see if there was corresponding information that corroborated it, or if I might be able to talk to the brothers themselves, their FBI memos. In the end, I spent a considerable amount of time talking to Jerry Ray, and he would send Trisha and me little songs that he would record on cassette tapes. He would send Christmas cards.
- 4.28** He, on a television show, after the book was published, I said the family was hardcore racist. They grew up as racist. And he said, "No, we were never racist. We never had a

bad view of black people." I said, "You sent me a card talking about the N-word." And he said, "No, I never sent you a card like that." I had the card with me. I took it out on national television and showed it. They showed it to him, and they said, "Is this yours? Is that your writing?" At least he told the truth then. He said, "Yes, that is." He said, "I don't know what I was thinking." My feeling always is that you talk to everybody, but you take it with a grain of salt. You realize what their bias is when you're coming in. That's the purpose of doing the book.

4.29 That's why the back of the book, in *Killing the Dream*, if you go through it, sets forth a list of sources and people that I'm grateful to for having provided this. If you want your nonfiction to last, give future journalists enough breadcrumbs to follow. So if you read my book and you say, "You know what? I think Posner did a good job on this, but I don't know about this conclusion. I want to find out what he based it on." You look at the back of the book, you find the source, you know what the original document is, you can then go out and check that if you want to, and you can argue with me all day long about it. You can say, "Why do you think this FBI file concludes this, when I think it concludes that?" And that's absolutely critical. Always provide the information for people who look at your book to say yes or no.

4.30 Archivist and records clerk. I really do believe—I know you'll think I'm just saying this—they are part of your team on a big nonfiction project. If you're going to create a book that's going to last and a book that's going to sell, you have to realize you can't do it on your own. You can't do it just as a two-person team. These people have their own jobs, and you're asking them to help you out on a book. They're doing other things as well at the National Archives. They've got a whole list of things to do all day long. So, if you ask for things, the more they can help, the better they are; you end up thanking them.

4.31 Tens of thousands of pages, you can't just read and highlight. So I did a running list of unanswered questions. I don't want to lose them. I respect the bits of every institution. Defense investigators for Ray had an institutional loyalty to their client; that was to be expected, but they also had great information because they had dealt with Ray for over nearly a 30-year period. They knew Ray in a different way than almost anybody else did, except for maybe his brothers.

4.32 And the local Memphis politics—we've got a lot of information in Memphis, a lot of politics and a lot of files, but I always filtered it through that lens of what Memphis was like in 1968, which was not a hospitable city for Martin Luther King, and how it was in years after, when they were upset in some ways. Dallas was never happy that the Kennedy assassination happened in Dallas; for them, it marked the city. Los Angeles, sort of the same with Bobby Kennedy. Memphis, particularly so with the King assassination. There would be people in Memphis who didn't say it as directly, but in essence, they would say, "God, he could have been shot in Selma. He could have been shot in so many different places. He was shot here." It was Memphis' problem. So they

were not the most aggressive, initially, in going after what happened in the case, and that created a problem.

- 4.33 The trick is not to throw out biased content. I say this all the time. I've got protagonists on both sides. FBI people think Ray did it; on the other hand, the King family and his lawyers, who think that he's totally innocent. I get information from both; I'm going to use it as much as possible. So my narrative choice, I'm going to reconstruct his life in granular detail, trying to do not a caricature, but this psychological portrait to see what, if any, role he ends up playing in this, and what it can mean when he finally carries the day, the day being the day that Dexter King walks in and says, "We believe you."
- 4.34 Now, writing about Ray required a different mindset than, say, writing about a political leader or a corporate leader that—this was a career criminal, a conman, somebody whose entire life is based on deception, lying, knowing how to get away with something. So you can't believe—he even said once to his lawyers, "There's a difference between the truth and the legal truth." He was candid when he wasn't under oath that he didn't feel an obligation to stick to any particular story.
- 4.35 So if you go to investigate somebody like Ray, there are three potential problems. First, I consider in terms of crafting this for nonfiction, you underestimate him. If you underestimate him, you think he's a four-time loser, and that's the end of him. He's a country bumpkin, and he really couldn't have pulled off something like the King assassination and then gotten away to England. It's impossible. You automatically have judged him, and that, I believe, works to his benefit. You overcorrect, and you become his propagandist. You think that he's a super sleuth, that he's capable of doing anything. Clearly not the case.
- 4.36 I think that what some people forget about is that they find, time and time again, that if they go ahead and they talk to somebody like Ray, they talk to the people around him, they build a caricature. That's not what I want, and it's not what I believe makes good-selling nonfiction. People don't want to read a caricature of someone. They want to read about the real person, and that means getting down in the granular details.
- 4.37 That little house, that's Alton, Illinois, dirt poor, born into the basement of a two-room house in Alton, Illinois. Let me tell you, when he was born in there in 1928, this is an area known as Little Dixie. The Civil War had a crossover point at which a lot of Southerners ended up there. He was what you would have called back then "white trash." He didn't have the five cents to buy a lunch when they would go to the local school. He was dressed dirtier than everybody. The only people lower on the totem pole than the whites that the Ray family were in were blacks who lived in the same area. So he grew up with this institutional view of blacks in a racist view, less than him. He was already on the lowest rung in terms of white America, in terms of this area.
- 4.38 But there's something unusual about Ray. He comes from a family with a nearly 100-year unbroken history of criminal behavior. His great-grandfather was hanged as part

of the Plummer gang in the 1800s. They killed nearly 100 men in these botched robberies and robberies all across the United States. His grandfather was an itinerant bootlegger who ended up doing jail time, time and time again. His own father, called Speedy—that was his nickname, not because he was speedy, because he was so slow—was an alcoholic himself, time and time again.

- 4.39 His uncle, Earl, was the one who took him under his wing. Earl himself, a convicted felon, takes James under his wing, and at 13, James is hanging out with him, meeting prostitutes and hanging out on what I call these little dime-dealing packages that take place in Alton. He's a rough kid growing up at a very rough time. So, you say sometimes that somebody doesn't have a chance. Ray would have had a tough time having a chance. His brothers, by the way, John and Jerry, two brothers, also convicted multiple times as felons. The family [has] an unbroken career history in terms of their activity.
- 4.40 That's him at 14, over on the far left side, flunked first grade. And he said once, self-conscious about his appearance, he said to his mother, "Are you ashamed of me?" And she didn't answer this. He had been picked up already by this age at 14 for petty theft. And he was, as I said, with Earl. Now, in 1952, so this is a stage, he's 24, armed robbery of a taxi cab in Chicago, shot in the arm by police before he surrendered after a wild chase. This was his third adult arrest he had already had, and he spent 22 months in state prison for the crime.
- 4.41 He's arrested and convicted of mail fraud in Missouri and sentenced to a four-year term in Leavenworth. He pulls off dozens of successful robberies. So one of the things about Ray, interesting in terms of putting a story together, and I had to remind myself this constantly: he's a four-time loser, in terms of going to jail four times. So you'd think to yourself, "Four-time loser, what a clown." I don't mean to say it in such a disparaging way, but meaning, he could never pull off something like the assassination of the most respected civil rights leader in American history, because he's a loser in his criminal career.
- 4.42 You actually find out that he gets arrested four times in a 15-year career that includes dozens of robberies, so you continue to pull them off until you get caught. He pulls off those robberies. His luck turns bad in '59, arrested for several supermarket robberies, his fourth major offense. And this time, 32 years old, he gets sentenced to 20 years in prison. This is at Jeff City. This is a tough spot. This is as he looked when he went into Missouri State Penitentiary in 1960. He developed a reputation over the next couple of years as a merchant, dealing in drugs and other contraband.
- 4.43 He was also known as a hardcore racist inside the prison, but that did not make him stand out. I don't want you to think for one second that the white prisoners in Jeff City, in this tough prison, said, "Oh my God, he's a racist." They shared the same views that he did; he happened to be one of them, in terms of that. And he abused drugs. His drug of choice was amphetamine, so he was somebody that was using stimulants regularly, and then would deal with them a little bit on the side, worked in the prison hospital.

- 4.44 This is him six years later. He's made a couple of attempts to escape from prison. He hasn't gotten out of it, looking a little bit more haggard, a little bit more gaunt. He makes his second unsuccessful attempt to get out of prison that year. And then finally, in April of 1967, he breaks out in a bread van, hiding inside a container that would have had loaves of bread brought into the kitchen; he plans it very well, is able to get in there and gets out.
- 4.45 Now, the interesting thing is, where does he go? James Earl Ray, when he gets out of prison—and this is the part of Ray that I learned in researching this book that was critical—Ray had loyalty to no one but family, because the only people that were with him in those years in which he grew up were his brothers, John and Jerry. Jerry was more of the buffoon they thought of him as, but Jerry was a sharp guy. He got out of prison. He went to see his brothers. He went right away to see them, because they were the ones that would protect him.
- 4.46 And that becomes critical later on the King assassination, because a question has to be asked: Who would Ray protect? Who might he protect? Why would he sit in prison for all those years if he wasn't protecting family? But we'll come to that. He breaks out of prison, and then follows him. He gets in this bread truck, and he's on the run. In Canada, which he'd gone to once before, he knows how to move in Canada. He knows how to get a travel paper and get up there. It's not difficult. He's moved up before from Detroit. He takes the bus in. He has his own little way of getting around Montreal.
- 4.47 He travels down to Mexico, where he's dealing a little bit in cannabis and marijuana and weed, and that's paying the bills as he's going along. He ends up finally going to Los Angeles. He is in an area that's riddled with flophouses, and this is part of the most fascinating material of Ray. Here he is, literally months before Martin Luther King is assassinated, and he's in Los Angeles. And what do you think he's doing? You think that he's ordered a rifle and he's writing in a diary, "Martin Luther King must die," and he's reading books against King and everything else? He was a George Wallace supporter, but that doesn't mean that he's going to kill Martin Luther King.
- 4.48 No, he's doing none of that. This isn't like Sirhan Sirhan, who, years later, was writing in a book, "RFK must die, RFK must die." What's James Earl Ray doing? He's hanging out in Los Angeles. He's going to a bar, he gets into a fight once with somebody over politics with Wallace. He decides he's going to go and take dance lessons. Goes to the Arthur Murray dance school, pays money to take ballroom dancing. And then he says, "Maybe I'll be a bartender." He goes to an international school of bartending. He pays money to get his bartending license. That is a picture of him on his graduation day. That's why he has the bow tie on.
- 4.49 His eyes were actually closed. When they took the picture of Ray on that day, he closed his eyes, maybe in the hope—sometimes people close their eyes when you take a picture; we've all done it. Maybe it was just by accident, or maybe it was because he didn't want it to be used afterwards, if people were looking for him. The FBI sketch

artist recreated that by opening his eyes up. They weren't really open at the time of the bartending. And he gets his nose operated on because he didn't like the way his nose looked, with a plastic surgeon. Now, I don't think it was necessarily because he was planning to kill King and wanted to be disguised, because he didn't do much of a disguise. He still looked like himself afterwards.

4.50 But I will say that one of the things that raised the questions for me about Ray is that, how many—Oswald is building up to a crescendo of sorts. He tries to kill an army general. He wants to go to Cuba. He's disappointed in his own life. He's frustrated. Kennedy is a gift on a silver platter. Ray has escaped from prison. He's been on the road for a year. He's dealing in a little bit of weed in Mexico. He's up in Canada, where [he's] not doing much. I thought Oswald was a loner. Oswald is a social mixer compared to Ray. Ray is on the run, on the lam, and it's hard to know exactly what he's doing, which makes his story so difficult afterwards when he tells it. And he's out in Los Angeles in this critical period before King, doing things that do not look like that's somebody who's suddenly going to kill the civil rights leader.

4.51 What happens is, of course, something's taking place inside of Memphis. I'll tell you, the 1300 sanitation workers, most of them black, underpaid, in Memphis, had gone on strike in February of '68. At a late February demonstration, the cops in Memphis tear-gassed the crowd, said, "You're getting too rowdy," and Martin Luther King went down. That provoked an outcry. Martin Luther King said, "Enough. I'm going down." His own advisors didn't want King necessarily going to Memphis because they were trying to get him to focus on a major march on Washington that was going to be the following summer, to protest the Vietnam War and what was being done.

4.52 But Memphis was an issue. You know, we said before, you have to be excited and on passion about the nonfiction you're writing? This is right up Martin Luther King's alley, this strike and what's happening in terms of the city. So he's down there, and he becomes involved in that strike. This was when a group of young agitators started breaking windows, and the protests turned violent. That gave the governor the reason to send in 1400 National Guardsmen. King had to leave and planned to come back to Memphis.

4.53 Now, one thing that I learned in doing this project and this book, and I tried to explain it in the narrative to readers, I'm assuming that this book is going to be read by Europeans who don't know much about American history. It's going to be read by some Gen Z—hopefully read by some Gen Z, if Gen Z still reads—read by some Gen Z person down the road, who knows little about the civil rights movement.

4.54 What they don't know is that Martin Luther King, for all of the threats against him, and you could fill a room with the threats against him, of people that said, "I want to kill that no-good SOB. I want to kill that preacher. He's ruining America. He's a communist," that's what Hoover, the FBI, was trying to prove, he was also getting pushed from young black activists, like the Invaders in Memphis, who thought he was moving too

slow. So they said, this nonviolent approach is great, sitting down and getting arrested and getting pulled away, but you're not making anything better. The country is worse than ever before. You've got to take it to the man. You've got to be—

- 4.55 So the Black Panthers were coming up. Angela Davis. This was a period in which you heard from the street people who thought he wasn't just being criticized by whites who thought that he was pushing too far, too fast; he was being criticized by young blacks who thought he wasn't pushing aggressive enough. So it's a very dicey time for King when he comes in there. I don't mean his own physical safety. This was a man who knew that it was unsafe for him every time he was in public. We talked before about Kennedy, when we said, don't publish today as they did back then, a route of what the President—everybody knows where Martin Luther King is going to be.
- 4.56 You know where the march is taking place, down Main Street. You know he's going to be not in the back; he's going to be up front. And when the local police come to him as they did in Memphis, and they say, "By the way, we'll provide you a security detail," what does he say? He says what he always said, "No." He doesn't want to be surrounded by police. The idea of going through a city to demonstrate on behalf of a group that he thinks has been aggrieved and has been and then be surrounded by police, who just maybe a week before had used tear gas to disperse the crowd, was not his idea of doing the right thing. So, he put his life on the line constantly, knowing that there were any number of people out there that wanted him dead.
- 4.57 One of the things that happens is that he comes back to the Lorraine Motel, which is black-owned at the time, the area of the city that was a little run-down, but it's where King stayed constantly. They didn't have his first night he was there, the room, but he went upstairs to 308. That was his room, and that's where he stayed. What's happened before King returns here in April of '68 to Memphis? James Earl Ray—the guy who was taking dancing lessons to learn to do ballroom dancing, who's got a bartender license, who's done some plastic surgery—has suddenly come alive in terms of the potential of an assassination. He is now following King to some cities. He's moving along with Atlanta.
- 4.58 There's a map found later where he knows where King is, the Southern Leadership Conference, where King's home was. He buys a gun only a little before a week before the assassination. He goes to Memphis only a couple of days beforehand. This has all of the appearance of somebody who has suddenly been activated to kill somebody, as opposed to somebody who grew up with the idea of political assassination. Now, the question is, before you get to the assassination itself, what is it that could have motivated this 40-year-old man, Ray, to go ahead and kill a civil rights leader?
- 4.59 First of all, if you study assassinations at all, or political terrorism, or suicide bombers, not always, but often they're in their 20s. It's the age at which they think they can achieve something, and they don't worry. Ray is very old for an assassin, at 40. People don't normally start—and remember, although he's a career criminal, not violent

crimes. He's not going in and committing those crimes where you would say, "This is a guy who was killing people regularly. I understand how he moved over to this."

- 4.60 But what happened is, there were several bounties out on Martin Luther King's life, and one of them came through a guy connected to the local gang Mafia, inside Jeff City, the prison that Ray was at. It was a \$50,000 bounty by a racist lawyer out of St. Louis. That bounty was around before Ray escaped, but he really didn't hear about it. He escaped. His brothers, one of them opens a bar, and that bar becomes a hangout for these guys who are offering the bounty. That brother John and Jerry talked about it, and they meet with James Earl Ray, Jerry does, in Louisiana, in December of 1967, just about the time that Ray starts to change his focus.
- 4.61 The question is whether that bounty of \$50,000 was enough to activate James Earl Ray. Now, \$50,000 seems an inconsequential amount of money for the death of a civil rights leader. But for the Rays, that was hitting mega-lottery. They had never had any offer like that or any money like that. So, assume for a second, work with me, that the money is one of the things that Ray is thinking about cashing in on, but there's more than that that comes.
- 4.62 The assassination takes place. King was killed on that step, everybody pointing up toward the rear of a flophouse that's 80 yards away. One of the things that is most frustrating about this case, in writing about it and presenting it in terms of a book, was that there's a firehouse down the street from where the flophouse was, across the street from where the rooming house was. It was crammed with Memphis police, military intelligence, FBI. You had all types of people down there. Fantastic.
- 4.63 What were they doing? Were they protecting King? Oh, no, no. They were spying on him. They weren't actually providing any security for him. They were doing extra surveillance. It's what they do on Martin Luther King, everywhere he went. So they were down the street. There were cop cars parked in front, and they were there, but not to do anything about saving King. Within minutes of the shooting, police had been sent over to this boarding house here, the back of this. By the way, the shot used, .30-06 Springfield. Soft-tip bullet, hit King in the jaw area, absolutely devastating shot.
- 4.64 That building, with a little circle on it, that flophouse, had a retaining wall with a slope overgrown with weeds. In that building, James Earl Ray had shown up three hours earlier and rented a room. It was itinerant rooms, rented by the hour. He rented a room that he took inside there, where he was able to set up and take his rifle in. Trisha and I, when we were doing our work, went back to that house. It's still there. It's now a private residence. A couple of young kids lived in it. We knocked on the door, and we said, "We're doing work on the assassination of Martin Luther King. You mind if we come in?" And they were sort of like, "You got to be kidding." We said, "No," and they let us in. The bathroom has been changed, but we were still able to get a fairly good idea of what it looked like back at the time.

- 4.65 This is a graphic of the assassination. All this is is the shot 207 feet away from the flophouse to where Dr. King is standing. One of the things that's, to me, interesting about this particular thing: when you look at Dr. King, he was on the balcony, he's talking to Jesse Jackson, who's down in the lot, he's talking to others, he's surrounded. Ralph Abernathy is there. Reverend Kyles is there. They're taking a break and enjoying their time. The assassin didn't take the shot right away. The assassin waited a while to be able to make sure that Dr. King was there, staying in the front of that balcony and not moving around.
- 4.66 What did the police find inside? Inside the room that Ray rented, where his fingerprints are, the scene of the assassination, there's a dresser there with a mirror. You can see that dresser and mirror had actually been closer to where the chair is. Ray moved that aside, put a chair there, and with a pair of binoculars he had bought at a sporting goods store when he ended up getting the gun as well, you look out that window with a pair of binoculars, and you can keep an eye on the Lorraine Motel. He knows when Dr. King comes out onto the motel and when he's on the balcony.
- 4.67 Then what does Ray do? He goes inside the bathroom. There's a shared bathroom, and has to step into the tub to be able to look through the window to take the one shot at King. Now, he comes out the front of the flophouse, and he's going for his Mustang, which is his prized possession, this white Ford Mustang. And what does he see to his left when he starts to go to the Mustang? He sees police cars parked at the firehouse down the road. He doesn't know that they're there for surveillance on King. He thinks that they're there possibly as guarding King.
- 4.68 So he has to make an immediate decision: Does he go to the car with the rifle, or does he get rid of the rifle? And he tosses the rifle to the side. That becomes the way the FBI, 15 days later, is able to finally identify him. And what happens with Ray? They identify him from fingerprints. They release a wanted poster for him 15 days after the assassination. They don't have his name initially. He's up in Toronto, where he had been before. He had gone up there after he had escaped from prison the first time.
- 4.69 He applied for a birth certificate of a local Toronto man. Two different names, these guys, Paul Bridgman and Ramon Sneyd. The system was so easy to pick somebody out of a telephone book and apply for a passport at that time that Canada changed its passport rules after the— excuse me, Canada changed its passport rules after the assassination because of how Ray had been able to misuse the system and get the passport. And what did he want to do? It's an interesting part of it.
- 4.70 Ray got a Canadian passport. He's got it issued to him. He's laying low inside of Toronto. He's moving around. He gets in the name of Ramon Sneyd. He walks into a travel agent in the city and says, "I want a ticket to South Africa," white-run South Africa, because he knows that if he arrives there, he may be lauded as a hero. Maybe he has the delusion that Oswald had, that when he arrives back in Dallas, he'll be greeted as a

hero. Maybe he thinks he'll be greeted as a hero there, and he doesn't have the money for that ticket.

4.71 So then he says, "I'll go to Rhodesia instead." Figures that white-run Rhodesia, that'll be just as good. He doesn't have the money for a ticket for that. So he says, "So where can I fly with this money to an English-speaking country that's far away from here?" And it's England. He can fly to London. So he takes a trip to London, where he then tries several times to get back to Rhodesia, once even going to Portugal to get on a merchant ship to get to Rhodesia, and he can't get on it. He knows a safe haven for him means getting into a white-run area.

4.72 Near the end of the time in London, before he's finally arrested at Heathrow Airport, it turns out that he robs a jewelry store, a local jewelry store, because he's running out of money. Now, the reason all of this is important is the following. If it's a bounty that encourages Ray to go out and to kill King, he certainly had not received any of it by the time he left the country. Because if he had, he was only a couple of hundred dollars short of getting to where he wanted to be. He wouldn't have been robbing a jewelry store inside of London.

4.73 One of the great failures of this case, one of the most frustrating parts of recreating it from the ground up, is that the FBI responsible for the investigation, no one knew in 1968 how horrendous the FBI had been toward King. Nobody knew about the secret MURKIN files and surveillance files on King. So they allowed the FBI to be the investigatory body. Once Ray turned up and was hit as the man who had killed King and then pleaded guilty, which we'll see in a second, J. Edgar Hoover closed the books.

4.74 That was the end of it. Nobody followed the brothers. Nobody looked to see if there was any cash that they were spending. Nobody looked for the money trail. It wasn't until 1978 that the House Select Committee looked for some of that, and it was already too cold by then. The opportunity to have cracked this case, to have found out what was really happening, was back in 1968 and 1969. But we now know that the investigators were flawed.

4.75 Not that there weren't some FBI agents who went ahead and did their thing, but the FBI could legitimately be considered a suspect in the case, because even if Hoover didn't give the order to kill King, you could think that it's a situation like Macbeth, in which some people around Hoover say, "Hey, maybe the director would like it if we knocked off that no-good preacher," and they went ahead and did it on their own. That's a legitimate possibility, given how much hatred there was toward King. So once you have that, the FBI should have been recused and out of the picture, but they weren't, so it cast a pall over all the rest of the investigations.

4.76 I like it when there's a court record. Of course, I do, because it gives me more documents to look at, and I get sworn statements and everything else. But with the case of James Earl Ray, this book makes you pull your hair out. What I mean by that is,

former mayor of Birmingham, Arthur Hanes Sr., and his son were his first attorneys; they're big, prominent Southern attorneys. Ray ends up signing a book deal with the fellow there with the bald head, William Bradford Huie. He says, "I'll give you my story, William Bradford Huie, exclusively about everything that has happened."

- 4.77 But there was a law, as there is today, they wouldn't allow William Bradford Huie to go into the prison to interview Ray, and you couldn't necessarily go ahead and profit from a book. So instead, the writer said, "I'll provide the defense team their money, and you can send me in writing what happened." And Ray wrote long letters to him. They're called the 20,000 Words, because that's how many words there are. It's like a small book. Wrote 20,000 words to William Bradford Huie. It's fantastic to see.
- 4.78 You can believe what you want to believe in it, but it's a great story. In there, he tells the story of Raoul, this mystery man who directed him in everything. This is, though, after he's recanted his guilty plea. So he pleads guilty. They take the death penalty off the case for him, so it can't be, and three days later, he says, "Just kidding. I didn't really mean it. I wasn't really guilty. I'm not guilty." And then, not just says, "I'm not guilty," but then spins this amazing story about Raoul.
- 4.79 Now, because Ray was alone so often, you're based on what he's telling you happened. What did that mean? It meant that what we had to do, that hadn't even been done by some of the select committee, we ended up going back to the Canadians. We ended up going back to Canadian intelligence, the Mexican authorities, those that 30 years later, were willing to provide files on what he was doing at the time he was there, to see if they were monitoring him with one person or two people, whether he was with a group, whether there was a gang; were there people who knew Ray? You're trying to reconstruct that letter.
- 4.80 In 1969, when Ray fired the Haneses, because his trial was just about to start, and he got rid of them and said, "I'm not guilty," I don't know if you know his lawyer, J. B. Stoner. J. B. Stoner was one of the great racists of our time, [with] a law degree, and he became Ray's attorney and loved doing it because Ray was viewed as a true believer. Three days after his guilty plea, Ray wrote the trial judge, recanted it, and it really started a series of what I call Herculean efforts by a series of defense attorneys over the years to absolve Ray of any responsibility.
- 4.81 As an attorney, I will tell you, they really believed in the case. They did not take the case for money. They didn't take it for fame. They took it because they really believed that he was innocent. They were going to prove it, and they worked hard on him. William Pepper, probably the best of the attorneys who represented him, was his last attorney.
- 4.82 It's William Pepper who writes a book, *Orders to Kill*, that ends up convincing Dexter King that there's a massive plot in the case. That's because he has listened to an account where he believes that military intelligence, which I told you before was at that firehouse spying on Dr. King, they were doing more than that; that a Special Forces

team of assassins had been dispatched and had followed Dr. King to different cities. They named the cities. They say this was a team that was out to kill him. The federal government had decided to eliminate him. It is told in detail.

- 4.83 ABC ended up doing a program based on it, in which two individuals were named from that Special Forces unit. One of them ended up suing for \$15 million. That suit was settled out of court. It also was done as an HBO Thames Television special. The key was that I had to take that Special Forces information that Dr. Pepper has and then go ahead and see if I can place those units in those cities on those days.
- 4.84 Because here's how I view it: if you're given factual information, you can either confirm it. Now, if I confirm it, that doesn't mean they killed King, but it means that you're one step closer that they might be involved in something. The part of that I thought that was the most interesting, and in some ways, the most distressing, was that it turned out in the end that they weren't in one of the cities, in one of the states, that Dr. Pepper had said that they were in. There's no instance in which this supposed Special Forces team—forget the fact whether they were assassins or not—was following Dr. King on a date that he appeared in a city. So, factually, that was one of the big stories in Killing the Dream.
- 4.85 When the book came out, nobody had looked into it to actually answer it in terms of facts. Does it sustain itself or not? I thought that was one of the major discoveries, but there's something else. There's a final report from the House Select Committee. I used a lot of that, but the Raoul myth, how to kill a phantom, let me tell you: if you're writing a nonfiction book, and somebody has an alibi, and they say, "My alibi is this," you can't dismiss it. You have to take it more seriously than anyone else, because if he's right, if he's being manipulated, if there's somebody putting him in that position, the entire—so you can't just sneer at it and think it's nothing.
- 4.86 So Ray's claimed that this character, this shady character, followed him over the years. He even said that it was Raoul who brought him the gun. It was Raoul who stayed in the room where I showed you before the furniture that had been moved, while Ray left to go and get some beer. And then when he was coming back, he couldn't get back to the house because something had happened. He didn't know what it was, the assassination, and there were police everywhere. So he had to turn around and he just started to drive away from Memphis. It was Raoul who did all of that.
- 4.87 Now, how do you investigate a ghost? It's almost impossible to do, except we had—and I say we, Trisha and me, had one great breakthrough. James Earl Ray was very, very smart on this. He never picked anyone out of a lineup as Raoul. People showed him over the years—his defense attorneys, investigators, House Select Committee, FBI, and others—would show him pictures of people they thought might be the mysterious Raoul. It didn't have to be somebody, by the way, who was Hispanic. That was the name that he used for him, but they showed him all types of pictures. He would always say, "No, no," never pick anybody.

- 4.88 Near the end of his life, when he was sick, Dexter King had already come in and said, "I think you're innocent." He made what I call a fatal mistake for his alibi. He picked somebody out of a group of pictures, for the fact of this television documentary that was being done. He said, "That's the guy." Now, there was a face to go on. And that was the face. I wish that I had AI to be able to do a reverse image check on an image and maybe come up with 100 images of somebody's Facebook account or whatever else to know who they were. We had to do it the old-fashioned way, which was to go back, find the source of the original picture given to him, where it came from, how it came up from an immigration file, track it out, see if we could find the person, and what did we end up doing?
- 4.89 We ended up finding a man, Portuguese American, who lives in New York and worked for IBM. That was him. We then went and said to him, "You've been identified by James Earl Ray as the man who was behind the assassination." He was, like, "Say what?" He got a lawyer in a very quick time. We said to that lawyer, "We'd like to sit down with your client." She allowed us to do that, with the agreement that we not use his real name in the book. It came out later. Everything that he told us—he worked at IBM—we then went outside of and spent two months trying to confirm.
- 4.90 Was he in Montreal, when Ray said he was dealing in Montreal? Had he traveled to Mexico during any of this time? Was he in Los Angeles for two weeks when he was supposed to be? Did he take time off his IBM job? Thank goodness, he had a job where you could actually check the records and see sick days and everything else. If this was a freelance worker, we'd never solve the Raoul mystery. So the key was that, in the end, it was possible to show that the person that Ray picked out as Raoul wasn't physically in any of the areas where he could have been to have led Ray in the conspiracy.
- 4.91 When we went back to Ray—not personally because he wouldn't talk to us, through other people, intermediaries—his answer was, "I must have picked out the wrong person." Ray was never going to get pinned down to one particular thing after a couple of months. But the Raoul story, I think, was at the heart of this in some ways. Now, for those of you who follow the case, you may remember that, in 1999, there was a trial, Primetime Live had it. There was a man, Loyd Jowers, that's him, who said, "Forget Ray, forget Raoul, I killed King. I was given the rifle, and I made the shot from the back of my grill," and he was there that day.
- 4.92 So now you have something very interesting. You have somebody who isn't putting himself in the story, and it turns out he's not there. He's really there. And he's confessing to the murder of a civil rights icon. And the question is: Why would you possibly do that if it wasn't true? The King family and Dexter King thought that he was telling the truth and that the focus had been put on Ray inappropriately for all these years. They had a civil trial.
- 4.93 They tried to get the Memphis district attorney and the State Attorney General to give Loyd Jowers immunity from prosecution. The King family said, "We want to know the

truth so much, give him immunity from prosecution." Other people said, "If you give him immunity from prosecution, he can say whatever he wants, and he can sell a million-dollar book, and you'll be no closer to the truth. Don't give him immunity from prosecution." Then the King family asked for him to be indicted. "If he gets indicted, we'll have a criminal trial, and at least we'll have it all out at the trial." I would have liked to have seen that as well.

- 4.94** Instead, they couldn't get an indictment from him. Normally, the saying in the legal world is, "A prosecutor can get a ham sandwich indicted by a grand jury." You present the evidence, no one's on the other side. But in this case, they couldn't get an indictment for Jowers. And so, finally, they had a civil trial, and in that civil trial, there was no defense present on the other side. They presented the case, Dr. Pepper did in this trial for television, that Loyd Jowers had, in fact, killed Dr. King. And the jury said, "We believe you. We have a finding that Loyd Jowers did it."
- 4.95** Now, what happens? Remember I told you before that I got involved and was able to see what the district attorney was doing inside of Memphis? They end up talking to his key witness, Betty Spates, who's the person who says, "Yeah, I know he did all of this." And then she ends up finally admitting to them privately, "Well, it's because we were offered, we thought, \$300,000, and we might be able to cash in on \$300,000. Lloyd said to me, 'If you stick to this story, we'll be able to do something with it.'"
- 4.96** You think the story is true? No, I don't. What was interesting about it is that I ended up finishing the Loyd Jowers story, Betty Spates, and what happened in terms of the money. And the people that I was angriest at were those people like the defense council and the people like Jowers who came forward afterwards—these are chapters inside the book—to convince the King family that there was a grand, grand, grand conspiracy.
- 4.97** Something very important in this: if I think Ray's the shooter, it doesn't mean I don't think there's a conspiracy. I have to ask myself, what's the conspiracy? Who is it that he's protecting? I know it could be family, but I always have to be very careful saying that, because they were never charged for the assassination. But I've had my suspicions about them for a long time. He would do the time for them and not many others or almost nobody else.
- 4.98** But I think that one thing people get confused with is they assume that if a group of people wants somebody dead, the person who carries out the assassination has to be working for them. So, who wanted Dr. King dead? FBI? Military intelligence? Possibly. Lyndon Johnson didn't like him. White Southerners, the John Birch Society, KKK. I can give you a list. People who wanted to cash in on a bounty? A long list.
- 4.99** So the question then becomes, you think that because those groups had a willingness, they would have pinned a medal on James Earl Ray, they would have patted him on the back, that Ray must be their man for the assassination. But it's not necessarily so. I

understand how the King family, knowing and learning everything they did after the mid '70s, when we learn the extent of the FBI's illegal surveillance and how they tried to destroy Dr. King, believe that it has to be a government-inspired plot. But the evidence is weaker than their belief is on that.

- 4.100** When *Killing the Dream* came out—what makes a book get attention? Reviews are one thing, but I will tell you that there were reviewers and historians who welcomed a fact-driven analysis of what happened, but there were also people sorely disappointed in it. The King family, sorely disappointed that I had not been able to make the case that they thought was the real truth in it. They didn't change their minds. They didn't suddenly say, "Oh, we read Posner's book. That's fantastic. We now think it was Ray without the military." They continued to believe that it was still a much larger plot and that I had somehow missed the story.
- 4.101** James Earl Ray's brother, Jerry, showed up at a Memphis bookstore where I was, and we had to call the police, so it got dicey at times. And they thought that history was turning on their side, so they didn't like this book. The backlash is that you tell a story that people don't necessarily want to hear. You go back to the evidence. You write your conclusion with humility, not swagger. I assure you, if you read *Killing the Dream*, there's no swagger or boast in there at all. It's not a good ending. You accept sometimes that a truthful narrative will satisfy almost no one emotionally.
- 4.102** That review in *The New York Times*, which you can look up called "Beyond a Shadow of a Doubt," is a pretty damning story about Ray and a time when I was discussing it. In the end, the things I learned from this, if I'm thinking in terms of books, is that I try to find out subjects where the evidence is rich, not just the emotion of it. What I mean by that is that the subject was emotionally charged. The easier option would have been to stay away, but instead I thought, OK, maybe I can make a little bit of sense out of it.
- 4.103** Architect your research universe. You've got 50,000 pages of documents in every location. You're going to have to get through it some way, and if you don't start to do a list of who you want to interview and what you want to see, you'll never do it.
- 4.104** I treated the conspiracy theories as reporting problems. What I mean by that is, you present a theory to me that there was a grander conspiracy. That's a reporting problem for me. Either I can confirm it, if I can find the information to support it, or I don't find the information to support it, and I'll report that as well. And that's how you treat them, one by one.
- 4.105** You let the evidence lead you, even when it costs you. I think that there was an enormous audience in 1998 on the 30th anniversary that would have made *Killing the Dream* a much bigger commercial success if I had said, "I'm convinced that this military group of Special Forces killed him." It would have been a much bigger seller. I'm not writing books to cut my income, but I'm writing books that I think are right. You can

argue with me about it. You can say, "No, I don't like that evidence, or what about this conclusion?" But that's the nature of doing this type of business.

- 4.106** Be fair to people you believe are wrong or even dishonest. I must tell you that, in the end, I try to bend over backwards to be fair to those people. So I may think that there are some charlatans who have latched on to the story, to the detriment of the King family, but I never have any question at all about the absolute honesty and integrity of the King family. They suffered the greatest loss. They lost Martin Luther King at 39 years of age. The country suffered a loss.
- 4.107** With all that we've learned about how Dr. King was an enemy of the state, I understand how they believe the state might have killed him. It's just that in this book, *Killing the Dream*, my conclusion is that Ray's the trigger man. I know that's unsatisfying for a lot of people, but history is often unsatisfying. What we said before about nonfiction, there's a point at which you sometimes wish this was a novel, but it's not. Thank you very much. Questions, of how I've confused everybody?
- 4.108** Did you ever see the video of Reverend Kyles talking about the assassination?
- 4.109** Absolutely. As a matter of fact, Reverend Kyles came in for a lot of criticism over time because people thought that he had sold the movement out in some ways. It's this interesting split because Reverend Kyles, at the forefront with Martin Luther King so many times, you have to think to yourself, and he became quite a controversial figure in later years than that. One of the things is, besides even Reverend Kyles talking about the assassination, one of the first people who was in Martin Luther King's entourage, who reached him when he went down, turns out to be an informant for the federal government. Didn't know that at the time; you learn that later.
- 4.110** Now, you don't think that rings every bell for everybody, that you have the federal government spying on King, and they hate King, and the first person who reaches him when he's actually shot is an informant for the federal government? So I get why. I understand completely why people think there's a much larger conspiracy in this. And that's why it's much harder to tell this story, which I view as more streamlined, because people are initially skeptical of it. They think you must be missing something bigger.
- 4.111** Did you see that interview that his son gave?
- 4.112** I did see that.
- 4.113** Yeah, that he said that he was part of the conspiracy.
- 4.114** I must tell you that the families, I never found—that doesn't mean it didn't exist—I never found any evidence that Reverend Kyles was part of a plot to kill Dr. King. Was he viewed as a more—I'm sure the federal government viewed him as one of those people that wasn't willing to burn the town down. He wasn't going to be a radical. He wasn't going to join the Invaders or anybody else. He was always going to preach tolerance and moderation. So they liked Reverend Kyles and that relationship they had with him.

But I've often thought a man who gives decades of his life to the cause and did a lot of good and had a reputation that he served, then later gets accused by his own son of having been involved in the plot to kill Dr. King, it doesn't get any worse than that.

- 4.115** So, what do you think about the tell-all book that Reverend Abernathy made of Dr. King?
- 4.116** A lot of people would have hoped, and those people I talked to who were historians back in the time, who were involved in it, that Ralph Abernathy would have been able to pick up the mantle and lead it forward. What's so frustrating in part about Dr. King's assassination is that those people who wanted him dead—most of the time you take the leader out of a movement, and somebody else steps up, and nobody did. And that's the part.
- 4.117** And it wasn't that they gambled correctly. They didn't say, "Oh, Ralph Abernathy won't be able to do it." But he tried. Jesse Jackson tried. There were people who put themselves at it. They worked hard. There was no lack of effort. But nobody had that match of charisma and magic that Dr. King had. When you think he's 39 years old, there's no saying what he would have gone on to achieve. It's part of the frustration of it. You get sometimes frustrated on an assassination like this because it's such a waste.
- 4.118** But there's also, when I went through the FBI files, one of the things that's in there are the list of threats that came in to FBI offices, police. It's astonishing how many threats. Now, some of them, I'm sure, were just somebody popping off. But there were some people out there that really wanted him dead. When you read that, you think to yourself: it's amazing that somebody hadn't tried to kill him before.

Lecture 5: Building Narrative from Evidence

At a glance — Building narrative from evidence.

- 5.1 Good morning. You switched seats, added somebody new, just to make sure that if I claim I'm a journalist, an investigative journalist, I'm actually paying attention. Although I could ask you the same thing: Is this the same suit as yesterday, or a different suit? It looks similar, but you're not sure.
- 5.2 I think because of the fact that— and we talked about this a little bit yesterday— sometimes when you're creating a nonfiction work, you're doing reporting in places where part of the story is the place that you're in. So I've tried to make myself be attuned to all of those details, to remember them as well as possible, because sometimes, oftentimes, you can't go in. I'm talking to somebody off the record. They don't want to talk on the record. If they don't want to talk on the record, they usually don't want a tape recorder on. They don't want a tape recorder on, they don't want pictures. They certainly don't want me there with a phone, taking a video of what the scene is like.
- 5.3 So when I recreate it, and we have this sometimes on books we'll talk about later in this series, what is around you, those details are important, because I want to be able to convey them, to set the scene for readers. You want to do that in your nonfiction, but at the same time, you want it to be absolutely accurate, so that nobody comes back to you and says, "You overplayed that. It wasn't quite like that. It wasn't." So, it's that process of always trying to be the witness to what you're seeing around you, and that's part of what I'm doing.
- 5.4 Also, before starting on *Motown*, this story of a book that you know was delayed a little bit because Martin Luther King and the King assassination came in before it, I wanted to talk about two things Trisha reminded me afterwards when I left yesterday, in the Martin Luther King, the last lecture talked about the fact that I found this person who James Earl Ray said had been Raoul, and he had identified him, he picked him out of a lineup. And did the interview, did the facts, took the month of time to interview him, meet with him, his wife at that time, and then confirm that he really wasn't Raoul.
- 5.5 And Trish said to me when we left, and she was right, sometimes I focus so much on just the facts—I have a Substack called Just the Facts, and I think that that's important — but I forget, and she's very good at reminding me, about the human quality of it. That man was devastated by the fact that he had been named as the person who was responsible for assassinating Martin Luther King. He was in tears by the end of our interview. He was emotionally distraught.
- 5.6 Now, that doesn't mean that his story is accurate or not accurate as a result of his emotional response. There are people that can tell you a story and put on a show. But the impact of that, when we eventually confirmed that he was not that person, to see

that effect on him, you can't be a reporter, you can't be a writer, you can't be doing a nonfiction book, and not be affected by that to some way. So that has an impact on you as well.

- 5.7** And there was one other thing. We're talking about writing nonfiction bestsellers. And a bit of what we said yesterday was that it should be so easy to figure out what's going to be a bestseller down the road. You don't know. So you're taking the gamble of your time. You're paying your bills by hopefully on something that the public will be interested in, but you don't know, because you're writing a book that is two, three, or four years away. Sometimes, in the case of *God's Bankers*, a book on the Vatican, on and off for nine years. So you have no idea who's even going to be Pope, much less what the facts are going to be like.
- 5.8** But in addition, your publisher is taking that. And even if you're self-publishing, you're taking that gamble yourself. What you don't know is what's happening in the rest of the world, when your book finally comes alive, and it's publication day. And that can work for you or against you, and you have no control over it. After 40 years of writing and 15 books between the two of us, we've come to understand that we can't control everything. We can't control the weather. We can't control what's happening in the world.
- 5.9** You all know the way that the news media is increasingly today—ever since the Gulf War in 1990, more and more, one story comes out, and that sort of dominates the news. Everybody's talking about the same thing. And if that's on the news radar, and you have a book about that, it's fantastic for you because your book will get more coverage. So when the book on Martin Luther King, the assassination of Dr. King, was published, James Earl Ray had died just a few weeks before publication.
- 5.10** Now, I wouldn't know that. The book had been planned for all that time for the 30th anniversary. That put Ray and the King assassination back onto the news media, because everyone was talking about James Earl Ray. As a result, that book received more coverage news-wise than we ever could have gotten if the story had just been an anniversary story of an assassination.
- 5.11** At the same time, I'll talk to you about it later, the book that I do on the pharmaceutical industry, on Big Pharma, which was years in the making, was published to what was supposed to be a great news story in March of 2020, about a week and a half before the nation's bookstores closed down for COVID, so not the best time to publish a book.
- 5.12** I know a colleague of mine who did a book on the Supreme Court, Jeff Toobin, published on September 10th, 2001. The next day was 9/11. Nobody ever heard of that book. But I also know a writer, Daniel Yergin, who did a history of oil called *The Prize*, sort of a long history of the oil industry, and he was about two years late turning that book into his publisher. They weren't very happy, but when they published, it was the first Gulf War, and everybody was talking about oil, and that book became a bestseller.

- 5.13** So the part of it that you have no control over, no matter how well you plan, think it out, plan the PR campaign, ready to do interviews, hoping that somebody will have an interest, is, if you're writing about current events, you're writing nonfiction, if that story that you're writing about happens to be in the news cycle, then you should just count your blessings and get as much news as you can for a while.
- 5.14** Motown. This was a book that I proposed to my publisher and said, essentially, what I want to do on this book, what I'm hoping to be able to do with Motown, is talk about the business of Motown. Motown had been done. Those are the two different covers, by the way. If you're doing a self-published book, you're doing it, you're going to work on your own cover. If you're doing a book for a publisher, you end up doing it, and they have people inside the publishing house that end up doing the covers.
- 5.15** The cover on the right with the glitter suit in the background and holding the ring, that was the hard cover. The book on the left, the cover was the paperback, and you could probably tell that was the paperback. If you could see, there's a pull quote there from a New York Times review, so they were able to put that on the paperback. One of the things that I wanted on this was that it seemed to me that, two things.
- 5.16** First of all, look at the subtitle: Music, Money, Sex, and Power. It sounds like throwaways, but let me tell you something. For the lawyers, inside the publishing house, those become themes you're talking about and also worries for them. So they say, OK, you're talking about music, money, sex, and power. So what exactly do you mean by each of that? Nonfiction, those subtitles can sometimes replace an outline that you have for your own book. Those are the themes I'm following.
- 5.17** So this lecture is not about, and this book is not about, celebrating Motown as nostalgia, because it is the most iconic and fabulous record label. And we're going to talk about the cast of characters that are unparalleled, and what Berry Gordy, who created Motown, created as a visionary on this. But this is—people know the music, they know the stars. What they don't know necessarily is the story behind it. They don't know the business aspect.
- 5.18** So I made it very, very clear, and I say this in the beginning of this book, I don't have a great musical ear. I know what I like. I love Motown music. But at the same time, I'm writing this as an investigative reporter to come in, because I really believe that the story for me was in the conflict behind the scenes, what I call the contracts, the control structures, the lawsuits, the financial engineering. So I wanted to take readers from the front of the stage, where you see the acts and know what's happening, behind the stage, if that's possible, and be able to show you what was taking place in Motown at a different level.
- 5.19** If I was going to write about the money part of it, or the sex part of it, or the power part of it, it had to relate to a core issue that affected the label. So I'm not writing, as we talked about yesterday, for the front page of the National Enquirer or the Daily Mail in

London. I'm not writing for tabloids. There are plenty of those stories inside Motown. What I'm writing for is trying to show how relationships affected what became—and this is key—the rise, and then eventually, it's almost like a Greek tragedy, and the fall of this amazing label. Not a fall in terms that the music was tarnished, but the fall of an empire that Berry had built and how it comes apart at its very peak.

5.20 So it's not a music history lecture. It's a template, and I hope that's what I'm going to be able to provide you here, for commercially successful investigative nonfiction about living institutions. And let me tell you, Motown is a living institution. How it's built is more important in some ways if you're thinking about writing a successful book than what it reveals—and this is the key. You could talk to people on the street. I could go around in the early '90s when I was doing this book with Trisha. We would talk. People knew the songs. They knew the artists. They didn't know what was happening in the business part of it. So that's what I wanted to write.

5.21 Now, here's one of the difficulties about doing this. People have a familiarity about Motown. You think you know it, and the familiarity lowers the resistance to the story. What I mean by that is, you come in comfortable as a reader; you're nostalgic even because you think of your favorite songs and everything else. Then I'm going to talk to you a little bit about what's happening in terms of the contracts and things like cross-collateralization and royalties to artists. That has to come in in a way that it doesn't challenge your view of Motown because it doesn't change it, but it gives you a different perspective of it.

5.22 And so, as a nonfiction writer, one of the things that I had to do with this is try to get that power structure that existed in this company, that was really a singular company created by one person, and the cast of characters you can't replace, and present it in a way that had impact as a story, that you said, "That's a story I want to read." And I knew something critically important on this. I'm not a music critic. That's not my area. I'm coming into this book, having written books about two American political assassinations, a book about Ross Perot, a book about a Nazi war criminal and Chinese triads.

5.23 Who's going to review this book? Now, I always say to you, don't think down the road and overthink the process of what you want to write, but I am thinking that eventually this book gets published, the reviewers for it are going to be The New York Times and Washington Post and LA Times music critics. They're going to go to their music critics and say, "Hey, you've covered Motown for 20 years. You know all these people he's writing about. Review this book and see if it's any good."

5.24 And they are going to be merciless on me if I mess up anything on the music. So that, I knew, was always the key. I wanted them to be able to leave and read this book and say, "You know what? It's not about the music. It's about the stars and what was created, but I learned something from it." If they can say that, that's fantastic.

- 5.25 Now, first thing we learn, after trying and trying and trying, which is, Berry Gordy is not going to talk to us. It's not surprising. So I go to Berry Gordy and I say, in so many words, "I'm the biographer of Lee Harvey Oswald and James Earl Ray and Joseph Mengele. Would you like to talk to me?" No wonder he said no. It was a bad lead-in because he thinks to himself, "How could it be possible that this fellow who's writing investigative books is going to write something good?" But the book that comes out on Berry is pretty good in the end.
- 5.26 So, I couldn't get Berry. And then all of the stars— and I mean by that not all of them, but many of them, including from Smokey Robinson to Stevie Wonder, to the Jacksons, to Diana Ross—had written their own books. They had their own books out. And those books often talked about their struggles at times with addiction. Some of them had alcohol problems; they had gone on. But they never talked about the business of Motown. They never wrote badly about Berry. And even in the position and the times in which they had had difficulties in the company, by the time they wrote their books later, it was sort of a nostalgic view back at their career, and so they had a kinder view of it.
- 5.27 I don't know if you've had this happen in your own life. You have some crisis, something terrible happens. You think you'll never get over it. And then as you get further away from it, it doesn't seem quite as terrible. It's not to say that it doesn't go away, but it seems a little less bad. And so, those books, I knew, were what I call PR versions of the Motown story from them. They told the better story. How could I get a more realistic story?
- 5.28 A lot of people ended up talking to us off the record. Probably more people off the record for this book than almost any other book because they were afraid. They gave us the information; they told us where to find it, but they were afraid that if their name was attributed to it, they were still at some point, even if it was later in their career, where they could get hurt in the industry. So we respected that. It was never more important to be able to say off the record really means off the record.
- 5.29 So, what did Trisha and I do to start? Documents before drama. I love this place. This was a great brainchild, if I can say so myself, sorry, which was—that's the Wayne County Courthouse in Detroit, and we lived in that basement for a while. The records are no longer there. They've all been transferred out. They're digitized. They're at remote sites. But back then, oh my God, I should have had pictures of it. It needed some redo. It actually had dangling naked bulbs at times in the wall. There was cracks along the area. There were boxes of documents and reams of material. They were so helpful in there.
- 5.30 And here's what was in the Wayne County Courthouse records file. It was all of the lawsuits and litigation by Motown artists, producers, and songwriters against the company, when they said, "Oh, by the way, I didn't get the royalties I was supposed to get," or "But that contract, what do you mean about this?" Those lawsuits included

depositions, sworn statements at the time. And when you got into those files, Holland-Dozier-Holland, one of the greatest songwriting teams of all times, legendary, and they are still friends with Berry. But when they sued Motown, the files show something quite different.

- 5.31** Those files revealed for us the part of Motown's business practices when it was at its most fractured, and they're all different. They were a wealth of information, so that we were then able to go back, after months of going through those, to people who would say, "Oh, it was always fantastic. I never worried about anything." I would say, "Well, back in 1979, you said X, Y, and Z." "Oh, yeah." So, that was fantastic. Without those files, we would have been in problem.
- 5.32** So, they are not a backup. I mean, literally, I'm telling you that there were dozens of filing cabinets inside where depositions, contracts, internal memos—these exhibits allowed me to reconstruct with confidence, and that's the key, because you know I'm always worried about that, dialogue at times, motivations. There would be direct back-and-forth about what was said, the financial stakes.
- 5.33** These documents weren't a backup. They were a primary source, because I'm getting contemporaneous documents often with sworn testimony about what was taking place. It's the only place. Courts are often the only spot where institutions tell the truth, and the institutions were there. No reporter, no nonfiction writer, had decided to approach the Motown story by going into the basement of the Wayne County Courthouse, and so that was a great find for us. We would often ask them, "Has anybody else been here?" They'd say no.
- 5.34** The narrative spine, Berry Gordy. So what I always say, you want to try to create a nonfiction book—you can't always do it, but if you can—with a central character who's not there all the time, but weaves back and forth in the story. Well, this was easy because this isn't just a central character. This is the creator. This is the visionary. He put it together. Everything ends up really coming back to Gordy. Yes, he has the stars around him.
- 5.35** Seventh of eight children. His father was the son of a freed Georgia slave who moved north to Detroit in the 1920s to find assembly line work. Berry was born in Detroit after they moved north. Now, it might surprise some people to find out that Detroit was booming in the 1920s. We think of Detroit as this city that's fallen on hard times, and it's difficult. We were in there in the '90s. But Detroit was one of America's fastest-growing cities because of the auto industry in the 1920s. So a lot of people were moving into Detroit to find work, and Berry's father was one of them.
- 5.36** It was the second fastest-growing city in America, and his parents were strict disciplinarians. So they raised Berry in this line of really following the rules. He always knew that. That's sort of the same discipline he later takes into his own business in many ways. He became an amateur boxer. Five foot six, 125 pounds. Not bad, but you

know what? He's really smart. At 20, he said, "Forget about boxing. I think I'll be going into songwriting." And I will tell you that was a pretty smart move for a guy who has a talent for songwriting as well. So he was able to do it.

- 5.37** He runs into this kid, and he is a kid—17 years old, when he runs into this kid with an unmistakable falsetto in a group called the Matadors. Gordy introduces himself and says, "I'm thinking of starting a record label," and it turns out to be that Smokey Robinson, then William Robinson, says, "I'll do it." And they put out a song, "Got a Job." They renamed them the Miracles, and that's sort of the first thing that he really turns out. It turns out to be not the hit that Gordy's looking for, but it gives him a taste of how to do things.
- 5.38** There are a few things in what I call Berry's growth here. He has formed a company called Tamla, not called Motown at first, named after this Debbie Reynolds hit, "Tammy," which no one could ever think, who could think, that Berry Gordy would want that. He forms it with four of his sisters, so a big family: four sisters and Berry form Tamla. He gets a great lesson here. He puts out a song: "Money (That's What I Want)." If any of you have ever heard that, if you haven't heard it, you should listen to it, Barrett Strong. It's a great song. And it goes, with independent producers—he doesn't have distribution himself; he has to go through distributors—it goes to number two on the R&B charts. Pretty interesting for just the second time he's got an album out.
- 5.39** He distributes it through Chess Records. For Berry, this was a fantastic lesson, because it turns out that in the two cities in which he dealt with independent distributors, "indies," as they were called, he made about twice the money on record sales that he made by going through Chess. So he said to himself, "I have to have my own distribution. I can't go through other distributors to clearly make it."
- 5.40** And Berry complained incessantly around the company that he only got to number two. He hated the idea that he was number two on R&B, and they couldn't get a number one hit. So that aggravated him. But he came out of that experience, and this was key for our understanding. He didn't say it the way I'm going to say it. I'm saying he wanted a vertically integrated company. He wanted it from the top to the bottom, that he was running the operation and that they were distributing. That's what he was looking for, and that's what that particular song ended up teaching him.
- 5.41** So, when I say this is a classic story of American ingenuity and success, I cannot overstate how great the beginning of Motown was and how this man had a vision that he created. At 2648 West Grand Boulevard in Detroit, he ends up in this little house that they call Motown. They don't call it Hitsville then, but that's what it becomes. And he's encouraged by his wife at the time, Raynoma, who's a songwriter and doing work with him, and Smokey Robinson, to start this company. So Smokey and Raynoma are saying, "You can do it." And he starts Motown as this idea.

- 5.42 There were a couple of small independent, black independent, but for the most part, where was Nat King Cole? Where was Aretha Franklin? Where were the major black artists who were selling lots of records? They were on white-run labels. So there was no black-run label that had a black artist who was a major record seller. They were all instead on RCA and Decca. They were played on black radio. They went to the top of the R&B chart, but they were white companies that were doing it.
- 5.43 So, Berry had a different idea. He wanted, he thought, "Those white-run companies have taken black artists like Aretha and Nat King Cole, and they're selling basically to a black audience and to some white audience. I'm going to take black artists and I'm going to sell to a white audience." Now, people would say, "That's not possible. You're not going to cross over to pop. You're going to be on the R&B charts." He would say, "No, I could cross over to pop," because he knew that that's where 70% of the listeners and buyers were. 70% of the listeners and buyers were white.
- 5.44 How could he create the company that he wanted to and be a hit if he wasn't selling to white listeners? So that was a challenge. This is not just somebody who thinks he's going to set up a label and compete by having black artists sell to black listeners. And that's one of the items that, as a writer, you know that I always say to you: tackle a difficult subject. So I love it when I'm writing about a person who tackles a difficult task, because he was tackling a difficult task in 1959.
- 5.45 Holland, Dozier, and Holland. Lamont Dozier and brothers Eddie and Brian Holland, I don't know if you've heard about them. If you haven't, if you look them up, these three guys were gold, and I don't mean in terms of gold records, but they turned out to be that, but Berry hooked up with them very early. And they know how to do the machinery that becomes Motown. They know how to turn out the hits, and they do that.
- 5.46 They also later get involved—and I'll talk about this— in what I call the back-scene fights with Gordy about contracts. I never begin a chapter—there's no chapter in the book Motown that starts with cross-collateralization or some legal term about a contract. That's not the interest. But the practices inside Motown become of interest because it affects the way that Motown, at its peak, starts to finally turn. And that's because, in the beginning, when you're signing young artists, many of them were teens, 16, some younger, you just want to be a hit. And then you become a hit, and it's fantastic.
- 5.47 And then you're traveling and performing at the Apollo in New York, and you're going on the Ed Sullivan show, and you're going and you're shopping and buying everything, you're not thinking about royalties or savings or money. And then at the peak of your career, after you've sold more singles than any other artist, and you find out you don't have much money left, then you start to ask questions. That's when the questions come in around the contracts. So in the beginning, everything's fantastic. But my job is to take these abstract systems, this lived experience, without distorting the truth. But

these three men, they took wannabe singers, and they're the ones who really wrote the hit songs for them, time and time again, indispensable to the success of Motown.

5.48 Now, the first crossover hit, Berry gets it. There always has to be one, and he thought it could happen. They went on American Bandstand, number one on R&B, "Shop Around," and number two on the pop charts. Again, think of this for Gordy, who's ambitious and wants to achieve number two on the pop charts. He breaks the pop chart. Everybody thinks that's pretty amazing, but he only gets to number two. Number one on R&B, he likes that.

5.49 His sister, Esther Gordy, has formed a company inside of Motown called International Management. What International Management is is quite interesting. Motown did it all. They were your agents. They were your lawyers. They act as an unofficial bank for you. They paid your taxes. This is really unusual. So there isn't anybody today—I say anybody, I never say never—I don't think there is an artist today in hip hop and pop and anything else, in country and Western, that signed with a label and doesn't have an agent. They almost always have some agent or lawyer.

5.50 These kids, the Supremes from the Brewster Projects and others, would hang around the headquarters at Motown, and sometimes Berry would hear them, and they would get a deal. They would be so happy with the deal that they would not end up bringing in lawyers. Berry would say, "We do it all for you." As a matter of fact, there's a point at which Junior Walker is signing with the label and says, and Berry said to him, and I'm paraphrasing here, he said, "I have trouble with this contract, reading it all." And he said, "You read, right?" And he said, "Yeah, I do, but it's not like what I do." Berry said, "We're not going to take advantage of you. It's a good contract." So Junior would sign it.

5.51 Now, there's a point at which the Four Tops said, "We want to take that contract out of the office," because Berry would have you come in the office and sign it. Berry said, "No, you can't take it out. You can't take it out." And the Four Tops really persisted. And he said, "Okay, you can take it home, but you've got to sign it tomorrow." They took it home, and they didn't come back for two years. They didn't like that contract so much. But eventually, they came back because Motown was so hot and had such great hits that they had to sign the contract. But Berry never let anyone else take a contract home. You had to sign when you were there.

5.52 The Temps came in at one point and they said, the only group that did this, "We want to bring a lawyer in." Berry said, "It almost always makes for an adversarial type of situation. We're doing it as good as we can and helping out." And they said, "We do." And he said, "Okay, you can bring one in." They brought a lawyer in. That lawyer—I looked at those original materials, fantastic—he was a friend of theirs, and he was a workers' comp lawyer. He didn't know anything about music contracts. And he was so enamored with everything at Motown, he said to them it's fine, so they signed it

anyway. So even when the lawyer came in, it didn't necessarily mean you were going to get a better deal.

5.53 Inside of Esther Gordy's International Talent Management, Maxine Powell, a name very few people know. Every young artist from the Supremes on at Motown knew Maxine Powell. This is Gordy. He has an idea that he is going to have Maxine Powell, who is sort of this woman known in Detroit for Miss Manners and good manners, teach the kids who were acts how to behave in public. It would teach the Supremes how to cross their legs when they were on TV, so it looked fine. She would have the young girls, Mary Wells and others, walk around with, literally, books on their heads, so they walked up straight and were able to do it. She would show them, if they were invited to a large function, the best way to be able to start with the knife over here on the side and go through it all.

5.54 Today, we would be laughing at them and saying, "You've got to be kidding." As a matter of fact, there are rappers who would say, "Bad behavior is what works for my audience, as opposed to this." But Gordy was thinking of them on a larger scene, not for hanging around the Motown headquarters, but he had this image that, when they made it, they would look as though nobody would think of them as anything but real stars. And she even taught the girls, like the Supremes, and they were girls at that time, in these pencil-thin skirts that became their trademarks, how to walk without looking as though they had just put it on for the first time. That's Gordy thinking ahead.

5.55 Now, one of the interesting things, there is this crossover team— black artists, white sales team. So how does this end up happening? Think of Gordy. He wants to sell to white listeners. That's one thing. But to sell to white listeners, you've got to be played on white radio. That's where people are listening, with white DJs who at that time aren't playing black artists. It's just not what they're doing. It's a segregated music system. And so, Gordy says, "You know what? I need guys who can go in there, to those DJs, and get my stuff on the record."

5.56 And he brings on a guy, Barney Ales, who you'll see, he's on the lower part with the goatee, a dark goatee, and he brings in a team. Now, Ales had worked for Capitol Records before. And before coming to Motown, he was 27 years old when he came to Motown. He's doing Motown distribution in New York and Washington. He had worked for a cement company before. So he said, "I used to work with a lot of black guys, so it wasn't unusual for me to be now in a black-run company." He brought in this guy, Tom Noonan, a guy from CBS, and others, and they started to run the operation.

5.57 So, there are two things that are key here. Not only did they get the music played on white radio, but there's something else that Gordy knew. They could get it distributed, and they could sell, but what happens if the distributors didn't pay him? What if they said, "Oh, you're just a black-run label in Detroit, sorry." 90 days, 120 days, 180 days. Those guys got him paid the same way that every other record company did. So these

were the guys who got the distributors. They got Gordy paid. They made sure the music was played.

5.58 It was interesting talking to some of them. Tom Noonan said that he was often asked by his neighbors, "Hey, what's it like to work for a black company? God, you're working for a black boss? That's so odd." And his answer would be, "Money's green," and people would be quiet. When they would go as this team out to— they would travel to a new city. They'd be booked in. They'd be the distributing— assistant vice president for Motown Records; invariably, the companies that were booking them in a new city would put them into a black neighborhood in a black hotel, assuming they were black, not even knowing that they were coming in from the company and they were, in fact, white.

5.59 And there's a great, one of my favorite—so, what brings the stories alive? What brings the stories alive, of course, are these little vignettes that you end up picking up. And there's a moment at which Ales goes with Berry Gordy and their wives to an upscale restaurant in Detroit. This is early on after he started to work for him. And the restaurant says, the maître d' at the restaurant, "I'm sorry, we don't serve colored people." And Gordy, without missing a beat, says, "That's okay because I don't eat them."

5.60 And there's a moment in which everybody is like this, and then they get a table. And those are the stories that let you realize, we take the fact that today, segregation seems so far in the past. We think of it in terms of sports and baseball, and when color lines are broken down. But you forget these lines in a city like Detroit, where people are doing that. But that was Gordy, able to move on and do it with that team.

5.61 Now, creating a Motown Music production line. Let me tell you, he had it. The three minutes or less, catchy chorus, no politics. This was Gordy. He's operating in the early '60s, and we'll talk about this. And then the '60s get really raucous with Vietnam and everything else, but Gordy's always, "No politics. I'm selling to everybody, and nobody's going to listen for more than three minutes. We have to have a chorus." That's where Holland, Dozier, and Holland come in. They know how to create it. They're fantastic. Gordy, essentially, he's in there. He's writing the songs. Sometimes he's working in the production.

5.62 The deals that he's doing, artists are tied up for seven years, so that's pretty much it. They're renewable only at Motown's discretion. Gordy refused to join the record industry association because you join the record industry association and you have to pay a fee. And he thought, "I don't want to pay the fee. It's just not worth it." But the record industry association is what certifies gold records. And then they are the ones who process a gold album that then the artist is given by the company, and it's a big deal: your first gold, your first platinum, and things like that. So, there's a price you pay to get in there, and then they do that.

- 5.63** Gordy wouldn't do it. And as a matter of fact, so how do you explain that in a way that makes sense and comes alive? There's an incident we come across in which Marvin Gaye gets a gold record at a later point from Gordy, and he scratches it, and it's gold paint. Gordy spray-painted those albums because he didn't really have the gold record that the record industry association would give you. Marvin said, "You've got to be kidding." And he said, "It's still a gold record." Those are the moments in which it's actually all right.
- 5.64** When I said before "cross-collateralization," what do I mean by that? Everything was charged to the artist's account. So when you're the Supremes, you have a hit, a number one hit, you're taken to Saks Fifth Avenue, and you say, "I'd like that fur coat," and they say, "Great," you buy it, it's being charged to your account against your royalties coming down the road. You're traveling first class, you're going and enjoying great dinners and everything else, it's all being charged to your account.
- 5.65** Gordy did something else, which is interesting, that normally the studio costs for a song get charged to the producer who's doing it. That's how it works. But in Motown's case, the person who sang the song, even if it was a song sometimes you didn't want to sing, but Gordy said, "I think you're perfect for this," the minute you put the vocals down, all the studio costs went over to that artist, the singer, even if the song was never released. So there are songs that were never released.
- 5.66** So there are instances in which people have hits, big hits, and they think they're making a lot of money, and then they find out when they go in for an accounting later, that that hit actually offset eight different production cost songs that they had years ago that never got released. That never makes anybody very happy, unless you're reading the fine print of what it was about. This is the control structure of it. Remember, Motown is banking the money sometimes for the artist. So for me, as an investigative writer, as a journalist, as an author, and as an attorney, the potentials for conflict of interest are high. You just want to say— everything is good as long as everybody is running hits.
- 5.67** But they have a talent roster that you cannot mess with. I mean, it's just one after another after another after another. Mary Wells is one of the first people that really lands there, and she's great. Berry Gordy is coming out of a club in Detroit called the 20 Grand. It's a hot nightclub. Mary Wells is a 17-year-old wannabe singer who's hanging out waiting for him to come out because somebody told her that he was in there. And nobody had an entourage. It's not like you had to get through 20 people like today or things like this. So it's Gordy.
- 5.68** And she's following him, saying, "Hey, Mr. Gordy, Mr. Gordy, I have a song. I have a song that I want you to hear. I have a song I want you to hear." And she's imploring him. And he's saying, "I'm not ready for a pitch. I'm not looking for a pitch. I have no time for a meeting." And so, she stays on top of him as he's going back to the car. And then he just turns around, in front of a group of people, and says, "Okay, sing it now."

She said, "Sing it now?" And he said, "Yeah." And she did an a cappella version of what she wanted to do. And he said, "Come into Motown tomorrow."

- 5.69** That's one of those instances. Could you do that today? Could you follow the head of a production company and sing to them on the street and get a record? I don't think so. But that was the possibilities at Motown. He said, "I love that raspy voice. I loved what she had. I loved her confidence," because Gordy had something— yes, he had a business sense. He had a vision of what he wanted to do, but a lot of people have that, and they don't succeed. He had an intuition. He did have that.
- 5.70** Not everybody who showed up at Motown got signed. So there were people that showed up there who never got signed. We think it was just that he signed everybody who came in. They all turned out to be wonderful hits. He had a very, very good gut feeling for the ones who had, as he talked about it, you needed something extra. You had to have the voice, you had the ability, but you had to have a personality as well, and he loved Mary Wells' confidence. Through all that noise and confusion and everything else around that outdoor setting at the 20 Grand, she had won him over.
- 5.71** You know this guy: Stevie Wonder. Gordy finds him in 1963, sees him performing, says, "I want that kid," and that kid was 13 years old. Pretty amazing. So he brings him on to Motown. Now, here's the business side of it. Actually, Gordy had seen him at 10 in 1960, signs him in '61. Stevie's mother, who is his guardian, willingly let Motown do a contract that allowed a company lawyer to act as his legal guardian. Now the legal guardian for Stevie is a Motown lawyer from the age of 13 and on.
- 5.72** He got \$2.50 a week as an allowance. Even in later times, until he turned 18, there would be periods in which he earned hundreds of thousands of dollars in royalty and had difficulty in correspondence back and forth to buy musical instruments that he wanted. It's an unusual relationship. So we think of this, right, you've got a company attorney acting as the guardian, but he was a skinny 10-year-old when Gordy discovered him playing bongos and a harmonica, and he had a talent. But the structural relationship with Motown was one of those that later came back to haunt Motown as well.
- 5.73** The Marvelettes, some of you may recognize the Marvelettes, this is a 1963 promotional photo. Gladys Horton, up on the top left, Katherine Anderson, Georgeanna Tillman, and Wanda Young. They were entrants in a rural Michigan high school talent show in 1961. And when they came over to Motown in 1961, they delivered a song that became his first pop hit number one, "Please, Mr. Postman." You think you never know where it's going to come from, but it was these four women who delivered the first hit, teenagers at the time.
- 5.74** The Supremes. This is a later picture of them. This is actually in 1966, when they were already stars. And Diana Ross, Flo Ballard, Mary Wilson. Barbara Martin had been part of it, but she had dropped out early on when she got pregnant. These were high school

girls from the Brewster projects, the very run-down, rough projects nearby. They used to hang out at Motown. They were sort of like Motown's little sweethearts before they were signed. They were originally called the Primettes. That's what their name was going to be, and they thought that was it. And there was no lead singer in the group.

- 5.75** They did an a cappella version of the Drifters' "There Goes My Baby" for Motown, for Gordy, as their first tryout. And everybody who was already at Motown says it wasn't that great. They were okay, but nobody seemed to have—Flo Ballard had the strongest voice, but nobody won them over. But Gordy liked them and signed them, because he thought they had a cocky confidence that they were going to be stars. And that confidence, he thought, would translate into what eventually became their success. So he was willing to take a gamble on them. He signed them, by the way.
- 5.76** He later remembered—she was 17 at the time in 1961, Diana Ross—he said years later, that he thought that her version of that Drifter song was bad, but that she was the winning element. So he had that eye. Signed as the Primettes; they decided they needed a better name. It's Flo Ballard who comes up with the name The Supremes, and it works as a pretty great name for them. They really were the sweethearts of Motown.
- 5.77** Marvin Gaye starts hanging out at Motown, and I'll tell you, he's lucky for one thing: he's dating Gordy's sister, Anna, behind the scenes. If Gordy knew that, he would have been furious that any artist was dating his sister, but that was the way. He was 22 years old in 1961. He was old by Motown standards, as you were getting into the start. The Miracles, there's a 1962 picture of them with Smokey Robinson. They've now changed their name officially to the Miracles.
- 5.78** This is a promotional image of the early '60s, the Temps lineup. From top right, Otis Williams, Paul Williams, Melvin Franklin, Eddie Kendricks, and Elbridge "Al" Bryant—any one of them standards in the music industry today. Two years before signing with the label, they had been playing at a place called Saint Stephen's, this small little club, a community club. Smokey was there with his group. They were supposed to take the set that evening, and they did, and they had some problems with the mic.
- 5.79** That's where Gordy comes to them and says, "I'd like to talk to you about this, and I want to sign you now." They said, "Okay, maybe." They really weren't in the mood to talk. Smokey ends up going to the bathroom, and the next minute, he knows the person at the urinal next to him is Gordy, who isn't actually even using it, but just talking to him about business. And they went into Motown and they signed that deal. Gordy wanted something, he had the focus to know how to go after it. And he did that very well, time and time again.
- 5.80** Hitsville is now a museum, by the way. If you go into Detroit, you go to West Grand Boulevard, Motown was there from '59 to '68. That's all. Then they expanded to other headquarters. So that building is a relic of a history item, but it's where the real history took place. Anecdotes must keep their place. Here's what I mean. Motown is full of

stories—affairs, betrayals, scandals, you get the danger. For us, for Trisha and me, doing research and going through the legal files and talking to people is slipping into gossip. Oh, my God, you could fill a book with gossip. I could have done *Motown II*, the gossip stories or that, which you can't confirm.

- 5.81** My role, if an anecdote, a story you tell me, something salacious, doesn't illuminate my themes of money, control, or power, it doesn't get in the book. Sometimes it helps illuminate what's happening behind the scenes. Sometimes it doesn't. That is important for me, not just for my own ethics or what should be for you doing a nonfiction book, but commercially, because I believe, and maybe I'm old school on this, that gossip gets today's headline and then fades away. If you're doing something that you hope to last as a book on Motown, it's got to be more than that, so it has to have some substance to it.
- 5.82** Every story about a personal relationship in Motown is there because it affects either contracts, management decisions, the public image, or some internal power balance within the company. Now, that being said, let me tell you, I'm going to, for a second, do something unusual, which is actually look at my screen and read off a scorecard, because if I don't read off the scorecard, I'll forget somebody or leave it off.
- 5.83** So Motown was a family. And what I mean by that is the artist not only signed to a label, the label managed them and did all their work in that, set them out. But that was who their friends were, the producers, the record labels, the other people inside the company. They became this extended family, and as a result, they formed relationships with each other. They were kids, and those relationships were great when they were good, and then you'd break up with somebody, and suddenly it was bad, and it created tension inside the company.
- 5.84** So, Smokey was the first to marry another artist, Claudette. All of Gordy's sisters married in the business. Gwen to Harvey Fuqua, Anna to Marvin Gaye, and Loucy to saxophonist Ron Wakefield. Gordy's niece, Iris, married producer Johnny Bristol. Mary Wells married Rayber singer, Herman Griffin. The Marvelettes' Wanda Young married the Miracles' Bobby Rogers. Georgeanna Tillman, also the Marvelettes, married the Contours' Billy Gordon. And A&R director Mickey Stevenson married singer Kim Weston.
- 5.85** More than marriage, however, so they would get married, were the affairs that were going on, where people would have them, and there was no secret. So the Supremes' Mary Wilson was with Eddie Kendricks, and then later with Duke Fakir of the Four Tops. Sixteen-year-old Gladys Horton of the Marvelettes paired off with Hubert Johnson of the Contours. Otis Williams of the Temps went with the Supremes' Flo Ballard. And Diana Ross had affairs besides her long one later with Berry Gordy, with Smokey Robinson, Eddie Kendricks, and Brian Holland. Four Tops said—Tony Turner of the Four Tops said, "Sometimes it seemed as if the company was just one big bed." He was a roadie for some of the Motown artists.

- 5.86** Now, that means that when that's going on, it's fine, but when those relationships turn bad, and they do sometimes, it's creating a level of tension that Gordy has to deal with, which all of a sudden is unexpected. Nobody, by the way, knows that eventually Gordy, for a long time they're suspicious, is having an affair with Diana Ross. Nobody knows until much later that they have a child together. And so that was one of the things that were kept secret.
- 5.87** One of the things, a very interesting case study: Raynoma Gordy. So Raynoma Gordy and her younger sister Alice had auditioned as a duo for a young songwriter named Berry Gordy. And they were two of the people that convinced him to originally set up his company. The songwriting company that Berry first had before he had Motown, he had Tamla, but it was also called Rayber, which was after Raynoma, and was part of what he thought would be the thing.
- 5.88** So she is running, she gets divorced from him. He's having an affair after he marries—with Margaret Norton, who's a performer who he says is the most beautiful woman in all of Detroit—and they ended this marriage. So she says, "Berry, I'm going to go to New York, and I'll run the New York office of Jobete Music," which it was called then. And she ends up at the center of a bootlegging ring, selling counterfeit Motown hits from the trunk of her car.
- 5.89** Now, because she thinks that Berry isn't paying her enough money from the divorce, it's not enough money. He's not treating her well enough. So she knows how to get him; she's going to do this by selling fake Motown records. [After] her arrest, she has to sign a general release from Motown and all its entities—Gordy comes in—dissolve the marriage to Gordy, and accept a package of a lump-sum payment and child support, because they had had a child.
- 5.90** So, how to approach that as a writer? I had the court records, which opened up the door into that, because nobody in Motown talked about that. That was one of those stories that everyone said, "Oh, forget about that. No one wants to talk about that." And there it is in the court records. I had the settlement terms. So I had the interviews. I had the memoirs, including Raynoma's later account, where she was sharply critical of Berry.
- 5.91** I built the sequence around what I could verify: the arrest, the bail, the closed New York office, the face-to-face confrontation that they had, the settlement. And then I layered the emotional reactions on top of that. And that's how it ends up getting reported into a book, without necessarily coming in out of the blue as just another sensational story. It's part of Gordy operating as just a business.
- 5.92** The Apollo Theater. Let me tell you, although Gordy was a crossover hit with Motown and was selling to white buyers, appearing at the Apollo in Harlem in New York was a highlight. In 1962, December, he's able to do that. And not only do the acts perform in Motown, but Gordy knows how to do it; he makes an album from it. Now we have

albums all the time turned off from performances, but he makes that album, and he's able to make a hit out of that. The Temps, performing "My Girl," "Get Ready," they had the most polished choreography of all when they went to perform.

- 5.93** And then he sends the entire group of Motown artists, essentially, to England on this UK tour for the Supremes and Stevie Wonder. You look at that list: Supremes, Stevie Wonder, Smokey and the Miracles, Martha and the Vandellas, Georgie Fame. It's a group, any one of them could just be the headliners, and you've got them all, and they performed around the UK. They stormed the UK. Trisha, who was then a young kid growing up in London, loved Motown more than she loved the Beatles, but I can't tell any of her English friends that. They won the UK over. The Supremes performing in 1970, and the Miracles performing in 1970 as well, on an ABC television special.
- 5.94** Now, one of the things, myth versus documentation, very quickly. This isn't a major story. This isn't like finding a terrible scandal. But one of the things that happens is, when the Jacksons came over and signed as a young hip group, Gordy signed them, and the story that Motown tells is that Diana Ross found them. Diana was so smart and so clever, she was going around, she saw these kids performing, and she said, "That's a great group." And she brought them back to Motown, and they signed them. And it shows you that not only is Gordy a hit-maker, but Diana is a hit-maker. It's a good story, it's just not quite true.
- 5.95** So the real story is that Bobby Taylor, Bobby Taylor and the Vancouvers, in 1968, saw these kids. He discovered them, and he thought, "Maybe you could be good for Motown." He's the one who brought them actually down to Motown, and Gordy watched them perform on this. He barely sat down in the chair when Michael and the group—and Michael is five and a half, six years old—break into the Temps' "Ain't Too Proud to Beg." And Gordy was knocked out by them, so they get signed.
- 5.96** Now, is it a big deal? No. It's a fan magazine myth I put in the book. It's part of Motown's self-presentation. That's important. I present the documentary evidence so that the readers see how the publicity team works. And the craft point is, it illuminates. It doesn't matter. It's not there just because it's juicy. It's part of how Motown creates its image, as I say. Jacksons go on to become, of course, an astonishing group, and they leave Motown for CBS later, one of Gordy's great things.
- 5.97** 1971, Marvin Gaye. I'll tell you, Marvin said to Gordy, "I want to do a protest album. I want to talk about politics." And Gordy actually said to him, "Protest about what?" I swear to God, 1968, he said, "Protest about what?" And Gaye says, "Vietnam, police brutality, social conditions, everything." So Gordy said, "Okay, you can do it. Don't go crazy. Just make it good." And let me tell you, "What's Going On" becomes a seminal hit for that time.
- 5.98** So it's the first time that Gordy goes—he's still commercial, but they avoid politics. He stays away from the civil rights. He stays away from the Vietnam War, civil rights. He's

insistent that they talk only about their gowns, homes, who they are when they go on shows. Don't talk politics. Don't "go natural," Afros, nothing else. He's all into that cross-selling. And Marvin Gaye and others finally break the rule. The Gordy-Gaye standoff was one of the best inside the industry.

- 5.99** Rumors of a scandal. I'm going to do this quickly and tell you that I'll do it quickly here, but it took a lot of time. So there were all types of rumors that Motown was a success because the mob had made it a success. They were mobbed up. Gordy was an inveterate gambler. He gambled on everything. There's a story in which I tell, in which he's with Smokey inside the office, and it's raining. And Gordy says, "You want to bet on which drop is going to hit the bottom first?" He'll bet on anything.
- 5.100** And so, there was a story that he had been kidnapped once on a Caribbean island, and they had held him ransom because he owed money to a casino, and that he owed money to the mob, and the mob came in. They said, "So we'll take care of you, but we're going to own a piece of Motown." And Barney Ales, who you saw before, the lead sales guy, the white guy, he was of Sicilian ancestry. That was bad. There's a guy in there, Mike Roshkind, who was a PR executive. People said, oh, he might be part of the Jewish Mafia. He's playing a key role, so that's why Berry's all mobbed up and that.
- 5.101** Let me tell you, I investigated those rumors as hard as we investigated everything, because that's what we viewed them as. And in the end, I was able to conclude without any doubt that Motown was not created by the mob. Gordy lost plenty of money over time gambling, but the mob didn't make Motown. They didn't own part of Motown back then. They can't take away any of the glory of Motown because the mob made it happen. Those rumors persisted, and they went all the time in—I don't know if Gordy was happy when I finally came to that conclusion. It's a long chapter on that, but no mob involvement at all.
- 5.102** So the industry gossip had him there with loan sharks, that he had been kidnapped, pressured into giving up ownership. The tabloid press ran with that all the time. As a journalist, I approached it. I looked at the rumors. I showed how they circulated, and I dismantled them by talking to the Motown executives, looking at the financial records, and going to the government investigations. Now, at the end, I tell the readers, there's no proof of it. Can you prove a negative? No. But there's no proof of it.
- 5.103** Suitcase of cash, Mike Lushka, an executive who testified—and I found this inside the files— that the way we made money at Motown and ripped off the artist was cutouts. Cutouts are records that are returned. So somebody gets a record, they return it, it's a single, whatever else, that gets charged back to the account for the artist. So, you ship 100,000 records, 20,000 are cutouts and come back, the 20,000 come off the 100,000 you would have been paid.
- 5.104** So they had an arrangement with some of the distributors that they would greatly overstate the number of cutouts. As a result, he would take a trip two to three times a

year to different cities and come back with suitcases of cash. That all came out of the artists' earnings. No evidence whatsoever that Gordy knew about it, that Gordy took any of the cash. I believe it operated, but it operated at a level inside the sales and distribution department.

- 5.105** So, Gordy, at this point, is running a larger company. He's thinking of Hollywood. He's thinking of going out there with Diana. There's a lot on. I never think that Gordy had that, but I do think that artists were getting ripped off. There's a point at which Diana Ross walks into Gordy after having had—before she leaves for RCA—more number one hits than any female artist in history at that time and says, "You're taking care of my accounts. How much money do I have?" And he looked and he said, "\$100,000." And she said, "You've got to be kidding. I had millions of dollars of sales." And that was the nature of the business.
- 5.106** That was Gordy's mansion inside Detroit. He goes to LA. He takes Diana Ross there. She's fascinated with Hollywood, does "Lady Sings the Blues," wins a Golden Globe, nominated for an Oscar. The movie gets her great reviews, and Gordy thinks he's going to become a movie producer. That's the end of music. He's not paying as much attention to that. Flo Ballard dies at the age of 32, one of the original Supremes, in poverty, rough times. At her funeral, Diana Ross shows up with a fur-lined coat and is booed by the crowd. First time ever, you see the split between what I call Old Motown in Detroit and the new glamor part of Motown.
- 5.107** And then, Gordy steps into the wrong part of the business: the Wiz. Diana follows up with that, not a big thing, big flop in '78. They spent \$24 million on it. They bring back \$13 million. And you know Hollywood, you're as hot as your last hit. So everybody forgets "Lady Sing the Blues," and they're already on to that. In 1983, Motown 25 was done. It was fantastic. It was a television special. And you know what? Diana Ross came back for it. Mary Wells and Diana Ross actually had a standoff on mic and started to argue with each other.
- 5.108** The Marvelettes weren't even invited. David Ruffin and Eddie Kendricks were not invited, the original Temp leads. Martha Reeves' and Mary Wells' songs were cut into just a short verse. It was vintage Motown. They were all fighting with each other. And Michael Jackson came back to that, and he did his moonwalk for the first time. That was fantastic, but you know what? For those of us who knew Motown, that was a sad moment, because he was doing it for another record company. He had left Motown. Berry Gordy was in the audience, looking at him and thinking he could have been part of Motown, but he wasn't at that moment when he was revolutionizing the music business.
- 5.109** And then on Motown's slide, Marvin Gaye is shot dead by his father, 1984, one of the worst incidents that takes place in an abusive relationship between the two of them. And Gaye, when he dies, this is a man who had sold 30 million albums in his career, had four homes at times, cars, everything else, he died with \$30,000 in the bank, owing

\$4.2 million to the IRS. A whole series. His father was given five years for involuntary manslaughter. It's a terrible story and footnote to this.

- 5.110** Motown becomes, meanwhile, in the '70s and '80s, it has the Commodores, but it's the Punk-Funk King, Rick James. It's a long slide away from the Supremes. It's not making as much money. It's a shadow of its former self. But Motown is in the American history books. And this scene, when I think of this, Gordy sold Motown to a group of private investors for \$61 million in 1988. But he was smart, sold Motown, but he kept the rights to all the songs. It was the songs that were really valuable. And he sold half of the songs to EMI in 1997 for another \$132 million. And then in 2003, he sold another 30% to EMI for another \$110 million. And then in 2004, he sold the last 20% to EMI for another \$80 million.
- 5.111** So, what does Motown teach us about writing big nonfiction? The challenge on an iconic subject with which many people are familiar is to find a hidden machinery that tells the full story. I'm building a documentary spine at the same time that I'm trying to tell it through the people who made it happen. I'm trying to design a structure before these scenes really exist. I want legal protection without neutering the source. I'm very worried always about protecting the source.
- 5.112** The press for Motown, the book, when it came out, was fantastic. I like Janet Maslin in the New York Times, "Amazing anecdotes about Motown's early days. Posner presents the best and worst of this story with suitable glitter, and the book heightens a welcome new fascination with Motown's glory days."
- 5.113** That's all you can hope for, for being a person who's not a music writer, who approached a subject that I personally am so enamored with in terms of the music, and being able to tell the story, good and bad, about the rise and then the fall of this label, with some extraordinary personal tales. It becomes for me one of the most interesting books, because readers who come away with it think that you can't make up a cast of characters as fantastic as this. Thank you very much.

Lecture 6: Verification Under Pressure

At a glance — Verification under pressure.

- 6.1 One thing you may or may not want to do when you're writing your own nonfiction, it depends: some people stick to the same subject matter. So if they write about true crime, they write about true crime all the time, and they build up a following and an audience for that. People say, "Oh, I loved their last book about this. I'm going to buy the new book about that." I know people write just about intelligence areas, and that's fantastic. It's national security correspondence.
- 6.2 I like the variety, the spice of doing things completely different, going to a subject about which I know very little, and there are plenty of subjects about which I know very little, and then recreating it from the ground up, and trying to immerse myself and become a quasi-expert over time on it, and then feeling confident enough to publish a book. Then, when I finish with that, even if that book has become a bestseller, and the publisher says, "Why don't you stay in that field?", I say, "I'd like to go over here to something else that I know nothing about and try to do it."
- 6.3 Publishers hate that for the most part. They don't like what they call writers who create a market in one area and then go ahead and do something else. But my view of it is, and I think this is key: if you pick a subject, the subject has to have you on fire, but the story you tell is what matters. The story is what brings in readers. The story is what you always have to figure out. We talked before the other day about 30,000 pages of documents, or five different continents and countries for Warlords of Crime. Nobody cares about the work behind it. They care about the story you tell. You have to have the confidence when you tell that story to know that it's accurate and that you can defend it at all costs.
- 6.4 So, after Motown, of course, I wanted to do something completely different. The idea was this early concept I was talking to the publisher about for the Vatican. When we had done the book on the Nazi war criminal, I knew that he had escaped to South America by his family buying into a group of people that had Red Cross passports and were running Nazi criminals out. I also knew that there was a Catholic bishop and there were priests inside the Vatican who were helping Nazis get to South America, because they were so afraid of the Soviet Union and the big Red Scare, that they thought the Nazis were at least anti-communist, anti-Bolsheviks.
- 6.5 So, I said to this publisher, "I'd like to do a story about the Vatican and the ratlines, as they were called, about World War II, maybe find out how they got people down there." They were interested, and we were talking. Trisha and I lived in New York at the time on 54th Street. And then sometimes life happens in between everything else. So 9/11 happened, and we were in Manhattan that day. Every one of you who remembers 9/11, wherever you were. It's one of those things emblazoned in our mind.

- 6.6 For those of us living in New York, I remember that day in particular, we could see from our apartment, we were in midtown, we could see the smoke at the end of the island. And we went out that afternoon. We were in the morning, we were watching television, believe it or not, on the Today Show. How's that for a throwback? And we were about to leave the house at 8:40, and they said, Katie Couric or Bryant Gumbel, "Next, we have an author with a new biography of Howard Hughes." And I said, "Wow, somebody wrote a new biography of Howard Hughes? What could be new about that?"
- 6.7 I'm a guy who tries to make new things about old stories, so I'm interested in that. So let's hang on before we leave the house and watch that. And in the middle, before that guy—you talk about bad timing—was able to get on, the first plane had gone into the Trade Center, and everyone thought, of course, as you remember, that it was just a small plane that had gone off route. We thought that. And then the second plane hit, and there was this realization, of course, that it was different.
- 6.8 When we went out that day into the city, one of the most remarkable memories of it is how quiet it was. New York, the city of Manhattan, is fantastic because it's this cacophony of noise. It's constant. There's horns, there's yelling, there are people screaming, something is going down the road, there's a bus traveling by. It was quiet. There was the occasional sound of a siren going down, but people just weren't talking. That was the most unusual part of that.
- 6.9 We went to give blood that afternoon and then were turned away because we didn't know no blood was needed. You either were dead or you had survived, but it wasn't as though there were hundreds of wounded people. We walked by the 59th Street Bridge, the bridge to Queens. And there was, a few hours later, a line of people coming up and crossing over that bridge, covered in dust. They were going home. They were walking home to Queens. They were the survivors.
- 6.10 And I remember, I had a camera with me, and I didn't take pictures because I thought it was too intrusive. It's not what I do. I'm not a photojournalist. It's not what I do. Today, of course, everybody would have a hundred pictures of everything that took place. And somehow, I didn't feel right. I wish now that I had that to look back on, to remind myself of that moment. But then it felt too intrusive to be standing on the side as a couple of people who clearly had not been there, taking pictures of them.
- 6.11 So we went down after 9/11 to the downtown area, and we volunteered to help. You couldn't do much. The first responders, the first service, they were doing everything. They had all the rubble. But they took people like us who wanted to help, and they stuck us on the side, and we could pass along food and items like that to the first responders and other things. It made you feel you were doing something.
- 6.12 One evening, a couple of days in, we sat down next to a teenager, and she started to talk to us. And we said, "What do you do?" She said, "I'm a student at NYU. I'm down here to just do this. What do you do?" And we said, "We're journalists." And she said,

"What are you doing here? Why aren't you trying to find out how this happened?" It was like a light bulb went off in my head. It was so fantastic that it took somebody else to say that, because I didn't think of 9/11 as, "Oh, I want to go in and tell this story." But when she said that, we had talked about this. How was it possible?

- 6.13** Now, I went back to my publisher, and I said, "You know what? Vatican can wait. I'd like to do a story. I don't know what the story is, but I can guarantee you, as much as you can guarantee anything without knowing it, that there had to be some intelligence failure somewhere along the line to allow this attack to take place. I'd like to know what it is. I can write a book about that." I was very, very lucky to have a publisher at that point who said, "Go and do it." And so, that was October, November of 2001. We published a book in 2003 called *Why America Slept*. It was a year of mad dash of reporting and research and writing.
- 6.14** Now, something very different. If you're doing your own book, never before had I done a book—I had done books to anniversaries, the King and Kennedy assassinations. So I knew there would be competing books out on those anniversaries. But I had never done a book on a breaking news story, where the entire news media, internationally and in America, was chasing the same story. I wasn't the only person who was thinking there's a good story about finding out how this happened and what the intelligence failures had. The best investigative reporters across the field were looking into it.
- 6.15** So I didn't realize until I was into the beginning of the reporting, every time I would reach out to talk to somebody who had been in the FBI, who had something to do with counterintelligence, who had worked before in Pakistan, they'd say, "Oh, yeah, let me tell you, I just saw so-and-so from Newsweek the other day. Oh, yeah, I just got off the phone with a guy from The New York Times." I was thinking to myself, "Whoa, they, those reporters, have a tremendous advantage. They can print it in tomorrow's paper."
- 6.16** Well, now, of course, they can print it on today's paper in two seconds online. But then it was tomorrow's paper. So what I'm getting from these people, it's going to be old news by the time you read it in a book. Unless you haven't been paying attention at all, maybe for a couple of years, you'll say, "I read all that in newspapers forever. There's nothing new in that book." And so, the challenge was to go deeper, to get back further, to find out if we could come up with the depth of a story, because those reporters were looking for the fast answers. How did 9/11 happen?
- 6.17** I was looking then for the story of how it happened over a decade and how it led up to that, and then, in the hope that we might get to something new, which did end up happening in the end. So that's the hardcover of the book, *Why America Slept*, is the black cover. The *Failure to Prevent 9/11*, the paperback, has a New York Times pull quote again: "Smart and evocatively written, a narrative that takes on the frenetic pace of a spy thriller." I didn't set out to write it as that, but it ends up in some ways that.

- 6.18** So that book, I really think, is an example to me of what I call systematic, document-heavy investigation, but it still needs to read like a thriller. Guess what? You know the ending. You know the ending in the Kennedy assassination, the President is dead. You know the ending in the King assassination: Martin Luther King is dead. But you don't know the story around it, behind it, what led up to it, necessarily. That's the part that's thrown at you; you know that the ending here is 9/11 and the terror attack. The question is how to make that fresh, and that was a real challenge. It was a different kind of investigative narrative that I had to do, and I put that up first.
- 6.19** So, building the foundation, how I reported it. I wanted to go back and look at some of the terror trials that had taken place here and in Europe and that, 50,000 pages of material. Just around the time that the Internet is out, but not really at the point where it's digitized and you can do searches, a whole bunch of public archives of pre-9/11 intelligence about Al-Qaeda and related terror networks. I'll tell you after why that became so important. Congressional hearings, inspector general reports, declassified intelligence assessments.
- 6.20** When you start to go through those, there's a series of failures that come up inside American intelligence in the immediate lead-up to the attack. But once you do the work, as I did here, to tell the narrative, those incidents are not isolated incidents. They're reported—many of you, those of you who, we'll talk about later, lived in Arizona or remember the Phoenix Memo, a memo that went out about the FBI, that said, "Hey, I think a lot of people might be—possible Al-Qaeda terrorists are taking flight training courses here in the US." But that wasn't one incident. It was, but it's part of a broader systemic legacy of failure that goes back a longer period. So it's not surprising by the time that you get to it.
- 6.21** Dozens of interviews we did, with prosecutors, agents, intel officers, foreign investigators, many of them background only. When I get to the final chapter, I'll tell you the extraordinary precautions that I took to make sure that the sources that I talked to could not be identified by the government for providing that information. This is what I call the takeover. I asked the question in the book: What was known, when was it known, and why did they fail to act?
- 6.22** Sheik Omar Abdel Rahman. He came to the US in 1990, cleared by customs; even though he was on a domestic watchlist as a terror suspect, customs cleared him and put him in. He went to prison in 1995 for seditious conspiracy, for plans to blow up airplanes, for a whole series of things. But from his jail in Minnesota, he continued to write. He continued to provide fatwas for those who followed him. I'm going to read you one. This is from prison in 1998 from his cell. By the way, he doesn't mail these out. It's not like he puts a post stamp on it and sends it to somebody. They're smuggled out. His lawyer later got in trouble for, as a matter of fact, helping him get it out.
- 6.23** So this is a religious order. He urged his followers, "Cut all links with the United States. Destroy them thoroughly, and erase them from the face of the earth. Ruin their

economies, set their companies on fire, turn their conspiracies to powder and dust. Sink their ships, bring their planes down. Slay them in air, on land, on water. And with the command of Allah, kill them wherever you find them. Catch them and put them in prison. Lie in wait for them and kill these infidels. They will surely get great oppression from you. God will make you the means of wreaking a terrible revenge upon them, of degrading them. He will support you against them."

- 6.24** Now, that became part of the curriculum in more than 2,000 madrasas in Pakistan, Yemen, and Saudi Arabia. It became part of what was taught to young kids, who said, "This man is imprisoned by the infidel for what he is doing, and this is what you need to follow."
- 6.25** In 1990, in New York, the Marriott East Side Hotel in Manhattan is what I call the first attack. It's Meir Kahane, that man over to the right, sorry, standing there in front of the Star of David. He was running a very hardcore group, the Jewish Defense League, and they would take to the streets, and they were fighting what they viewed as attacks on Jews. And he was a rabble-rouser of his own. He gets shot and killed in the Marriott, on the east side of Manhattan.
- 6.26** What's interesting about him is the gunman is an Egyptian-born American citizen, Nosair, El Sayyid Nosair. The FBI, the local police, and everything else, what did we talk about the other day on the King assassination? J. Edgar Hoover got his man, James Earl Ray, and that was the end of the investigation; they didn't look for anything else. They got their guy. This was Nosair. He shot him inside the room. He ran out, they tackled him, they were able to get him.
- 6.27** They didn't do anything to look at links. Inside his apartment in Jersey were all the papers that tied back not only to Rahman, but to other members who would eventually become terrorists on the 1993 effort to bring down the World Trade Center. It was the heart of the nest of a group of radicals that, if they had taken it and started to move at that time, they might have seen some of the material that later came to attack.
- 6.28** What's the first attack? In July of '93, you might remember Islamic terrorists were front-page news when the Blind Sheik, he had been arrested for trying to blow up tunnels in New York City. He wanted to blow up the tunnels that led into the city, and that plot didn't work. So then on February 26, they detonated a bomb at the World Trade Center in New York City. Now, what's interesting about that first attack: it kills six and wounds more than a thousand. People forget how many were wounded on that.
- 6.29** But what's most fascinating to me when I went back is, I thought of it as an attack in which they had planted this car bomb that they had made underneath in the parking garage and set it off, and it was a symbol of their power to do it. They miscalculated. They actually had in their planning material all of the engineering help that they thought would bring the towers down. They thought that where they had parked it on that parking level, if they created enough of an explosion, would cause that parking

level above to collapse, and it was a foundational support that would start to bring the towers down.

- 6.30** So, what we saw happen on 9/11 was the expectation for 1993; it just didn't happen then. So people breathed a sigh of relief and said, "Oh, they attacked the World Trade Center, terrible," but not as terrible as if they had succeeded in doing that. And these reports later put in at the trial are so fascinating in terms of where the damage was done and how they expected it to happen. The first trial, by the way, the four men that went on, it took nearly— they were all sentenced to long prison sentences.
- 6.31** But what I learned from going back and reexamining for the story, this question, all of the national security apparatus who investigated that—the FBI, the Joint Terrorism Task Force, National Security Agency, the CIA—they all operate in silos. They all have their own silos. They're doing their work and collecting information, then they don't share it with the person next door. They collect the information here; they don't share it with that one over there. We know, leading up to 9/11, that was a major problem, not sharing the information. They gather it, they create their own informants, they have their own sources of getting it, they don't want to give it to what they view as a competitor on that.
- 6.32** The response from the Justice Department, from the Bush administration at the time—you may remember there was somebody called Zoë Baird, who had been nominated for the attorney general under Bush, and there was a scandal about her not paying a nanny a tax, and so she had to resign. Janet Reno was then up for a nomination. It was in the middle of everything. That case didn't get as much attention from justice as I thought it should have, but that was the politics of what was taking place at the time.
- 6.33** The rise of bin Laden. We know about Osama bin Laden now. We may not have known as much about him then. Bin Laden, you know, the other day I said to you that Mengele, the Nazi criminal, came from a very wealthy family, a farm machinery company that produced all this machinery, the bin Ladens are in construction. They are a big company with a lot of money inside, and they have a lot of sons, and one of them was Osama, and very, very radicalized. He really is the founder of Al-Qaeda abroad, which is a group of mujahideen.
- 6.34** He fought the Soviets when they were in Afghanistan—the Soviets had moved in there — to free the country, to eventually become the Taliban. And he had moved to Sudan. He was on a wanted list. And then in 1990, the Gulf War takes place, and there's a critical moment at which you have Kuwait invaded by Iraq, Saddam Hussein. The Saudis are nervous. They're not so sure Saddam Hussein won't come for the oil fields on the north. Saudis have the second largest military purchases in all the Middle East next to Israel, so they're armed to the teeth, but they're not quite sure they can use it, because they've never really fought a war.

- 6.35 So the Americans say to them, with Bush, "You want us to send in some American troops to Saudi Arabia, to make sure you're protected? Because Saddam Hussein won't attack you if Americans are there." Well, Osama bin Laden had gone to the Saudi royals. He knew them. And he said, "I'll bring in my mujahideen. I will come in, and we'll put them along the border with Iraq. No Muslim, no one will attack the mujahideen, because we have saved Afghanistan. They will not come against us."
- 6.36 And the Saudi royals said, "Thank you very much for the offer, but we're going to go with the Americans." So they sent American troops over there, and it was a tremendous controversy inside the kingdom. There are traditionalists who hated the idea that there were non-Muslims, foreigners, military troops in the kingdom. It's the home of Mecca; it's the Holy City. The American service people included women. That was unheard of in Saudi Arabia. It couldn't go out. But for bin Laden, that was treachery. That meant for him that the royal family had put their alignment with the Americans, as opposed to being with him.
- 6.37 Now, what is so aggravating about this particular development is that the prosecutors who prosecuted the people in the 1993 World Trade Center bombing knew one of them. This guy, Ahmed Ajaj, had spent four months in Pakistan before he returned to New York and helped carry out the attack. When he entered the country, customs had seized a bunch of manuals that he had in Arabic. They never translated them for the trial. They just didn't do it. They had them. They just didn't do it. It was bomb-making material, and it was also evidence of all of the links outside of the money men, al-Shibh and others in Germany, who were providing money for the terror plot. If that had been translated then, we would have had a jumpstart. Not saying 9/11 was preventable then, would have had a big jumpstart on what eventually was coming.
- 6.38 The warning, 1994. I don't know if any of you have ever seen it: Steve Emerson, he's an independent reporter. We know the value of independent reporters today; we see it all the time in uncovering materials the legacy press doesn't cover. He was doing this, actually, believe it or not, for PBS, which is unusual because you think PBS is so careful, they're not going to do anything that's on—his work was remarkable. Still available. You can find it, I'm sure. I say I'm sure; I hope you can find it on YouTube.
- 6.39 He went undercover, essentially. He was going into mosques around the country, with preachers who were associates of Abdel Rahman, who were giving these incredibly fiery fundraising speeches about the need—tenured professors sometimes, in the University of South Florida, calling about the need for jihad, the need for fighting, the need for attacking America. It wasn't as though he reported; he had the videos to show it.
- 6.40 They did a documentary called Terrorists Among Us in 1994 that was a wake-up call for anyone in this country that thought that there wasn't— we're talking 1.8 billion Muslims worldwide. Let's say half of 1 % only are radicalized like this, a very small number, that most are not. You're still talking 9 million people, because the numbers of

Muslims are so large. So you're talking a group of Muslims inside the US who are radicalized. The evidence is there, it's broadcast, and suddenly the country seems to be awake that this is a problem, until what I call the deflection, and that happens the next year.

- 6.41 Some of you may recognize that scene. I ended up writing a small booklet about it. That's the Murrah building in 1995 in Oklahoma City, and that's Tim McVeigh. That moment made America, the press, and the security apparatus, Bill Clinton was President, turn their attention away from what had been broadcast the year before about Islamic terrorism. 1993 was the World Trade Center. It had failed. It had killed a couple of people and wounded a thousand, but it had not been a catastrophic attack. Since then, there had been nothing on American soil.
- 6.42 There had been this documentary, but now we had American right-wing survivalist terrorism, and that became the focus. The FBI switched its focus, putting all of those men and women who were working on Islamic terror groups, and put them on what became this. You ended up with Waco, you ended up with Ruby Ridge. You ended up with the new threat being from the far right, the survivalist cult, the idea that people like Tim McVeigh were attacking America. As a result, we took our eye off the ball in terms of Islamic terrorism.
- 6.43 Now, that doesn't mean that they, the terrorists, did. In 1995, there had been a car bombing in Riyadh that killed six Americans and two Indians, but the big one was in 1996 at the Khobar Towers. That's a complex in downtown Saudi Arabia, killed 19 American airmen and injured more than 400. This is a major attack, the biggest attack on American forces since the Marine barracks had been taken down by Hezbollah when Ronald Reagan was President. The towers house the forces that were doing a no-fly coalition, trying to make sure that Saudi Arabia was safe.
- 6.44 Eventually, we tried the people who were considered to have been behind that bombing in absentia, weren't able to get them; that never worries them too much. But nothing was done about that wave of terrorism, but it was viewed as a problem that was over there. Two years later, in 1998, you may remember the East African bombings in Tanzania, in Dar es Salaam, and Nairobi. 224 people killed on those days when Al-Qaeda sets off those blasts, 12 of them Americans, more than 4,500 wounded.
- 6.45 We sent 900 FBI agents over there, so this was not a small investigation. They wanted to know what was going on. They tracked down the perpetrators. They linked them to Al-Qaeda. But again, the problem is, you're now dealing with a terror group that is diffuse. Remember, we talked yesterday about Chinese triads. There's a central organization, the triads, and there's no central organization here.
- 6.46 You have Osama bin Laden at the top, but it's diffused. They survive based on not having a structure or hierarchy, and moving it all the time so you can't stay on top of it, because they know the Americans have all the electronic toys. The Americans are good

at intercepts. The Americans are good at satellites, so you don't want to give them something that's static. So it's very hard to be able to move on these.

- 6.47** And then two years later, they get a little bolder. So they're not just blowing up a car bomb. They're going to attack a US carrier, a destroyer on the seas. They go after the Cole. So the Cole was a suicide attack. We see it differently with Al-Qaeda. It's a guided missile destroyer, the US has, on October 12th of that year, while it was being refueled in Yemen's main harbor, 17 US Navy soldiers ended up being killed and 37 injured. It's the deadliest attack on a US Navy vessel since the Stark incident in 1987.
- 6.48** This time, before the FBI even started the investigation, they didn't have to ask who did it because Al-Qaeda was claiming responsibility and bragging about it, because Al-Qaeda learned something: if you carry out an attack against the Americans, against the infidel, and you claim credit for it, and nobody gets punished for it, you don't see Osama bin Laden or any of his top leaders, or al-Zawahiri, or the people who carried out the attack, being taken and put in American prisons. What does that help? Helps recruitment. If you're a young Muslim who feels isolated, you have nothing else going on in your life, there's somebody speaking for you. They're saying, "Come here, fight with us." It's the same thing that happens later with ISIS and the caliphate. "We can give you a sense of identity in our interpretation, our radicalized and warped interpretation, of Islam." But that became big for them for recruitment.
- 6.49** Now, following the money. You know me well enough by now to know that one of the maxims I tell you, if you're doing nonfiction, follow the money. It always tells a good story. I love following the money because money leaves little bits of traces. There's some transfer that took place somewhere. There's some record of it. Bitcoin has made it more difficult. Crypto has made my life more difficult, I admit that. So there are some things I like about the modern age. I love that AI can save me some time. I love that I can do a translation of a document I find in the archives. But I hate the fact that I get somebody using crypto, and I can't get past where it went next. But that's a different problem. They weren't using crypto here.
- 6.50** Saudi Arabia, clearly, 15 of the 19 hijackers on 9/11 were Saudi. Largest concentration of wealth in the Middle East. A huge flow of money, hundreds of millions of dollars a year coming through. They've had a relationship with us over oil forever. Then the question became, in the '90s, for the Justice Department: Were some of the Islamic charities raising money in the US sending it abroad for terrorism? Because that certainly happened, we know, under ISIS, and it certainly was happening here, but they didn't know who. They had cases eventually that broke it.
- 6.51** US officials knew for years—and I got this from interviews, I got it repeatedly from sources—they knew for years that the Saudis were downplaying the risk of Islamic terrorism and of what Osama bin Laden could do. They weren't sure quite why. You might remember when the Taliban first took Afghanistan and brought a country— if you look at pictures before the Soviet invasion of Kabul, in Afghanistan, of women

going to the American universities, it was called, in Kabul, uncovered, in Western clothes.

- 6.52** There was a secular society, and the Taliban, when they took over, brought the country back to their 14th-century idea of ideology. When that happened, only two countries on the entire planet recognized the Taliban as a legitimate government. Everyone forgets that. They think that they were widely recognized. Countries refused to recognize the Taliban because they were so onerous on what they installed as the means of life inside the country. Saudi Arabia and Pakistan.
- 6.53** So the Saudis were there. They have a form of Islam called Wahhabism, which is among the most radical, and the Wahhabi followers. So the question was: What about the Saudis in this? Now, in early 1991, the chief of Saudi intelligence, Prince Turki, Prince Turki al-Faisal al Saud is his full name, he meets several times in Afghanistan during the '90s. He meets sometimes with Osama bin Laden and sometimes with representatives for him.
- 6.54** The deal that I disclose in detail—and others have written about it, but I think I have more in-depth about it—is that the Saudis essentially said to Bin Laden the following: "You know what? Stay away from the kingdom. Go and play jihad somewhere else. Do it wherever you want. Just don't do it in Saudi Arabia." Because they knew that he didn't like the royal family. They knew that he would be happy to have the royal family overthrown and the equivalent of a Taliban clerical government put into effect. But they said, "We won't ask for your extradition, although you're wanted for crimes here in Saudi Arabia, from any country. We'll send you some money along the way, and you just stay out of our hair and carry on elsewhere."
- 6.55** So, it was sort of the same way, if you think about it, in a very rough analogy, that in Italian neighborhoods, Chinese neighborhoods, and ethnic neighborhoods in America, when you would have local gangs grow up, the Mafia—I come from an Italian-American family—the Mafia would go into Italian merchants who had sandwich shops and pizza parlours and everything else. And they would say, "Hey, somebody's going to break your window maybe tomorrow." And the guy would say, "I have no problem here. It's a peaceful neighborhood." "Somebody's going to break your window, and you have no protection. I can give you protection, but it's going to cost you money." You're selling protection; it's sort of a shakedown. That's what the Saudis were doing. They were buying protection. They were buying protection so they didn't have the problem that we saw before in other places by making sure that bin Laden was some place else.
- 6.56** "None of this is ever going to happen here." Well, I'll tell you, in 1995, '96, we have a trial and we convict several Islamic terrorists, want-to-be terrorists, of a plot to bring down a dozen jumbo airlines over the Pacific at the same time. It was a big, ambitious plot. It didn't work, thank goodness; they were never able to do it.

- 6.57** Two years before, 1994, Algerian terrorists had tried to take control of an Air France plane flying back to Paris, with the intent of crashing it into the Eiffel Tower. French commandos were able to storm the plane and stop it.
- 6.58** In the 1996 trial in which they are convicted here in America, in New York, of trying to bring down a dozen jumbo airliners, one of the men who had been to Pakistan had taken flight training in order to learn to fly a plane into the CIA headquarters. But no one thought that was very interesting because they said it's much bigger to think of taking down—a dozen jumbo airliners at once is much worse than flying a plane into the CIA. That's never going to happen. But there was some indication on those early cases in '94, '95, '96 that a few of these terrorists involved in other attacks had also taken flight training, because one of the possibilities for an attack was using a plane as a vehicle to attack the enemy.
- 6.59** What the CIA knew and kept secret. These two men, Khalid al-Mihdhar and Nawaf al-Hazmi end up on the plane on 9/11 that goes into the Pentagon. This is one of the most frustrating parts of the story. I uncovered this while I was doing the research for the book, and I was afraid that somebody else was going to uncover it and have it out in the paper tomorrow, and it would be old news. They found tidbits of it along the way, but nobody got the full extent of this story.
- 6.60** These two guys, the CIA had picked up on a telephone conversation. The National Security Agency taps all these telephones. CIA had heard a telephone conversation with two of them from Saudi Arabia in which they were talking about planning a terror attack, but the CIA didn't know who they were. And they did voiceprint matches. They'd take the voiceprint, and they'd try to match it in their existing system to see if they get a voiceprint. Nobody. So they don't know who they are; they only have a voiceprint.
- 6.61** But then, as they're monitoring them, they learn that they're going in 2000, in January of 2000, a little bit before that, in December of '99, they're going to a terror summit meeting, essentially, in Malaysia. So the CIA says to Malaysian intelligence, "Hey, will you monitor this meeting at this place? Because we want to know everybody there." Malaysian intelligence does that. Now, what Malaysian intelligence does—it must be a budget cut—they do video, but they don't do any audio. So the CIA now has video. They know what these two guys look like, and now they're able to identify them. And they know one of them has a visa to enter the US at any time.
- 6.62** In January of 2000, these two guys, who picked up on these conversations, who have been to a Malaysian terror summit, are flying to California. Clairemont Mesa is a section of San Diego. That's where they lived from the time they came in until the attacks. Now, CIA lost track of them after they came in. Guess how they lost track? Did they change their names? No, kept their real names. They got a driver's license. Oh, yeah, they took a California driver's license in their real names. They were available in the phonebook, if you wanted to look them up.

- 6.63** CIA didn't pay attention to them because they had come in the US, and what is the CIA supposed to do? CIA is supposed to take that information, once the person they are following abroad comes into the US, and pass it on to the domestic partner for law enforcement, the FBI, because the CIA can't spy in the US officially. So therefore, it gives it to the FBI, and the FBI follows them. But they didn't want to do it. They didn't want to do it. They have all types of excuses.
- 6.64** I've excoriated the CIA for this. My belief is, just my belief from having done all this research, they didn't do it because this was their source. They had accumulated and created it. They had found these guys, they had seen them go here, and they were going to continue to follow them. If they traveled out to Pakistan or somewhere else, they'd be on top of them, so they didn't say a word about it at this time. They had conversations in the meantime abroad. They had material at any time that would have given an indication.
- 6.65** Now, you know what happens in August? And I'm going to jump ahead for a second and then come back. In August of 2001, a month before the attack, you might remember that they describe it as "chatter." There's a lot more chatter on the international, or picking up all this chatter on the terror, like, talking to each other, terrorists. There's something brewing, something going to happen. They even had a briefing with President Bush. It was important enough to let him know.
- 6.66** Well, what do you think is happening at Langley, CIA headquarters? They're saying to each other, "Hey, all this chatter and that, maybe we should tell someone else about these two guys, al-Hazmi, and let them know that Mihdhar [is] in the US. So then they tell the FBI a couple of weeks before 9/11, but they don't know where they are, they said. The FBI doesn't find them in time. They don't tell anybody else. No other agency gets to know. They don't tell, because no one's thinking of this, the FAA, who would have put them on a no-fly list. They made the reservations for the flight on 9/11 like every other one of the terrorists, in their real names. They made them. And going through security, no problem on 9/11. Getting on the flights, they would have been stopped.
- 6.67** But it wasn't just that. There were missed chances that are part of this what I call structure, this chain of failure. So Zacarias Moussaoui, the so-called 20th hijacker—people think he was going to be maybe the 20th hijacker. He had been training in a school in Oklahoma. He had been training at a school in Minnesota, and doing something odd. He wanted to train not on small planes, he wanted to train on 747 simulators. He wanted to learn to fly a 747. There were some reports initially that he didn't care about landing or taking off. That's not quite true. He did actually read those pages as well.
- 6.68** But he didn't know anything about 747. He didn't have any idea of what he was going to do as a career or where he was going to go or why he wanted to do it. And when the instructor kept asking him questions, he had obviously looked at the manual, but he

had it turned around. So that instructor, pretty smart, had a feeling something is not right here. And he told his superiors, who then ended up telling a local cop, who tells an FBI agent.

- 6.69** And the FBI agent, this is really interesting at this point, she describes— I mean, Clarence Prevost is the flight instructor, and he passes along, he's got some suspicions about a student, never thinking about a thing like 9/11 or anything else. But he says, "Something's not right here." That agent ends up taking it, and Colleen Rowley is her name. She sends it to, first, the supervisor in charge, the Minneapolis office. Then she keeps going over their head to send it to FBI headquarters.
- 6.70** And what she wants is the ability to go and search his laptop. That would be interesting for her. Then she asked for permission another time to search his room where he's staying. They turned them down at every option. That is one of those instances in which the bureau decides, "We're not going to go there. You don't have enough to do it. It's not interesting enough. He's taking a flight course. It's not a problem."
- 6.71** Meanwhile, what's happening in Arizona? We have Arizona. The FBI has been notified by a flight instructor here, "I think a lot of Middle Easterners are taking these courses, that they don't necessarily know why they're training to take them, and I'm not sure that something isn't amiss." And that ends up going up to headquarters and gets killed there. It goes nowhere at all. This story, missed chances, this chain of failure, it fits into what I call this long lead-up in which we either didn't take it seriously enough or there was this bureaucratic dysfunction.
- 6.72** I had this story about the Minnesota FBI and Moussaoui. I broke that through an FBI source before any journalist had published it. I said to Trisha, "That's the story that's going to get the headlines in *Why America Slept*." A month later, it was all over the news, way before I published, so that's the frustration of doing a book, that you compete with real news. Those reporters are good. They're going to find the same stuff that you're finding most of the time. That was part of that lead-up to there.
- 6.73** Then, of course, there is that day. Then the capture. So, the capture is—just so I can show you this, and I'll come back to this slide, chapter 19 of the book ends the book, called *The Interrogation*. The book, by the way, *Why America Slept*, is not one of my 800-page books. Remember I said, oh my God, I've got Vatican or Pharma, 800 pages. It's like, I'd have to look again, it's been over 20 years, 220 pages. It's dense. It's a lot of material about failure and what's happening. But it's a story that's told very briefly, and then it comes here.
- 6.74** So I had—and I make this explicit about a note—two active government sources in a position to know the details of what had happened in this interrogation, who independently gave me accounts of it. I then was able to get my hands on a defense intelligence report and a confidential file that confirmed aspects of it that you couldn't otherwise have. I had to make a decision as to whether to publish it or not, because it

hadn't been published anywhere else, and the publisher had to go out on a limb as well, to say, "Yes, we're confident in it." The lawyers ran me through the mill on that.

- 6.75** When that story first popped up on the horizon, my concern was that, as a reporter, I would go out, interview one or more of these sources, and that eventually, when the story broke, the government would subpoena me into a courtroom or before Congress, and say, "Hey, we want to know your source." And then I would have to do what I promised every source who's been sensitive in my life, "I will not answer, I will not disclose you, I will go to prison if I'm held in contempt." Let me tell you something. If you say that, you'd better mean it. You can't just say it and then go up and say, "Oh, I didn't really mean it. It's that person over there." So, that's what I said.
- 6.76** As a result, my planning, this is the only source, the main source in this, the only one in 40 years of doing books, that Trisha did not sit in on an interview. I never told her who it was. She has a guess, but I never told her. The reason was because they would know if they called me in and put me under oath that we work together, because I thank her in every book as being indispensable. They would then put her under oath and say, "Who's that person?" I did not want her to commit perjury. I wanted her to be able to honestly answer, "I have no idea, I wasn't there, and he never told me," and be telling the truth, because one of us had to stay out to pay the bills. That was clear.
- 6.77** So that was the preparation for the interview, if that makes sense. I over-prepare under the feeling of, "Don't get caught short at the end." I don't work for a newspaper or news service or a network that might keep me on salary while I'm in jail. We're freelancers; we have to be able to pay the bills. So that was the preparation. I met that person over 20 miles off the coast of the US in a boat, technically outside of US territorial waters, so they would have a tougher time claiming that it had been done in the US. There's a series of things that happened.
- 6.78** What I learned was an astonishing tale of the capture of a leading Al-Qaeda suspect Abu Zubaydah. And he was involved in the attack on the USS Cole. He was the man who represented Osama bin Laden in Afghanistan when they struck a deal with the Saudis in '98. He's a key young player. He had helped to move money around. He was near the top of the terror list. 9/11 takes place. We're looking for bin Laden. We can't find him in Afghanistan. In March of 2002, months after, the US gets the word that Zubaydah is in a place in Pakistan, the northwest territory, very remote.
- 6.79** They send in, with Pakistani military elite teams in the lead—because when you're operating in those countries, it's always the country wants its own forces at the front; they don't want to be led by American forces—with American Special Forces behind, arriving in helicopters. They're monitoring the house with infrared from satellites to see if there's movement of people. When it looks its quietest, they burst in. It's a bit of pandemonium for a while.

- 6.80** One person is killed instantly, two Americans are wounded, and the man they later identify as Zubaydah is wounded. He's hit twice, including in the stomach. He's seriously hit. They take Zubaydah at that moment. It's a fantastic scene because I didn't realize how this happens. And they're asking him, "Are you Abu Zubaydah? Are you Abu Zubaydah?" They ask him in Arabic, and he refuses to answer. They keep asking him until he says, "No." He says, "Not me. No. No."
- 6.81** They do that because they want his voiceprint, and they send that by a link immediately back to Langley and the National Security Agency, because they have Zubaydah's interviews at different times in telephone taps, and they want to know if they can match it to him and if they have the right person. Meanwhile, a Pakistani Special Forces person who has seen him says, "That's him." The voice confirmation comes back, and it's him, and they know they have him. Now, the first thing they want to do is, they want to save his life, so they don't want him to die. So they put him on an IV, they fly him, hours later, back to a safe interrogation site in Afghanistan.
- 6.82** Now, you might know that one of the things the Americans got in trouble for—the Americans, if we're talking American, but what the country got in trouble for after 9/11—was, we turned over some of the captured terrorists to what were called these black sites in other countries. So they did the dirty work there for us. They did a level of hard interrogation, i.e., torture, that we wouldn't do on American soil.
- 6.83** The Egyptians wanted him. The Egyptians who did hard interrogations and had a black site in Egypt said, "Give him to us." The Americans, the politics of this, behind the scenes, said, "You know, he's wanted in Egypt because he helped al-Zawahiri, who's the number two person for Bin Laden who's still alive. The Egyptians are probably going to do all types of things to him, just to get information on what's happening in Egypt. They're not going to be focused on us. Let's keep him ourselves and find out what's going on." So we kept him.
- 6.84** Somebody came up with a very clever idea. Because he was on these IVs and pain medication, because he was stable, he wasn't going to die, they could do things with him they couldn't do with a normal person. They could apply a little bit of pain relief through an IV for a few minutes, and he would feel better, and then they could take it off, and he would be racked in pain. They could keep doing that to show him the benefit. The longer, if you talk a little bit, maybe the pain will stay away a little bit longer. It's very hard stuff.
- 6.85** They moved him another time, covered his head for a few hours. He didn't know where he was. And what the Americans decided was what looked like a brilliant idea. The Saudis wanted him. He was wanted for terrorism inside the kingdom, and they had a death penalty waiting for him in absentia. Now, you think Americans are tough and Egyptians are tough investigators, and hard interrogators do not end up in a Saudi prison wanting to kill the royals. You'll find out in a very short amount of time what happens.

- 6.86 They know that. So the Americans said, "Let's have him wake up and believe that we've turned him over to the Saudis." And a group of American Special Forces, who are themselves Arabic and trained and speak perfectly, when Zubaydah woke up the next time—and we're now dripping into him sodium pentothal, which is sort of a truth serum, but he doesn't know he's getting that, together with pain medications—they're going to pretend they're Saudis, that the Americans turned him over, and the thought is, he's going to say, "Oh, my God," to himself, "I don't want to be here. These guys are going to torture me, pull my nails out, and then kill me. I'd rather be back talking to the Americans."
- 6.87 When he wakes up and he's out of this grogginess and he sees what he thinks are Saudi interrogators, what do you think he says? "Oh, thank goodness, it's you guys. It's great." And the Americans are like, "What?" It's all being taped and recorded. "What?" He says, "Yeah, call this number up." So he gives them a number from memory, a cellphone number, to Prince Ahmed bin Salman, who is, at that time, 42 years old, nephew of the son of the king, highly involved. He runs the largest media empire in Saudi Arabia. He also is the last Saudi royal that any of us would expect to be involved with somebody like Zubaydah, because he's totally Westernized. He went to the University of California at Irvine. He owns a company that buys racehorses. He is to be found in London at the best clubs and the best places. His racehorse won the Kentucky Derby in 2002. This is somebody who is known as a Westernized Saudi royal.
- 6.88 And I often say, that's the thing that's so confusing about the Saudis. They have a foot in each world. They come into London or New York, and they're wearing a \$5,000 custom-made suit, and they speak Queens' English better than the Queen speaks it. And you think, "Oh my God, they're like us." And then they go back to Saudi Arabia and they put on the traditional robes and they can go to a madrasa and pray Wahhabism. They have a foot in both worlds, and they do it very well.
- 6.89 So, that was the first name given. The Americans don't know what to do with it. So they talk among themselves, how to figure this out. What do we do? No one's going to call up Prince Ahmed and say, "By the way, you were just named by—", so they go back to Zubaydah and they say, essentially, "Look, you're a lying scumbag. It's just not true. Prince Ahmed said he's never heard of you. And as a matter of fact, now, because you've insulted a royal, we're taking you out in the back and we're really going to treat you."
- 6.90 And he says, "Hold on." And he gives them, from memory, three more telephone numbers: two more Saudi princes, one, a cousin of Prince Ahmed, 41-year-old Saudi prince, and one, a contemporary of his, 25 years old, who's a younger prince. And then he gives them the telephone number of Mushaf Ali Mir, who is the head of Pakistan's Air Force, the air marshal who runs the Air Force. They come back, again the Americans. They say, "You're lying. Nobody knows anything." He says, "Listen." Then

what comes out of him is what one investigator describes to me as the Rosetta Stone of 9/11.

- 6.91** He then explains how he was with bin Laden in Pakistan and Afghanistan. When they met with Prince Turki and Saudi intelligence, the dates that they did it. And then he says, "Two of these guys, Prince Turki, the main prince who owns War Emblem and has the racehorses, and Mushaf Ali Mir, the Pakistanis, they knew there would be something on 9/11. They didn't know what. They didn't know it was going to be an attack on the World Trade Center and on the Pentagon. But they knew a major operation was underway.
- 6.92** Shortly after that, the Americans let him know that they're Americans; they're not really Saudis. When he discovers that, he actually tries to kill himself with a bed sheet in his weakened state. They stop him from doing that. He denies everything. He says, "Those telephone numbers are just numbers I committed to memory. I have an amazing memory. I don't even know who they belong to," type of thing. It's fantastic. Where is Zubaydah today, by the way? He's in Guantanamo. He's still in Guantanamo. Never tried. He just got a settlement from the British. The British government just paid him money through an attorney for their role in having done a hard interrogation.
- 6.93** What happens is, the CIA then says, "What do we do?" The CIA decides that they're going to go to their equivalents in Saudi intelligence, Pakistani intelligence, and tell them what was said, and maybe they'll get cooperation. We told them, they came back, and they said, and I report this in detail, "Absolutely not true. What a miserable liar. He's not only a terrorist, he's a liar on top of it. How would you think?" Then you know what happens?
- 6.94** Four months later, the first of the princes, now 43 years old, Prince Turki, major head of the media empire, owner of War Emblem, he dies of a heart attack. Some say that he went into a hospital for liposuction, and he had a heart attack, but he had a heart attack and died. One of the things that happens in Muslim religion, just like in the Jewish religion, unless it's a criminal investigation and they hold the body for an autopsy, you're buried the next day. No autopsy, buried the next day.
- 6.95** The next day, the 41-year-old prince named by Zubaydah, who's his cousin, dies in a car accident. Oh, one car, only involved his own. Drove off the road in a thing. He's buried next to his cousin in the same cemetery, the day after. The 25-year-old prince named by Zubaydah, a few weeks later— this is my personal favorite; I don't mean to be grim—dies, according to the Saudi royal news service, of thirst. That's the official cause of death. He was on a pilgrimage and died 55 miles outside of Riyadh, only 55 miles outside of Riyadh. So he couldn't get his Rolls-Royce back to the capital, I guess, in time, and died of thirst, the 25-year-old.

- 6.96** And then a few months after that, Mushaf Ali Mir, the air marshal in Pakistan, takes off in a private military jet with his wife and 15 of his top aides aboard, and that plane blows up. And Pakistan swears they will find the culprits, and they never did.
- 6.97** Now, you know from dealing with me on different books that I'm not the first one to jump to a conspiracy. I'm the guy who says, "You've got to prove it to me," time and time again. But I can't prove in this book, or where I was in my research, that the Saudis, the Americans, whoever, ordered the killing of these men, and they were made to look like accidents.
- 6.98** So I had a decision, and that's where the publisher came in. All I could do is report what I knew to that point, just as I did, and my suspicions that something was obviously fishy. I thought, once I publish that, the US government will take this and run with it. They're going to investigate it. All those reporters who said, "Oh, by the way, we beat Posner to the story about the Phoenix Memo and that. Oh, yeah, you got that story about Zubaydah, that's pretty good. Let's go and find out what really happened there." They would be on top of it, and they would take it and run with it. So, that's the last chapter.
- 6.99** The aftermath. I end the book there. Time does a book review. It's called Confessions of a Terrorist. And initially, that chapter received a lot of news. Then the CIA started a whisper campaign behind the scenes, the first time I had ever been the subject to that, which said, "That story is false. Somebody fed Posner the wrong information. He may believe his sources, but they gave him a story that never existed. It didn't happen like that. There was no false flag operation. Zubaydah never gave us those numbers."
- 6.100** All right. You know what my response was to that? No problem. Release the videotapes. Release the audios of the interrogations. You've got them. So let's hear them. Ask Zubaydah, if you want to. I don't know if he'll say. He's in American custody. He might or might not, but you've got the real McCoy. It took until 2009 for the CIA to disclose that it had destroyed those tapes, the videos and the audio tapes, of two sets of interrogations of Zubaydah and colleague Sheik Muhammad, in a part of regular housekeeping that wasn't supposed to be done but got done. So the information that would have solved this without any question, the documents—I always say, let's go for the documents, let's go for the video—the CIA got rid of that.
- 6.101** Now, in 2011, I went to Afghanistan for a story. Yes, there is a center for international journalism that was there then. That's what it looks like. That's the ticket that I flew in on. Pamir Airways no longer exist, but they would fill your ticket out by hand. They spelled my last name wrong, but it really didn't matter because they weren't doing security that carefully, so it was Posler. And I went to Afghanistan on different reporting, but picked up the trails of what would have been an interesting footnote to Mushaf Ali Mir, because his family had pushed, the surviving family, for a resolution of how the Pakistani air chief got killed, and how many times they were closed off.

- 6.102** Now, that book got to number two on The New York Times list. Hard to imagine, because by the time I published, think of this, people were saturated two years later with news about 9/11. In the beginning, you want to know everything, and after a while, you say, "Oh, no more." Here, they wanted to read it because I had gone back in the story and gone forward. I had this chapter, and there was enough news.
- 6.103** I'll always be mad at Al Franken, who kept the top spot. So now I know how Berry Gordy felt when he only got to number two. Number two is fantastic, but you want to be the number one. If you're the top of the list, everyone says "The New York Times number one bestselling author." No one says "New York Times bestselling number two author." So, of course, now I had that feeling. I never appreciated Gordy's feeling as much as I did after that.
- 6.104** And then, lessons for Why America Slept. Scope plus the scene. So it moves from policy history and bureaucratic dysfunction to this intimate quasi-cinematic scene. I recreated in detail, as they told it to me, in this black site interrogation room. I think that it's a different ending from my regular work, but it made itself possible by what was disclosed.
- 6.105** Source transparency. You're going to print this; the whole world and every other reporter is looking at it. You'd better have your sources right. So this was step by step, without naming the sources or identifying them, how I verified it and what its status is today.
- 6.106** And remember, the last thing on this: I'm writing about allies, criminal syndicate in terms of the terrorists. It's one thing to suggest that friendly officials in the US government messed up and didn't do things right. But I'm accusing the Saudis, the royals, of knowing. So one of the things that Random House, the publisher, was concerned about, the book was not published in the UK. Why? Because in the UK, it's a lower level for bringing a libel lawsuit.
- 6.107** They were worried that, not they wouldn't prevail—they were confident the facts were there to win a case—but they didn't want to have to spend money with a member of the royal family who had unlimited money to spend a million dollars defending a lawsuit. That was their concern. They were worried—they're not worried about winning the lawsuit, they're worried about having to defend it. And so when you're writing about a friendly government, but you're accusing them of bad things, you have to be careful.
- 6.108** One of the books that we will not be talking about, because I have others to talk about, but the follow-up to this book, instead of being the Vatican. When the 9/11 report was published by the government, published afterwards, I was so proud of the fact that I didn't wait for the government's report to come out. I sort of told the government what it should say beforehand.

- 6.109** In that report, they said, "Oh, by the way, when the Saudis flew out, including Prince Ahmed and everybody else, all those Saudi royals left on 9/11 to leave the country, we flew them out, we really flew on 9/12. Airspace was opening up again." That was an absolute lie. I knew that was a lie. That made me so infuriated. Trisha knows when I get mad, that the next book we ended up doing was called *Secrets of the Kingdom*, about Saudi Arabia. So you think it was bad here what I was saying about the Saudi royals? I went back to deal with them another time on that particular book.
- 6.110** Libel, diplomatic, and ethical issues. I do like a challenge. I think that the book is tough. I blame a lot of people, but I do also acknowledge this. You have to just lay it out in terms of the facts and information. Let the reader get outraged. I don't get outraged when I'm doing it. Because remember, I have a benefit. I'm looking at this Monday morning. When you look back on a major event, you always see what they should have done. They missed this memo; they missed that memo. I get that. That happens. They're getting a flood of information. The terrorists only have to be right once.
- 6.111** But in this case, it was more than that. It was a systemic failure of the bureaucracy. And hopefully, after 9/11, they started to cooperate, the CIA and the FBI. Whether they're still doing that, I don't know. But this was a book that, for Trisha and me, was very, very personal, and became a book that was more current than the typical history books that I end up doing. Thank you very much.

Lecture 7: Investigating Opaque Institutions

At a glance — Investigating opaque institutions.

- 7.1 Good afternoon. Welcome back. Thank you for being here. You might remember that I had talked to a publisher about the idea of doing a book about Vatican finances in World War II, and how they might have helped Nazis get to South America for freedom. And then that idea got totally lost after 9/11. And what happens is, it often gets replaced with other things. The 9/11 book led to a book about Saudi Arabia. Then Trisha and I moved from New York to Miami Beach. The publisher decided they wanted a book about the history of Miami, Miami Beach. We ended up doing that.
- 7.2 And how was it that, three books later—I'm stubborn, if nothing else, and persistent—I'm coming back to the publisher with the idea for the Vatican book, which I had done a little bit of research on and off, but not intensively. And of course, what happened is, it took me nearly five years to finish this book, the longest straight run ever on a single book project. And it's not hard to figure out why, because I shouldn't have. I underestimated the complexity of doing a book about the Vatican.
- 7.3 Now, I've done books about the heroin trade or that. I've done books on political assassinations that seemed difficult. I'm not afraid of accepting those challenges. The problem here was that you're dealing with an institution that has no legal obligation for transparency. It's not like the US government where I can apply a FOIA request, or I can get somebody to say, by the way, you're part of the UN or the World Court or whatever else; you've got an obligation to provide the information. They don't have to.
- 7.4 You're not dealing with an institution that started only 30 or 40 years ago. You're dealing with a 2,000-year-old institution that understands that stories and scandals come and go, and as long as they're patient, they continue to survive. So it's very hard to get them focused on a story with any immediacy or urgency. And what's absolutely critical— and I say this in the beginning of the book—is, this is a book about one of the most secretive institutions on the planet, but it's not about theology. It's not about religion at all.
- 7.5 I was raised Catholic. I had a Jewish father who was not a practicing Jew at all, very secular. My first-generation Italian American mother was very Catholic. I went to Catholic grammar school, Sisters of Charity, Catholic high school, Jesuits. I was an altar boy. So, although I grew up in a more liberal atmosphere, I call myself a cultural Catholic. I understand the religion, and I appreciate it as a religion, but I never thought when I was a kid about the other side of it, meaning the political side.
- 7.6 Because I forget that the very same men, and in this instance, they're all men who are running the church, are running at some sections issues of theology and faith; and then at another moment, they cross over another line, and they're dealing as the Secretary of State of a sovereign entity with other world powers, because the Vatican has this

unusual institution of being both a sovereign government, which we'll talk about, and a religion. The same people run both. It's not like they have separate managers to run the government, and separate managers and clerics to run the religion.

- 7.7 And so, the challenge was getting into it and reporting on it and uncovering information, but proving it in a way that lawyers, readers, and editors would trust. That's the cover of *God's Bankers: A History of Money and Power at the Vatican*. Now, remember, before, I said to you: subtitles matter. Money, sex, power, we had on Motown. No sex here. Not because—there is a chapter about, you know, clerical abuse at one point, but it's from the money angle, of how much it cost the church.
- 7.8 But I will tell you that we learned something, and I say this in the book, that the clerics—and we were in Rome, we dealt with a lot of people—they would prefer to talk to you about sex before they'd prefer to talk to you about money. Money is the one taboo project, because they are there in a process that makes it difficult for them, and it's very interesting. But this was the perfect teaching case. So, how do you go about, as a reporter, as a journalist, as a nonfiction writer, doing transparency when there is none from the institution? You reconstruct the story indirectly.
- 7.9 You follow the money, because there are court cases in which the Vatican or somebody in it is named as a defendant in Zurich, in other locations, in offshore locations. There are Italian court records and investigative records and parliamentary records. Oh, my God, in the early 2011, 2012, we had thousands of pages of Italian records that still needed translation. It wasn't as easy to do it online, and it took forever to be able to do it. And those investigations often went on for years.
- 7.10 Now, June of '82, long before I started, some of you may have seen *Godfather III*. *Godfather III*, probably the worst of the *Godfather* movies, but at least it was built around the idea of corruption inside the Vatican. And it starts, actually, with a man who was an Italian banker, found hanging under a bridge in London, Blackfriars Bridge, in June of 1982. His name was Roberto Calvi. Those are some of the headlines about him.
- 7.11 Somebody was going to work at the newspaper that morning, early in the morning, looked up, saw a body dangling, hanging from the underneath portion of the bridge with a rope around his neck, as though he'd been hanged. Turned out that when the police got there, he also had about 20 pounds of stones and rocks inside his pocket to make sure that when he came down on the rope, it would be strong.
- 7.12 They looked through his material, and they ended up finding out that he was Roberto Calvi. He's the head of one of the largest banks in Italy. He was on the run from Italian authorities who were looking at him at that point for corruption. He was also known as "God's banker" because he had been selected by the Vatican as their chief outside banker. So he was embroiled in a whole series of controversies from the get-go.
- 7.13 The British looked into his death, and they concluded, at first, suicide. That's interesting, even though they found out later that he had vertigo and he really was

afraid of heights, and he couldn't be quite good, but he would have had to climb up the side of a scaffolding on the edge of the bridge, and then reach out and bring himself out to this point where he would have to loop the rope and put it around and go down in a very public way. The family fought that, saying it was murder. They had a new inquest, and they came to undetermined. We couldn't really determine it.

- 7.14** It took Italian authorities and forensics experts more than 20 years to finally come to the conclusion, by the rust under his nails and what they found on his clothes and what they had seen, which they kept at these pathology labs, that, in fact, it was murder. They even put people on trial eventually for it, connected to the Mafia. Nobody was ever convicted. They were all acquitted. So it took 20 years to finally get to the point where they thought there had been a murder of "God's banker." But it's sort of the start of the book.
- 7.15** I start the book with a dramatic scene. If you don't know this happened, you're following the newspaper man on the way to work, who looks up and sees the body, and then you follow the events as they take place, with the river police arriving [before] the London police and how they take the body and what happens in that short bit, without knowing the implications of what this man means.
- 7.16** Now, history sets the foundation. We spend a lot of time in archives. Trisha can attest to that. That's only one box. But when we were pulling these banking scandals, the core of journalism is power; power like they have in the Vatican leaves footprints. What you're looking for are footprints for the organization wherever it exists around the world, and assembling it is sort of this structure. We do it chronologically and institutionally. But for nonfiction, what I'm trying to do is present a history to you that will give you an idea of this institution and what it has done.
- 7.17** It took me maybe nine months, 10 months, to decide that telling the World War II story was only a few chapters, that it was a bigger book than that. So I went back to my publisher, and I said, "The World War II story that you signed me up to do, I'd like to do a different story." They said, "What would you like to do?" I said, "I'd like to do the financial history of the Vatican, like the last 200 years." And they said, "You've got to be kidding." And I said, "No, I'm serious, because it's a great 200-year history, and we'll get up to the modern part very fast." And I had an editor that said, "All right," and it's a thick book at the end, but it's a book that covers it in detail, because I'm very lucky that they gave me the room to be able to do that.
- 7.18** That's inside of Rome. That's a particular mission in which that order saves the skulls of the clerics who have served inside the order and keeps them as part of an unusual tribute to them. Trisha and I met a source inside of there, and I will tell you, it rivaled any meeting we've had at any spot in our books at any other time.
- 7.19** Here's the interesting thing about the church, if you think about this. There was a time when the Catholic Church had an empire. It was the same way the British had an

empire, a colonial empire, the same way that the French had a colonial empire. They didn't have a colonial empire. They had an empire inside of Italy called the Papal States. It spreads out literally across the north, from one side of Italy to the other.

- 7.20** It's 16,000 square miles of material on which they did what all powers did, who owned a large piece of land. They levied taxes, and they collected fees, and that basically supported the church. So, for a long time, the church is a sovereign entity. It's both a church. It's the one true church on Earth, as we were raised to believe as Catholics, and at the same time, it's also an entity that's head of the Papal States.
- 7.21** Now, what happens? They are bad money managers. They overspend. They continue to do it. Look, we have a \$33 trillion debt in America, so we know about overspending, but they overspend. They had one of the largest courts that any royal family had in all of Europe. They had 800 people serving some of the early Middle Age popes, only rivaled by the French court, but they were running out of money.
- 7.22** And so, there comes a point at which, and it's Gregory XVI, his papacy in the middle 1800s, he's so short on money that he has to go ahead and borrow money from James de Rothschild, the Jewish banker who runs the largest merchant banking organization in all of Europe. That was a moment of great humiliation inside the church.
- 7.23** So think about this: until 1789, when the French Revolution takes place, there are essentially no merchant banks or banking organizations inside of Europe. There are Jews who are in ghettos inside of Frankfurt and other cities, who are not allowed to join the guilds. They were always ostracized from that, but they are allowed to do money exchange and changing. That was one of the things they were allowed to do. Why were they allowed to do that? And why wasn't it done by Catholics and Protestants and Lutherans? Because Protestants and Catholics considered doing money exchange or loaning for interest or usury to be against the Bible. Muslims consider it the same thing. So, we don't get dirty in that. We allow Jews to do that inside the ghetto. So if you needed something, you could go to a Jew inside the ghetto.
- 7.24** Well, guess what happens? After 1789, when the French Revolution takes place, the ghettos start to break down in some places, and outside of the Frankfurt ghetto comes Amschel Rothschild and his five sons, and they knew how to do moneylending and exchange, and they become in one generation the biggest merchant bank in all of Europe. And Pope Gregory has to go to them in the middle of the 1800s, and says, "Can I have a loan?" And they make that loan. And there were people inside the church who thought, "That is terrible. How can you take money from somebody that is Jewish and is going to give it to you?"
- 7.25** But they had to do it because they were out of money for a very interesting thing. They were unable to fund the church just on the basis of taxes and fees, and so they tried to supplement it with indulgences. Some of you may have heard of indulgences. Indulgences is this wonderful thing where you essentially had to go to Rome, and you

were given forgiveness for sins that you had committed, and you made a contribution to the church. That indulgence fee helped fund the church. That was fine.

- 7.26** Over time, popes got more creative with indulgences. They said, "We need some more money." So they eliminated the obligation that you had to travel to Rome. You could do it in your country, in which you were; you just had to give it to the local bishop. And then some expanded, and I go through this in a period of time, to say, "You know what? You can actually pay us to forgive future sins. So if you pay more, you'll have future sins." That's an indulgence on steroids.
- 7.27** And then one pope came up with absolutely the greatest idea of all: "You can pay to forgive the sins of relatives who have died, who are stuck in purgatory. They can get out of purgatory faster and get to heaven faster, if you pay us here on Earth." So indulgences became a money stream for the church, but not enough of a money stream that they didn't have to borrow from the Rothschilds.
- 7.28** Now, they borrow from the Rothschilds at this point. And I'll tell you that it's interesting because these popes, and there is James de Rothschild on the right, and there is Pope Gregory XVI, which became this controversial time. They paid the Rothschilds back, and then a future pope had to go back to them again, to borrow money a second time.
- 7.29** This time, the Rothschilds took some heat from the Jewish community. People said to them, "Hey, you're loaning money to the Catholic Church?" It was Rome that had the first ghetto for Jews in all of Europe. And the church has a lot of control over Rome. "Why don't you ask them to take the walls of the ghetto down?" So the Rothschilds said, "Okay, in addition to the interest you're paying us, will you take the walls of the ghetto down for Jews inside of Rome?" The church said, "Fine." They took down part of the walls—I love this story. And then, once the loan was paid back, they put the walls back up. Rothschilds needed a better lawyer on that.
- 7.30** And then in this part, for more than a thousand years, by the way, think about this: popes were also monarchs. They had the same power as a king in running the Papal States. It's a temporal kingdom. They would carry out their own executions of those that they thought were disloyal or trying to do something to destabilize the pope inside the square. They had an army that fought for them all this time, a militia, this papal infantry. You can see some of them here on the right. They were always unmarried Catholic volunteers from many countries.
- 7.31** And then in 1870, Italy has this rebellion that's taking place. It's spreading for years and years across the entire Italian boot, and Italy reunifies. It becomes one, under one government. That is the worst day in political Catholic history, because it means the Papal States are gone. They lose their kingdom overnight. So the Catholic Church goes from having an actual earthly kingdom, the Papal States, to having none at all. The pope goes from being a king on Earth, in addition to king of the Church and vicar of Christ, to having nothing at all.

- 7.32 And so now they're worried about money, again, because they have not yet unleashed Catholic bankers to compete with Jewish bankers and others. As a matter of fact, every pope, up through World War I, viewed capitalism as the province of Jews and heretical Protestants. Catholics just didn't do it. It took them a long time to get in the idea that they should be in the banking business at all. So they still aren't in that business; they've lost all of the income they get from taking the Papal States; and they go back to a thing called Peter's Pence. And Peter's Pence is this, it's literally started in England around a thousand years earlier, in which they would do contributions to the pope. So you were just sending contributions called Peter's Pence. It would go off to support the pope.
- 7.33 The pope who is in power at the time they lose their kingdom, Pius IX, he's very smart, he says—they do their first internal audit. Takes them six years to do it. They find out the church is on the verge of bankruptcy. So he declares himself a prisoner in the Vatican. So he says, "I'm never leaving the Vatican. I'm never leaving this little parcel of land until God restores our rights to a kingdom. And meanwhile, send money to Peter's Pence."
- 7.34 And there were people in other countries, like in America, in France, and other places, that had the equivalent of what I would call fake AI pictures. They were drawings that would be put up of the pope being held with irons on a bunch of straw inside a cell, none of that being true. But the idea to Catholics around the world, that the pope was a prisoner inside the Vatican, and the Italians had taken away the kingdom, meant that money started to pour in, in terms of Peter's Pence. There was even a time at which one bishop from Rome started to sell what he called prisoner's straw or holy straw, the straw that the pope had been sat on. It was quickly—they did put a stop to that.
- 7.35 Now, a succession of popes comes in. So you've got Pius X, the one with the hat on the left-hand side. He's the first modern pope. He's pope for 11 years, from 1903 to the beginning of World War I, from a working-class family. Normally, popes came from very well-to-do aristocratic families. In this case, he came from a working-class family. He's ultra-conservative, and he encouraged denunciation of free thinkers and modernists. He was absolutely opposed in every bit of his being to capitalism. He thought capitalism was a great sin. So again, he's trying to run the church on donations. Very hard to run the church just on donations: no planning, no budgets, no nothing. It happened for a long time. They were able to get away with it when they had the empire, but not now.
- 7.36 Then, you have the second pope in the middle, and he becomes the pope upon [Pius X's] death in 1914. He had been the cardinal in Bologna, Benedict XV. He's the pope during World War I. He tried to do peace during the war. All the countries rejected his efforts. By the time he died in 1922, the Vatican had lost 40% of the investments it already had, because of wartime upheaval. So they're even in more of a dire strait.
- 7.37 And then comes in this son of a factory worker as his replacement, very hot-headed, tempered, Pius XI. He runs the church with a strong hand, and he orders a new internal

audit of the church. It comes back in six years and says, "You should try to do something to modernize the finances, because again, you're on the verge of bankruptcy."

- 7.38** And then something interesting happens in Italy, the rise of Mussolini and the fascists. This is happening in the 1920s. And you'd have to think that the National Fascist Party, only eight months after Pius XI became pope, Mussolini led tens of thousands of fascists in the biggest march in Rome, to say, "We're going to take a position of power in the country." Now, Mussolini, raised a Catholic, 98% of Italy at that time, Catholic. He was raised Catholic, but he disliked the Church. He called priests, in a speech that he gave, "microbes in black suits." He talked about what he was going to do against the church. So now the pope is worried about this rising force on the right. What is he going to do about Mussolini, who's a populist and is catching all types of attention?
- 7.39** Meanwhile, in Germany, this man, who is Eugenio Pacelli, the papal nuncio to Germany, he's serving in Germany at a time Adolf Hitler is coming up. In 1933, Hitler becomes Chancellor. Pacelli, Italian, comes from an aristocratic family, and he speaks German fluently. He has to weigh the balance between protecting German Catholics against Hitler and his regime, who were Catholics and Lutherans, but really had no religion. They had given up religion for the religion of Nazism. And so he was worried about that.
- 7.40** So you have Pacelli in Germany, you have the pope in Rome, and then something interesting happens. In 1929, two political treaties, the first one in '29, the pope signs a deal with Mussolini and his government called the Lateran Pacts. There are three parts to it. And what they do, the Italian government says, "We're going to give you the equivalent of these bonds," Italian bonds, worth nearly a billion dollars today, it was a lot of money, "back to you for having taken the Papal States." The money is good. That's all right. But that's not the reason they're doing it.
- 7.41** What they do, which is key, "We're going to give you," Mussolini says, "108.7 acres." It's very precise. "This little postage stamp piece of property that is Vatican City, and that becomes yours, and it's sovereign. You're a king again. You have your own entity. You are a government again. What you say there goes. Italy can have nothing to do with what happens there. That's your kingdom." And suddenly, after having lost it in 1870, in 1929, the Church gets a sovereign piece of property. Now, it's tiny, but there are other tiny countries in Europe. There's San Marino, there's Monaco, Liechtenstein, not much bigger. So that becomes a real part of property.
- 7.42** In addition, Mussolini says, "We will acknowledge the Catholic Church is the only legitimate church in all of Italy. We'll take Protestant books and Bibles, and we'll burn them and get rid of them. We'll outlaw freemasonry, which the Catholics were absolutely against. We'll make sure that Catholic divorce and marriage—not divorce, excuse me, no divorce—Catholic marriage, the sacrament, is the way that people get

married. The state, less important. In every school room, in every Italian school across the country, there will be a crucifix behind every teacher."

- 7.43** Why did Mussolini change? Did he get hit by a special magic power? Did somebody say a prayer? No. He realized that he needed the church as his ally, because from every pulpit, every Sunday, priests across the Italian country were preaching to millions of loyal Catholics. And if they opposed the new government, if they said, "This is morally outrageous; you must stand for it," it wouldn't mean the end of Mussolini and his fascist regime, but it would create a problem for them. If the church became a partner with them and said, "This is a government that's good for our time and for our people," it would make a difference.
- 7.44** So when Mussolini goes ahead and invades Ethiopia, and does an actual invasion where he tries to expand the Italian Empire, it's blessed by bishops for the soldiers who are leaving; the priests at the pulpit say this is a war that's important, it's for the sovereignty of the country. And so, they become partners in this sense, but the pope gets back that sovereign territory.
- 7.45** And then, Hitler and the Reichskonkordat, 1933, Hitler comes to power as Chancellor in '33. And before, remember in the earlier lecture, I said to you, there were only two countries in the entire planet that ever acknowledged the Taliban the first time around as a government? It was Saudi Arabia and Pakistan. The first country to do a deal with Hitler was the Vatican. You don't think of it as a country, but it is because they got their country back just a couple of years earlier.
- 7.46** So Pacelli, who is the ambassador there for the Vatican, makes this deal in which they do two things. Essentially, Hitler says, "I'm going to stay out of bothering the church, so long as the church stays out of bothering what we're doing in the state," and does something brilliant. There's a thing that some of you might be aware of. One of the ways the church got money in the past was people make contributions to the church, a tithe; you would make so much of what you earned as a salary as a voluntary payment. A lot of churches do that.
- 7.47** Pacelli had a fantastic idea. He said to the Third Reich, "What about if you collect the amount from Catholics—you know who the Catholics are because they're all in the registered books, with their birth certificates and everything else—you collect it from their paychecks, sort of like you do a tax for the government, and you send it to us, and you take a cut of that. You'll make some money, and we'll make some money."
- 7.48** Hitler went along with that, brought in about \$100 million a year to the church. From that point on, it was big money. And by the way, it happens to be—if you want to Google it—still a source of controversy in Germany. There are people born Catholic who say, "I've given up my faith. I don't want to pay the tax any longer." And they still are sometimes told to pay the tax. The tax still exists, but it started here in 1933. And these two deals set the groundwork.

- 7.49 Now, what happens next? Vatican Bank, June 1942. The church—this is where we really came up with what I call some of the news of the book, believe it or not. The church's position has officially been, from World War II, "We never invested in German or Italian companies or armaments or anything else. We never invested in Mussolini's companies. We never invested in Hitler's company. We only invested in the Allies. We only put money in the Americans and the British. That was it. We were neutral," which technically they were.
- 7.50 In the middle of World War II, the Americans and the British have a so-called blacklist. They're looking for countries who are dealing with the enemy. They're trying to stop all the backdoor dealing. Same thing they're doing today with Iran, trying to figure out who's supporting Russia, who's giving the oil off the books to countries that have sanctions against them. They're doing that here.
- 7.51 Every neutral country in Europe, technically neutral, got put on the blacklist and banned for doing business with Argentine banks who were funding the Nazis, who were doing offshore deals with Mussolini's companies. Liechtenstein, Monaco, Switzerland. You go down the list of these, and they all get put on except for one: the Vatican. So the Vatican does two things.
- 7.52 There's Henry Morgenthau, who's the Treasury Secretary, says, "Hey, I think they're doing double-dealing with the Nazis and the Italians." And Roosevelt says, in so many words, and I explain this in the book, "I'm coming up for re-election. You know how big the Catholic vote is in the United States? You've got to be kidding. You want to put the pope on the blacklist? It's not going to happen."
- 7.53 But the pope does something else. In the middle of the war, in June 1942, the Vatican Bank, that's when it's formed. Why is it formed in the middle of the war? Because they're aware in Rome that the Americans and the British are putting a microscope on them, so they want to create a bank that takes them off the radar. Instead of sending their transfers through Chase Manhattan Bank or J.P. Morgan, if it existed, or something like that, they want to send it now only through the Vatican Bank, separate from the Italian system.
- 7.54 That building, the Vatican Bank, had one branch in the entire world. It's in Vatican City in what had been a former prison named Tower of Nicholas V. They put the branch in there. There was only one shareholder: the pope. It operated at his discretion. It had no obligation to turn a profit, and it operated as a bank in terms of transfers. Now, they had connections certainly with Germans during the war, at the highest levels. And then they took two men who revolutionized capitalism at the Vatican.
- 7.55 The man in the middle with the goatee is a financial genius in some ways, Bernardino Nogara. He had been in finance before. This pope had the common sense—and by the way, the pope, in case I forgot to tell you, was now called Pius XII. He was the fellow who was the ambassador to Germany beforehand. On the death of his predecessor, he

was elected pope. So the man that knew the German government the best, had dealt with Hitler, now becomes the pope.

- 7.56** He is smart enough to go outside to take a financial man to run the bank. Bernardino Nogara is ahead of his time. He's doing the equivalent of futures work. He's investing everywhere because Nogara knows—and the man with the top hat is the former financier underneath the Italian government, underneath Mussolini, Giuseppe Volpi. He becomes one of his biggest aides on it. And what they know as a pair, they don't know who's going to win the war. In 1942, war is in the middle. So what do you do if you are the Vatican, and your entire purpose is to survive?
- 7.57** You don't really want to pick a winner and put all your eggs in one basket. You want to do what you would expect them to do, put a little bit on each side, so that depending on who wins the war, you can then say, "We were backing you. We were supporting you." And that's exactly what the Vatican Bank did. So the Vatican Bank invested in British real estate, some of the best holdings in London. They bought American stocks, and then they ended up investing heavily—and this is the story we broke.
- 7.58** The Vatican always said, "We didn't put any money into the Nazis, no money into Mussolini." It was almost impossible to believe that for the following reason. Over 95% of the cardinals who ran the church, who elected the next pope, were Italian at the time. It was dominated by Italians. Many of them had brothers on the other side of the wall, in the Vatican, who were big achievers in Italian society—admirals, generals, head of industry. There was a natural affinity, as Italians, even though they were cardinals, to want the family and the rest of the country to prevail in the war. It's a natural item.
- 7.59** So, it's almost impossible to imagine they could say, no, we're not doing anything at all to help the rest of the family and everybody else on the other side of the wall. They did invest, and what they invested in were two insurance companies. One is Generali, a big Italian insurance company, and the other is Allianz, a German insurance company. When we had heard the story about this, we tried to get this story; we tried to chase it for a while. Everyone said to us, "You'll never get that story, because the documents for Allianz were destroyed when the Allies bombed Germany in the end of the war, and the files for Generali have been lost forever."
- 7.60** Guess what? We got a tip. There's a warehouse in Trieste. They have some of the documents back from the time of Generali. It led to other financial documents, and here's the story. The story is: the Vatican puts money into both. Then those insurance companies, Generali, the Italian one, especially, had signed up a lot of Jews in Eastern Europe for life insurance policies. When those Jews were sent to the death camps by the Nazis, the insurance executives sat around and said, "Hey, these people aren't coming back." So they took the cash value of their life insurance policies immediately off the books, and it was outsized profits. So the insurance companies and the investors, like the Vatican, made these enormous profits at the time.

- 7.61 Did the Vatican know that people were being sent to death camps? No, I'm not saying that. They just knew that huge profits were coming back from these life insurance settlements. After the war, not a problem for the Vatican, when people showed up and tried to collect on life insurance policy from these companies, the executives said, in every instance, "You've got to show us a death certificate." They'd say, "I don't have a death certificate. They died at some death camp." And they said, "No, you have to show us a death certificate." That litigation went on for 50 years, seriously.
- 7.62 So, the church comes out of this period with what I call this tremendous profit. This man, an SS-Brigadeführer Walter Schellenberg, he directed Nazi intelligence operations from July of '44. He told US investigators that the Nazis had agents inside the Vatican, and it raises the question whether Nogara could have been an agent providing information to the Nazis. I have a chapter on that in the book. It doesn't change the Vatican finances, but it changes whether the chief moneyman for the Vatican during the war was also double-timing as a Nazi war spy.
- 7.63 So the ratlines and gold, what I initially thought would be the heart of the story, turns out to just be a chapter on it, which is the man on the upper left, a Croatian priest, Krunoslav Draganović. He's a Croatian. The man in the middle is Bishop Alois Hudal. He's an Austrian who's in Rome. And after the war, that's Adolf Eichmann in the Nazi uniform; he was in charge of sending to the death camps all the trains.
- 7.64 The Nazis had made a business out of gold. They had extracted gold from the bodies of the dead. They had smelted it into bars. They had it sent out. At the end of the war, there's a period at which the Nazis have ransacked the Serbian national bank with, literally, what is a gold convoy of loot, all the loot in the Serbian national bank. And where did they drive it? They drive it to Rome. On the way, they're stopped by British troops who take some of the gold; that's another story. And then they finally arrive in Rome, where they go into Draganović's monastery, and it disappears.
- 7.65 So, one of the things unusual at the Vatican Bank is that it described in its charter, a one-page charter, that it could take physical assets. That's unusual. So normally you have to supply cash or something like this. But in the Vatican Bank, you could walk in with a painting, you could walk in with a piece of art, you could walk in with gold bars. They would take it for safekeeping, and then they would later figure out if they wanted a percentage on it or they would want some fee on it. And that's how they became a repository for looted gold in the immediate aftermath of the war.
- 7.66 Counterintelligence corps, American counterintelligence corps, this guy William Gowen, picks up the evidence of this, lays it out in detail, in terms of memos. It goes back to Washington, the counterintelligence corps, and everyone says, "No, come on. Vatican? No, no, can't be true. You've got to be wrong. Forget about it." And the investigation essentially goes nowhere.

- 7.67 Now, an offshore bank in the heart of Rome. That's how it was described to me. So, we get out of World War II, and think about this for a second. That man is Paul Marcinkus. He's not a character; he's sort of a structural node for me in many ways. He's a monsignor. He's a 6'4" gorilla of Chicago, monsignor, who gets transferred over to the Vatican. He plays golf. He drives around in a big American car. He talks to everybody. He seems so vividly American. Nobody can quite get used to it.
- 7.68 When the new pope comes in, Pope John, he becomes pope in the early '60s, Paul Marcinkus is his bodyguard of sorts, and they go on a trip. Marcinkus is standing there, and once he stops somebody in the Philippines, lurching forward with a knife, and becomes almost heroic inside the Vatican. So he's a guy at the center of this. Now, what's fascinating is that there's a point at which the new pope decides, "I need somebody to run the Vatican Bank. Nogara is finished, he's old, he's done. I think I'll have Marcinkus run it."
- 7.69 Marcinkus doesn't know anything about finances. So he went over and asked a couple of bankers what he should do. He says he bought some books about finance so he would know what to do. But what he really did is, he decided, "I can't do it on my own. I have to rely on other people." So that's where you get the outside bankers in Italy who decide that they can help the church.
- 7.70 These guys like Roberto Calvi with the mustache, who's found swinging under the London Bridge in 1982, and Michele Sindona, who led the takeover of Franklin National in the US, one of the biggest financiers in Italy, one of the wealthiest and most dynamic figures who becomes the first of God's bankers— these two men come in to work with the church, but essentially what they do is, there's a socialist and left-wing government that takes over in Italy. Italy has a lot of governments over time. And they say, "We're going to tax dividends from stocks at a higher rate."
- 7.71 So Sindona, who's then the outside advisor, says to the pope, "They're going to tax you to death. Instead, let me take the money and let me put it into all types of property everywhere." And what happened is, Sindona became an operator. These bankers were able to do something that was really unique.
- 7.72 If they went into a business deal—and they were doing offshore deals, they were doing the equivalent of money laundering, Sindona gets mixed up with the Mafia at a later stage—the pope didn't realize, the Church didn't realize, that those guys would go out to do a meeting, and they would say, "By the way, I have some investors for this project, and I have the Vatican willing to put in money." So the people doing the deal would think, "The Vatican is involved? It's got to be kosher; it's got to be a great deal. The Vatican would not get involved unless it was a good deal." It encouraged money to come in, and they used it in order to have that. It reinforced the principle of how that money was coming in.

- 7.73** So they asked one time, Paul Marcinkus, years later, this football lineman who was a Catholic priest, when things started to break into a scandal years later, somebody said to him, "You didn't have many financial regulations in place. It didn't seem like you were watching things very closely." He had a great line. He said, "You can't run the church on Hail Marys." And I think that's true. Nobody had quite expected it to be like that at the time.
- 7.74** So, one of the things Marcinkus had was a very healthy appetite for risk. That might be good if you're a private investor and you want to build up a portfolio over 20 or 30 years. It's not a great idea if you're running the Vatican Bank. That idea for risk meant that he became the first director of a Bahamian bank that they brought him over to, so that he could sit on the board there. He didn't take any money himself. This is not somebody who was corrupt and was piling away money in the back. But what he was about was serving the church, bringing in money, and money was certainly coming in. And he turned a blind eye to the idea of whether these investments might be made in a shady way.
- 7.75** Think about one thing: if you're a wealthy Italian or a wealthy European, you've got a ton of money, you want to avoid paying taxes on it, how do you do it? You can't put it into an Italian bank or a European bank. It's going to get reported. If you're standing on a street corner in Italy and you have a suitcase of cash, of a million dollars, it's Italian authority, Italian jurisdiction, you're subject to what the Italians find out about it. You cross the street, literally the street, you're technically in a new country. You're in Vatican City.
- 7.76** And at that point, the million dollars disappears. It's no longer there. The Italians can't see it. They don't know what happened to it. They don't know if you deposited it, if you spent it, if you transferred it onto a Swiss bank, because it all remained opaque. The Vatican Bank is completely dark to the rest of the banking system, although it's able to transfer. It's the only one who sees the information come back. That's why I said before, an investigator described it as an offshore bank in the heart of Rome.
- 7.77** It's different than any other offshore bank, because normally, if you want to hide money, your money laundering or whatever, you have to go to one of these money laundering havens like Panama. You have to send money to the Bahamas. Maybe you're doing the Virgin Islands, you're going out to Liechtenstein, but it requires a transfer. The Vatican Bank is the only one that doesn't require a transfer. You can walk it over. You can drive it in if you have the ability to have that done.
- 7.78** The Battle of the Scorpions is an amazing period. The man standing there with the sash across him is Licio Gelli. He is a wealthy Italian businessman who becomes enmeshed with the Vatican, has a widespread reputation as a fixer, and runs an organization. He has apartments in Monaco, Buenos Aires, in Rome. Very, very devout. He runs an organization called P2, Propaganda Due. And it's not really Freemasons, but you have to belong to it. You have to get in. It's a secret organization.

- 7.79** When the Italian government eventually broke that outfit, they found out that it included former prime ministers, Italian generals, merchant bank heads, such a powerful group of Italian government that it was the equivalent of almost a secret government running behind. It also included clerics from inside the Vatican. Gelli has an inside track. See the picture with the three men there? So, one of them is Giulio Andreotti. He's sitting literally on the right.
- 7.80** Andreotti is Italy's most prolific politician. He passed away a few years ago. He was seven times the Prime Minister. Only a country that has so many dozens of governments after World War II can have one person seven times the Prime Minister. He was half a dozen times the head of the Defense Department. He had a power. He also had, we found out on his death, a bank account inside the Vatican Bank called the Cardinal Spellman Foundation. Now, Cardinal Spellman, for the Cardinal in New York, there was no Cardinal Spellman Foundation outside of the Vatican Bank.
- 7.81** Through that account, through a monsignor who had set it up, he had, over the years, run about \$60 million in cash. It operated as a slush fund to pay off other politicians, to buy jewelry for his wife from a Florentine jeweler, for a whole host of things that would have ended up. No one got indicted. No one inside the church ever paid a price. It was the cost. And what's the benefit of the Vatican doing it? Why would they do it? They're not necessarily making money off of it. But it was the same thing as what J. Edgar Hoover had a while.
- 7.82** When Hoover was head of the FBI, he was an obsessive collector of personal information about other people because he wanted to use it as a means of power. The Vatican, if they know that the current government has six people who are running the government, who also have secret accounts through which they're running slush funds inside the Vatican Bank, they may not pass laws to tax the church. They may not pass laws that are more restrictive. That power becomes something that is useful for them.
- 7.83** The Battle of the Scorpions leads, of course, eventually to Calvi. That's a picture of his body when it was taken down, from being cut down from under the bridge. It took after the passage of this pope in—you got the first non-Italian pope in nearly 400 years, at 58 years of age. He becomes the pope in late 1978, and John Paul II becomes a powerful figure inside the church. Why is he so important, John Paul II? He's important because of the following.
- 7.84** He becomes pope at a time when the Soviet Union is still in power, in which Eastern Europe is under the total lockdown of communist governments. As a Polish pope, he has a natural affinity to want to support Solidarity, the labor union movement inside of Poland that was trying to bring down the communists. Guess who was President, elected the year after? Ronald Reagan. They became soulmates, the new Polish pope and Ronald Reagan. And then Reagan said, "Maybe you guys can help get some money the CIA has and others, over to the Polish resistance." And the pope said, "No problem. We've got this guy, Marcinkus, running the Vatican Bank. We can do that."

- 7.85 And so, the Vatican Bank and Marcinkus became a key element in moving American intelligence money to Eastern Europe and to Poland. As a matter of fact, there's a scene I describe in the book in which they load up a small Fiat with gold ingots, and they send it up to Poland to be able to fund the resistance. And Marcinkus becomes somebody who gets briefed by William Casey, the head of the CIA. So they are in sorts. So the Vatican Bank, which has weathered all of these scandals in the '60s and '70s, is back in favor because it's now helping American intelligence.
- 7.86 Bill Clinton and Edgar Bronfman, Sr., head of Seagram, they go ahead in the mid-1990s, and they put together a report that tries to find the gold that was looted from Europe and the art that was stolen. They end up putting together a Congressional investigation, an international investigation, everyone else. They get all these countries. They get unprecedented help in terms of the countries providing the archives. They show where a lot of the loot went. They get a settlement with the Swiss banks. Every country contributed something, except for the Vatican. Vatican said, "Not us, because we're not responsible. We didn't support the bad guys. We didn't have any gold here. It's all just a farcical story." Nobody could prove otherwise at that time.
- 7.87 The next pope, in 2006, he comes in on the death of John Paul II in 2005. The next pope elected is a German pope. Very conservative. It turns out, after he's elected, it's disclosed that he had also been a member of the Hitler Youth, drafted into it. During World War II, he was old enough to be that. He becomes the first pope to visit Auschwitz, to make those amends for the Church in terms of what had happened. I think it was a very important part of what took place.
- 7.88 I thought that I was going to publish a book under that pope, that it would be Pope Benedict, and I would be talking about Vatican finances. I was so slow on the book that it turned out that this pope came in, Pope Francis. And before we talked about the fact, sometimes you get lucky, sometimes you don't get lucky, on what happens when you publish a book. You run into being on the news cycle, not on the news cycle.
- 7.89 I don't know if you remember, if you're not Catholic, you may not remember, but Pope Francis energized the church and a lot of international attention. He seemed like a fresh breath of air because he seemed franker, especially compared to Pope Benedict. And as a result, the media talked about the church more. And so, it turned out to be a better time to actually publish under Francis. And I thought, naively, "Oh, Francis, he's a reformer. So he'll let Trisha and me at long last into the secret archives." That's what they called them. They were called the secret archives. That's where the real history of the Vatican Bank is buried together, and it's never been released. They have no obligation to do it.
- 7.90 So I went to my local bishop for the parish that I'm in in Miami and appealed to that bishop to say, "I'm a Catholic. I've done these other books. I would like to get into the secret archives." He then, as I'll read here, so he sent it along to the bishop in Rome, who's responsible for access to the archives. And that Bishop, Bishop Vignano, writes

back to Bishop Wenski and says, "I acknowledge your letter. Thanks very much for your interest, for him and his wife to be here. We have it duly forwarded to the excellent Archbishop who runs the Vatican Archives."

- 7.91** Now, know what the answer to that was? "Are you crazy? You're not going to let him in here. You've got to be kidding." So what do we do? We end up going around it. It's the same thing you always do. Francis did one thing: he had to start to reform the Vatican Bank. So remember, before, I told you the Vatican Bank was completely closed. It's used for money laundering, mob, everything else. The stories are legendary. I've got just chapters of material in which you think, "Oh, my God, it makes Enron look like it's an easy corporation." Bad mismanagement, terribly done.
- 7.92** Then something unusual happens. In 1999—the church didn't realize it—Italy gave up the lira. Italy said, "We're not going to use the Italian lira anymore as our money. We're going to adopt the Euro." And the Vatican said, "Oh, wow, what are we going to do? We use the lira as our money." So there was a debate in the church: Should we make our own money, like Vatican money, or should we just use the Euro? So they said, "Let's use the Euro."
- 7.93** They didn't realize that, once they adopted the Euro, that it meant eventually Brussels was going to say, "You have to abide by the banking rules in the EU. You have to be transparent. You have to show the balance sheet. You have to show you have no money laundering. You can't end up as an F on the blacklist, as being a place that's bad to do it." So then the church thought of withdrawing. It was too late, but they let in these financial auditors who said, "It's not as bad as we thought. You're getting a C, but it could be worse."
- 7.94** They closed a lot of accounts that were open that existed for dead people. They brought in this guy who had cleaned up Liechtenstein. He was a Swiss German who is fantastic in enforcing the rules, and they let him go as far as they could without somebody pushing him off a bridge. He spoke to us when we were in Rome, and I'll tell you, it absolutely was indispensable in providing for us an inside view of what was happening.
- 7.95** *God's Bankers* ends up coming out in 2015. It gets reviews that I would have hoped it would receive, which is, "This is an eye-opening history of the finances of the church. It has nothing to do with Catholicism as a religion." Some of the best reviews I received, best personal notes I got, were from devout Catholics who sent me a note that said, "I read your book, and it just reminds me they're human. We're all human." There's nobody perfect. That's fine. It's not a question of faith at all; at least it wasn't for those Catholics who wrote back to me.
- 7.96** The reviews were great for that. "Dogged reporter exhaustively pursues—" That first line: "reporter exhaustively pursues—" Publishers hate the word "exhaustively" because they think readers see that and think, "Oh, no, I can't read a book that

exhaustively pursues it. I'm going to be tired reading it." I get reviews later on the pharmaceutical book. They call it "an encyclopedic review." Publishers hate the word "encyclopedic" in a review for a book that they hope to be able to sell.

- 7.97** But "a stunning exposé, an exciting mystery thriller, a tale of intrigue, money, and power that spans centuries, gripping reading, meticulously researched, a compelling story" — this is as good as you hope for in a book like this, that people are going to pay attention, find the story good. I love what Booklist says, "Proves more than up to this daunting challenge." I will tell you, you see the final book, you see the project, you read the book, and it tells this complicated long story of malfeasance and greed.
- 7.98** Trisha knows. She's the only one who was a witness to that, how many times during that project I would say, "I can't finish it. I can't do it. It's too much. I can't figure out how this fits together with this," because it really was a big—now, in the story, it tells a straight story. But figuring it out was really daunting. And there were times when—and I wasn't just being dramatic to her, because I know her response is, "Just go and do it. You're not going to finish it if you just complain about it." But that's not why. It's really because I did think there were times when I couldn't get through it.
- 7.99** Those types of reviews at the end: "deeply researched, passionately argued"— and this is my favorite line, the Chicago Tribune, this line from now 11 years ago is the pull quote that I have on anything that I do as a bio on social media or that. It says, that's Chicago Tribune: "deeply researched, passionately argued, Posner is a merciless pitbull of an investigator." Merciless pitbull of an investigator. Some people might not like that. To me, that was the highest praise. That was fantastic because that's what you want to be known as. "Pope revamps the scandal-wracked Vatican Bank. Maybe Pope Francis had read God's Bankers," says one article afterwards. I don't think the Pope had, but it would be nice to think they had.
- 7.100** Now, remember the other day I told you how Trisha had a book out called *The Pharmacist of Auschwitz*, that had no reviews and no publicity and no book tour or nothing else? And then by word of mouth, it became a bestseller after a year. This is what happens when the publisher gets behind you. I'm somebody who pays my bills by doing this, and I have to give credit when the publisher works hard. The publishers work hard sometimes to try to get you media appearances, so that you can talk about your book, so people can hear about it, and if they're interested, possibly buy it.
- 7.101** Sometimes they're able to do it and sometimes not. That is about as good a national book tour appearance as you could hope for, starting with people that really buy books, from NPR to Smerconish to Diane Rehm, and it goes on. They had a list of people to go out and talk to about that book. Bill Maher, again, and Jon Stewart, when he had his show on that period. And it did come in at The New York Times hardcover bestseller list. I will tell you something. I said this back then, twelfth book in 29 years at that point. The third time that one of our books made the New York Times. We made other bestseller lists, LA Times, Doubleday, others. This is the third time on The Times list.

- 7.102** Coming in at, I say, lucky number 13, in a crowded, and it was a very competitive field. It felt as good this time as a writer as it did when Case Closed got on the list back in 1993. So people that say to you, "I don't care. I don't read reviews. I never read reviews," I don't believe that. You do read reviews, and as Trisha will tell you, I only remember the bad lines. So, you all read reviews. You've spent all this effort, blood, sweat, tears, in essence, in trying to put out a project. You want to see what other people say about it. And they may not always be right, and it's always good when people are listening.
- 7.103** So what do I do? Of course, you know enough about me to know that I'm not just happy to end it there, so now I'm angry. Angry—is that the wrong word?—upset, stymied, that they will not let me into the secret archives. So I go to, first, the LA Times and I say, "Let me write an op-ed about opening up the secret archives, why that should be." I figured, if the church sees that in print, that'll do something. We ran this great op-ed in the LA Times, and it had, February of 2015, and no impact at all.
- 7.104** And then the pope, Pope Francis, was coming to Washington. He was going to meet with the second Catholic President, Joe Biden, and the head of the House of Representatives; the Speaker of the House was Catholic, Nancy Pelosi. I thought, "What a time. Two Catholic American political leaders meeting the Pope? Let's run an op-ed then." And we ran in the Washington Post. The Washington Post agreed to do it. If any of you have ever submitted an article for an opinion piece to a newspaper, I get plenty turned down. It's hard to get them accepted in the first place. It's even harder if you go back to them and say, "I'd like to do a variation of the one I did for another paper a few months ago," because they say that's old news. But they liked it. I did different. I called on the pope to release the files. Nothing.
- 7.105** So then, one last time, I was able to go back, this time to The New York Times, and run the piece again, and still nothing happened. Those files remain closed. That's what I've learned also about the church. It is a 2,000-year-old institution, and it does know that it can ignore the controversy of the moment, and it will go away. It survived the barbarians. It survived the sacking of Rome. It survived the period of World War II and the Nazis. It survived much worse than Gerald Posner asking it for the Vatican Bank files. So it's not much for them to be able to say, "No, we're not going to do it."
- 7.106** What does it teach you about nonfiction journalism? Even the most difficult institutions that aren't transparent at all can be reported on if you go around them well. You follow the money instead of the press releases, absolutely important. Rely on the courts, plenty of those documents, and you build your credibility slowly. There's a cumulative value to that.
- 7.107** I think the key is here, nobody finishes that book and says, "Oh, what a difficult book to get through," because you do tell the story in a way that's accessible, in which it seems simpler than it was to get. That's the key of telling it. So God's Bankers turned out to be a much more difficult book than ever expected, turned out to be interesting in terms of

the church and its history, but a fascinating glimpse inside money, religion, and politics.
Thank you very much.

Lecture 8: Following Money and Influence

At a glance — Following money and influence.

- 8.1** Welcome back. Thank you. So, after the Vatican book—by the way, one thing, thank goodness I say this all the time, I think, thank goodness for Trisha because she reminds me of things that I leave out, because I'm so focused on the facts part of the reporting and leave out some big part of the story, and I want to go back for one second to God's Bankers. And it's an insight into something in nonfiction writing. We talked about before, how you give your word to somebody if they give you a story, and then you're not going to disclose who they are, background only.
- 8.2** So we had somebody who was a layperson, not a cleric, close to Pope Benedict, very, very close, in a small circle of people, who had left the service of Pope Benedict. Pope Francis was now in, and he had a story about why Pope Benedict resigned. The resignation was unbelievable. Popes never resign; they die. And we wanted him to tell us that story, and he didn't want to do it. He had a wife and he had children. We met him in his apartment in Rome. We kept talking to him.
- 8.3** And finally, at one point, he said, "I'll tell you this story. I'll get it off and see how it feels. But if at the end, I say you can't publish it, you can't publish it." I said, "No problem," because the thinking is, once somebody tells you the story, they make the break. They hold on to it. And I've had this happen before. Then they finally let it out, and you have this discussion with them, and you get it there, and it feels cathartic for them. And then they say, "Go ahead and use it."
- 8.4** He told us a remarkable story that would have been the headline from the book. And then, after a couple of weeks, he said, "I don't want you to use it. I've talked to my wife and everything else. I can't do it. I just can't do it." We kept trying to get him to change his mind. But that meant that, when I was writing the chapter about Pope Benedict resigning from the church, I had to, if you look at the book, if you look at the sources, they all go to The New York Times, London Telegraph, BBC, NBC, whatever. They're sources about why the pope resigned.
- 8.5** I knew there was a much bigger story, and I couldn't write about it. That's a point at which you actually say, "I wish I'd never been told that." It would have been easier not to know it, because I know I'm delivering a story that's—not that it's inaccurate, it's just not as explosive as you might otherwise imagine. But that is the rule of journalism. I thought to myself, I thought of this a number of times, that that particular person was very—I've been fortunate many times in my life to be in the right place at the right time.
- 8.6** He was fortunate to be in the right place at the right time, in that he trusted a journalist who actually followed the rules, because he could have told someone else that would have leaked it to a friend at another tabloid or something else. And then when it was

published, said, "I don't know how they found out about that." And there was no way for me to independently confirm it. So, unfortunately, I mention that as one of the pitfalls, and thank you, Trisha, for reminding me of that very frustrating part of the story.

- 8.7** So I thought after God's Bankers, and the inability of getting into the secret archives and everything else, and talking about an institution that wasn't very transparent, let's take an easy one. Let's go after the pharmaceutical industry. I mean, that should be a piece of cake. Let's go after an industry that not only isn't transparent, but is politically connected, affects most people's lives, has a ton of money, is legally sensitive, and I don't really know what the story is, other than the pharmaceutical industry. So I went to my publisher, and they said, "Okay, if you're crazy enough to want to do it, go ahead and do it and come back with a good story."
- 8.8** Now, something else that you may want to know, and I don't think we've mentioned this before in nonfiction writing, if you publish your own publication, you put it out, self-publication, no problem, you can publish it. If you go to a traditional publisher and you sign a contract, and they give you a little bit of seed money up front to help pay the bills as you're going along, there's a clause in every contract.
- 8.9** We talked before about contracts. I'll tell you about publishing contracts. The language never changes. You have to turn in a manuscript by a due date. The date is in there. You can ask for an extension if you're running late, but the dates are good because they keep you on track. I work great at a deadline. But that manuscript that you submit must be satisfactory to the publisher in their sole discretion.
- 8.10** So that means that when you go off and work for two to three years on a project, and you have to give them the money back that they've given you already, if they say that project's no good, you can go out and sell it to another publisher, but then you have to refund the money to them that they've already paid you. So, one of the risks is that the publisher is out a little bit of money while you do this research, but they're really not out—they're under no obligation to publish what you come back with.
- 8.11** Now, I've never had a situation in which I've delivered a story, and they've said that's not adequate. I've always been confident enough that I will come back with a story that they'll say, "Wow, that's great. We want to publish that." But that's always the risk. And that's why, when they say, "Go out and find a good story and come back to us with it," they get to say yes or no. The only time you run into risk on that type of contract is if the situation has changed so much that the story that they originally signed up no longer has any meaning for them. And then they say, "No, sorry, it's a stale story."
- 8.12** So, that was the story with the Vatican. I went to them and asked them if I could go ahead and do it. And that was the cover of Pharma. Pharma, by the way, is not—just like I said to you before, God's Bankers is not a book about religion, this is not a medical book. So that's the good news. It is a book about—it's not a health manual. It's a history

of how a powerful industry shaped science, regulation, what I call public perception. For Journalism 102, the story of this is to follow the money, and then you get an idea of the pharmaceutical industry.

- 8.13** By the way, last June, June of 2025, I got an invitation, which was very nice, I'd never been to before, to go to Oxford University to participate in a debate on the pharmaceutical industry. I went over there, and I was arguing the position against a former head of the FDA and the former chief medical officer for Pfizer, that profits should be not taken out completely from Big Pharma, but reduced so they are not price-gouging as much.
- 8.14** I forgot, until I went to the UK—because we hadn't been there in 24 years since Trisha's mother died, the last time was then—that when we would go to the UK and turn on the television and watch a show, the one thing missing every time there was a commercial break is I didn't have any Big Pharma ads. I didn't have to hear about the latest, greatest thing for diabetes or what was going to [help] lose weight or what was going to work for eye vision or that.
- 8.15** Sometimes, although we can record a show or skip commercials on YouTube, I just watch a program and look at those ads, and I can't believe how much is done. You may not know that the United States is only one of two countries in the world—the other one being New Zealand—that allow pharmaceutical companies to advertise directly to patients. Direct-to-consumer ads, passed in 1997 under the Clinton administration, by the FDA and the FTC.
- 8.16** The interesting thing is, and we'll talk about how this happens, how the guys who come in who do this, they said essentially—they were very smart—they said, "Oh, we're an unusual business, by the way, drug business, because we really don't sell directly to consumers. We sell to doctors. Doctors then have to prescribe it." Doctors really don't know anything about pricing. So a doctor gives you a prescription, they don't know what your insurance is; they don't know if you're paying a large copay or a small copay or whatever it is.
- 8.17** So, we used to convince doctors to prescribe the latest and greatest. But why don't we advertise directly to consumers, and that way, they will go to their doctors and demand the latest and greatest? You wouldn't think that would work, but it did. The very first ad that was like that, by the way, that ran in '96 and '97, was for an allergy pill, Claritin. And I don't know if anybody remembers it, but it showed two people, a couple, running through a field of flowers.
- 8.18** Now, the rule is, that they passed, by the way, when they did this—and I'm jumping way ahead—they said, if you run an ad directly to consumers, you have to list the side effects. So that's why at the end of almost all these ads, it says, "It can cause high blood pressure and blindness and possibly death," because they realize that they list so many

side effects at the end that people tune out. They know it's a laundry list of the worst possible things. They're focused on the first part.

- 8.19** But if you don't say what the drug is for, you don't have to list the side effects. You would think, why would you possibly not say what the drug is for? Claritin didn't say what it was for; it just showed people running through this field. I remember when I saw it back at the time, I thought it was for an antidepressant, because it looked like they were so happy or that. It turns out, it was—and so, people were saying, "What is Claritin? What's it for?" It got more buzz from that and started the field for advertisements. So, it was nice going to England and realizing no Big Pharma ads.
- 8.20** So, part of this story to understand the drug industry today is to understand its origins. Let me tell you something: it's a fantastic story, I think. So, this story begins around the time of the Civil War. Two German American cousins started a small little laboratory inside of Brooklyn, and they called it Charles Pfizer and Company. And the reason they started it, they borrowed \$2,500. They had \$2,500 in savings and \$1,000 that they borrowed.
- 8.21** And they succeeded because the Civil War was causing a demand for morphine. Of course, battlefield injuries, pain—the one drug they knew that worked was morphine. There wasn't enough of it being produced. So Pfizer expands in the middle of the Civil War, a year into the Civil War, to manufacture one product: morphine.
- 8.22** Pfizer's competition: Edward Robinson Squibb. They opened Squibb and Sons, a pharmaceutical manufacturing plant, also in Brooklyn. And he was aware, personally—he had been a doctor for the US Navy, and had seen morphine arrive at the battlefield scenes, and it was adulterated and didn't work for the soldier it was given to. So he knew about the importance of high-quality morphine. So Squibb and Sons start to go into competition with Pfizer. One product: morphine; big demand, Civil War.
- 8.23** Wyeth. John Wyeth starts a company around the same time. His product, again, manufacturing of clean morphine, so you have Wyeth in there. Eli Lilly, a chemist. He missed the opportunity to start up in the Civil War. He was upset by that. He was a Union colonel, but he knew also how important morphine was. He starts his laboratory in 1876, does a number of products. The number one seller for him are painkillers with a morphine mix.
- 8.24** Bristol Myers. Heard of the company? Same time: 1887, John Myers and William Bristol, they're two investors. They put up \$5,000 each with some fraternity brothers in a failing drug manufacturing business. They bought it, they renamed it their own. Morphine was not their biggest seller. Their biggest seller was actually a laxative mineral salt, and that was their number one product that they were able to turn out.
- 8.25** Burroughs and Wellcome, one of the big names later on. Morphine was the most effective painkiller, but the head of Detroit's health department, this guy, Dr. Samuel Duffield, he sold an ether and alcohol preparation that also put patients a little bit away

from their pain. That product was what they ended up putting out at Parke-Davis. Two investors, Hervey Coke Parke and the company's 26-year-old salesman, George Solomon Davis, incorporated Parke-Davis.

- 8.26** Their big hit in just a year and a half was a product they put a patent on called adrenaline. You think, how can you have adrenaline? Adrenaline is a natural product. They got the name. So every drug company in the future, ever since that, has the equivalent of adrenaline that's given to somebody to try to save their life or that has to call it epinephrine. Only Parke-Davis had the right to call it adrenaline, one of those little moments at which they lock up a name.
- 8.27** Two other American pharmacists, Silas Mainville Burroughs and Henry Solomon—Burroughs and Wellcome, they saw the opportunity, but they said in 1880, "God, there's so much competition here in the US for this market. Let's go to Britain." And that's what they did. And they moved to Britain. They opened up Burroughs Wellcome in Britain. So these aren't just names. These are the industry leaders that we think about: Eli Lilly, Pfizer, Burroughs Wellcome, Parke-Davis. These are the companies that held on 150 years later.
- 8.28** The question is how, because they didn't have many products. You know what their competition was? Competition back here was easy. There's no AMA. There's no certification for doctors. You can hang up a doctor's—in the 1800s—a doctor's line and say, "By the way, I'll treat you." There's no prescriptions required for any medication at all. There's no medication that's banned or outlawed, and that includes everything from morphine to amphetamines to cocaine. Everything's available to sell.
- 8.29** They're put into what are called patent medicines; they weren't actually patented, but they were sort of what you would have—the absence of any regulations, and they're really snake oil salesmen, selling cures. So you would get laudanum, which is a tincture of opium, codeine, and morphine. You didn't know what was in it because they never listed the ingredients.
- 8.30** Dr. Seth Arnold's Cough Killer, that was essentially 40% morphine. Vin Mariani, one of my favorites—a French chemist said that his drink would restore vitality and energy. What it was: red wine with 7.5 milligrams of cocaine per ounce. And Mrs. Winslow's was 65 milligrams of morphine in ammonia water. And you went on, even to the point where you would find cocaine toothache drops that would numb your mouth enough. Everything sold over the counter. You never knew what the quality was. This was the competition for the people who would come into the business.
- 8.31** Now, Kopp's Baby's Friend. Parents were particularly susceptible to these pitches about these drugs. That's because, at the turn of the century, as we get to 1900, I know this to me is a shocking statistic: 20 % of all children did not survive past the age of five, so a high death rate. So they're worried always about that. They're susceptible to things that say it'll make it better for your children.

- 8.32** How did the company Kopp's Baby's Friend become one of the biggest selling patent drugs in America? They had a team of workers checking the birth announcements in local newspapers. When they would find an announcement, they would send an actual letter by snail mail to that family, saying, "By the way, you should try Kopp's Baby Soother because it will take care of your baby having cough and staying up at night." It was one-third pure morphine. It also caused deaths of people.
- 8.33** The largest mail-order catalog in the country, Sears & Roebuck—which I suppose, for lack of a better analogy, is the Amazon of its time; people went to Sears & Roebuck to get things—they sold that for \$1.50. You could get Sears & Roebuck, a hypodermic syringe, a Scottish doctor had invented it only like 20 years earlier, and a small amount of cocaine, for \$1.50. That came from Sears & Roebuck. Nobody thought anything bad of it. They just figured this was the way that the drug business operated.
- 8.34** And then Bayer—oh, folks, you can't make this up. Why people have not written about this before, I'm not sure. But anyway, sorry to get— So Bayer, which was the leading drug company in the world at this time, over several years, from the 1880s to 1903, their team of scientists revolutionize the drug business. They first come up with phenacetin, they develop it in the lab. Then they come up with aspirin, which really was a wonder drug in many, many ways. So they have phenacetin and aspirin.
- 8.35** In 1898, they develop a stronger narcotic that will be a painkiller. And they name it after the German word for heroic, "heroisch," heroin. And they market it under the trade name heroin in the United States. You could go in and buy it over the counter. What was it sold for? As a cure for morphine addiction. It's fantastic. I know we laugh, but it's hard to imagine. It would cure morphine addiction; you now have a heroin addiction. And it was also sold as a children's item to soothe coughs. Of course, it would do that. So, heroin. And then in 1903, the same brilliant labs invented the first real barbiturate, and they named it barbital; Veronal was the product it was put under.
- 8.36** One little footnote on Bayer, very, very quickly. The fellow at the top is Arthur Eichengrün. He was the head of the Bayer lab that discovered aspirin, didn't do heroin and barbiturates. Then Bayer puts out an official history in 1934 when the Nazis are in power, and somebody says to Bayer, "Hey, that guy, Eichengrün, he is a Jew. Let's leave him out." So they name his assistant as the inventor of aspirin. It took until 1999 for a Scottish bacteriologist to go back through the history books, figure out what happened, and give him credit. So I love the fact that it took over four decades for the truth to come out, but sometimes the truth can come out and still be pretty good.
- 8.37** Now, into this Wild West, and it is a Wild West of drugs, comes this group. Those are government regulators. That's what government regulators looked at the turn of the century, a little bit different than they do today. That's Harvey Washington Wiley. He's the one second from the left, the shorter with a mustache, and he's holding his hand in front of his suit. He was a crusader for taking additives out of food. That was his big mission. That is the Bureau of Chemistry that he was working with.

- 8.38** He decides to go ahead, and you could put anything in as a food preservative that you wanted to. It didn't matter. You didn't have to disclose it. So Wiley comes up with a thing that he says is the Poison Squad; that's what it's called. He would get volunteers to come in. They would eat food that he would add preservatives to that were on the market, and then he would see who got sick. That finally stopped after one died. But it was the idea of finding out if some preservatives should die.
- 8.39** A book was written by Upton Sinclair called *The Jungle*. That book was a novel. But in there, there are ten stomach-wrenching pages about the meat stockyards in Chicago, and it was enough to cause an uproar in the country. People read that and said, "That's what they're doing with meat?" And it led to the passage of, eventually, this act, the progressive era, the 1906 Food and Drug Act.
- 8.40** So, think about this: until 1906, there had been no regulation in America of what you could market for drugs. Now they pass the thing called the Pure Food and Drug Act. Congress acts; they step in for the first time. And what do you think that act is? It says you cannot put anything in a product unless you list it on the front. But if you list it, you can put it in. So if you have heroin in there, you have to say it. If you have morphine in there, you have to say it. If you have cocaine in there, you have to say it. But then it's legal.
- 8.41** The first big lawsuit the government brings under the Pure Food and Drug Act, hard to imagine, is against Coca-Cola, because they said, "You do not say that you have the cocoa bean and a little bit of cocaine in there." Coca-Cola defended itself, said, "We have taken it out of the secret recipe long ago." They won the suit. Of all the things that were marketed at the turn of the century that could kill people, with heroin, cocaine, and morphine, they went after Coca-Cola. But that was the government's first option on it.
- 8.42** In 1909, Moody's, the company that ranks corporations in America, Moody's ranks companies for their worth, had their first listing of American companies. That's when Moody's came out. And guess where the pharmaceutical industry was? It didn't exist. It wasn't listed as a separate entity. It was so tiny that it didn't rank as an American industry. It was a subset of the chemical industry.
- 8.43** So, we think today of Big Pharma, and it is one of the most powerful and influential industries around. But it's hard to imagine that just over 100 years ago, when you're looking at the American corporate structure, it didn't even register as an industry that had any size or influence. The only thing that happens is, in 1914, the government passes a law called the Harrison Act, which bans narcotics. And so overnight, these companies have to go cold turkey, to use a bad expression. They have to stop using opium. They have to stop using morphine and heroin and cocaine. All of those products have to come out.

- 8.44 And what happens is that they really don't have any products left. As a practical matter, they go into this great stretch of wilderness in which they've lost the power of the addiction, because that's what those products were. The core genesis of the industry—think about this, when we get later to diet pills and amphetamines, and we get to OxyContin and the Sacklers, and we get to all of the issues that have been such trouble for us in modern times, that the origins of the industry were in addictive drugs. That's how they got their start. They understood that. And then they had to give that up after 1914.
- 8.45 There was one big discovery in 1922 with insulin. That was big. The two Canadian researchers come up with insulin. Fantastic discovery. And boy, did they learn a lesson. You know what? They sold the rights to insulin for a dollar to Eli Lilly. Eli Lilly put a patent on that and kept extending that patent for 40 years and kept insulin prices high. That'll teach those Canadian researchers to think that they should just give away something because it's for the public good. Americans knew how to make money on it right away.
- 8.46 And then here's what changed the industry: penicillin. Penicillin, and I want you to think of it in terms of later what happens with COVID, but it transformed the drug industry. You had Alexander Fleming. He is a bacteriologist who's working out of Scotland. He takes a vacation, he comes back, and he sees this mold growing on some of his petri dishes, and he thinks that's odd. And he names it *Penicillium* after this Latin word. He tried to do some experiments with it, but he really can't do anything. He thinks it could be something that could destroy bacteria, possibly, because that's what it's doing in the laboratory.
- 8.47 And then nobody does anything with it. And then, as World War II gets underway, a group of researchers at Oxford, these three guys underneath, they take up that research, and they say, "Hey, if penicillin could really do something, then it could save tens of thousands, hundreds of thousands of lives on the battlefield. The battle is being fought. Maybe it could stop infections from soldiers who get shot. Maybe it could stop and save people. Maybe it could be that, but we need a crash program."
- 8.48 In England, they were already at war. 1939 on, they had no money for it. So these researchers came over to America, and they said to the American government and the pharma companies, "You know what? Help us out. Put some money into it. Can you make this go?" And very few people know this. It's not a secret inside the drug business, but it's not well-known with the general public, and that is: we know that the government had a massive crash program to develop the atomic bomb. That was their number one project. Right behind it in terms of money and secrecy was the penicillin project.
- 8.49 They were putting in big money into the penicillin project, and they asked 10 pharmaceutical companies to become partners. Twelve came in. What the government did was build out these enormous fermentation tanks. It built out these manufacturing

facilities for these companies. So, if they got to manufacture penicillin at scale, they could turn out enormous amounts, which they did by the end of the war, and they saved countless number of lives.

- 8.50** Now, here was the catch: the government said, "We're investing all this money in it. We're putting it all in, and no one's going to own the patent. None of you can go ahead and patent this drug," — because that's what drug companies like to do—and sell it exclusively. "You're all going to have the rights to the— you're going to compete on price." And you know what? Prices dropped, prices plummeted, and they started to look for something else. But that was the way the government funded it.
- 8.51** Of those companies that joined that program in 2005, 60 years later, eight of them were still the largest companies in America. They got their start from the penicillin project. It gave them an advance in terms of the infrastructure over anybody else in the industry. And that project was enormous. The government, "Thanks to Penicillin, He Will Be Home," "A Race Against Death!" "The faster the building is completed, the quicker wounded men get penicillin," "Save Soldiers' Lives!"
- 8.52** Want to know the difference World War II made? In 1939, the start of World War II, German pharmaceutical companies like Bayer wrote one out of every two prescriptions in the world. They had half of all the business. After World War II, the German pharmaceutical industry had been flattened by bombings in Germany, and the American companies that had been distant players before the penicillin project, after the war, by 1950, they had 80% of all drug sales in the world and 90% of all the profits.
- 8.53** You never have seen a change in a short amount of time as that. The country that has the domination goes to war, loses, and its industry gets wiped out; the American industry has the penicillin project and is able to step in and move it. And what makes the difference? It really is that all of these companies ended up saying, "Okay, we can't patent penicillin. I get it. So we'll have to patent a variation of it," what they call like a "me-too" drug, a little bit different. Streptomycin, Tetracycline, other antibiotics, and each own their own patent on it, and then they were able to sell it at much higher prices. And they convinced doctors, "Oh, don't just give it for penicillin. Try the latest and newest drug."
- 8.54** Into this mix comes these three guys. Now, the Sackler brothers didn't invent powerful drugs. They perfected the art of selling them. Through medical education and funding research, they revolutionized the business. Arthur Sackler, who's in the middle, and his two brothers Mortimer and Raymond are psychiatrist brothers.
- 8.55** One of the things interesting—I'll show you how things change, how many times have I said to you that when you start a project, you don't know where you'll end up? I look back at my book proposal to Simon & Schuster for Pharma. I don't know if the Sacklers were mentioned, or if they were, they were in a paragraph. They become the narrative spine of Pharma. They're the story through which I tell the industry, because when I

started the book, I thought they were just OxyContin. I thought they were Purdue. What I didn't know is that this guy, Arthur Sackler, came in and started a medical advertising firm in the 1950s and said, "By the way, I can change the way you sell drugs." And he did, because he decided you could sell in a different way.

- 8.56** "Medicine Avenue"—they gave him an award for it eventually, instead of Madison Avenue. The Medical Advertising Hall of Fame. Arthur Sackler, as they said to him, "brought the full power of advertising and promotion to the pharmaceutical industry." Now, one of the things that I found out while I'm doing the work is, I'm asking for Freedom of Information files. I'm always asking for those from the government. And guess what? It turns out that they're in the course of a drug investigation, back in the early 1960s.
- 8.57** There's a memo from one of the investigators that said, "I heard about these guys, the Sackler brothers. It looks like a Sackler Empire. I think they're doing all this work behind the scenes to create these drug sales and marketing that really aren't allowed. They're pushing against the edge." They never had the ability in that investigation to look into the Sacklers. They were too far down the totem pole, even though Arthur Sackler was called before the Senate.
- 8.58** Something else I found out—doesn't change the drug industry, but I always thought that this was fascinating—the Sacklers turn out to be card-carrying members of the American Communist Party, which is very interesting in the 1950s, at a time we were in the middle of the Cold War. Being a member of the American Communist Party, remember, there was a blacklist in Hollywood. People were being blacklisted for having an association with somebody who was a Communist.
- 8.59** The Sacklers were card-carrying members. They didn't advertise it. But if you got blacklisted in a business, as a writer or a screenwriter or anything else, Arthur Sackler would hire you to write PR and advertising copy at his medical firm, and bring you over there to do some work for clients. And so, they were investigated. They lost a license. Two of the brothers were working in a government institution. They had their security clearance stripped from them.
- 8.60** The FBI investigated the Sacklers on and off for 20 years, as to whether they might have been associated with some spies from the Soviet Union, and concluded in the end, they weren't. They were just hardcore leftists. But very interesting to me, that the person responsible for bringing the ultimate dose of capitalism to Big Pharma is somebody who you would think would say, "No, that's not the right thing to do, because I believe in health for the people." It wasn't working then.
- 8.61** Tracking the Sackler companies. I'll tell you: I was determined on this, and it was difficult to do. So, how did you end up doing it? I did it like this. Trisha, thank you, let me use a whole wall in our small apartment—it's a small apartment—to put it down as a whiteboard. And I needed a ladder because I'm not tall enough. Maybe if I was as tall

as Larry, I wouldn't need the ladder. I could get up there. But I had to use a ladder at times, and I would come up and I would get another piece of information I would get, and disclose files that would come in from London.

- 8.62** We were looking through papers because the Sacklers, from the '50s on, had been fantastic at disguising all of their entities. So you would have a promotion being done for a specific pharmaceutical company, and you would think, "Oh, that's interesting. They're doing research on brain research." You'd have no idea it's owned by Arthur Sackler, who's doing the work for Pfizer over here.
- 8.63** One of the ways that we put it together is the old-fashioned way. I noticed that the same telephone number started to pop up for some of the corporate listings for the companies. And that telephone number tied to an address in New York City, 15 E 62 Street. Then there was another telephone company, 17 E 62nd. Turns out those were owned by the Sacklers, and they operated all the businesses out of there. They didn't think, I guess, that anybody was going to go ahead and put it together, and they were right for a long time. It took a long time to be able to do it.
- 8.64** But there is—when ownership is deliberately fragmented, when they're trying to hide it, it makes the task of uncovering it more difficult. But I'll tell you, you know this is a start. They aren't doing it because they have nothing to hide. They're doing it because they do have things they want to hide, and what they wanted to hide was the conflicts of interest. They often had a conflict of interest with another study they were doing that they were sponsoring, and they wanted to make sure they looked like they were independent companies that were doing it all.
- 8.65** They had two people helping them: Ludwig Wolfgang Fröhlich, who was on the left, and Félix Martí Ibáñez, who was on the right. They came over, they were advertising people, and they worked with Sackler, and they really helped to make the competition of advertising inside the business work on steroids. Ludwig Wolfgang Fröhlich, the fellow standing there, interesting story because he came to the US in 1935. He meets Arthur Sackler the next year.
- 8.66** He was German; and as the war started, there were rumors that maybe he was a Nazi or that. He joined two country clubs, one of them in Palm Beach that didn't allow Jews in, and so that was sort of a mark that there was something wrong. It turns out, in fact, he was Jewish and gay and hid both of those things for a long time. In the 1950s, you didn't talk about it, but he hid them so well that people actually thought he was a Nazi. But he was Arthur's partner and was very, very savvy at being able to push this forward.
- 8.67** Now, what happens? The executive monkey. You can't make this up. In 1958, the Walter Reed Army Institute of Research conducted two years of experiments with monkeys. They strapped them into these devices, like these glass contraptions that allowed limited movement only of their heads and arms. They would zap one monkey with an electric charge every 15 or 20 seconds. And the other monkey had a little bit

more ability in the arm. If it pressed a lever, it would stop the electric charge coming to both of them.

- 8.68** Well, monkeys are pretty smart, and they learn that pretty quickly. So over time, the monkey that was called the executive monkey, making the decision, would press the lever more regularly to stop the shocks coming in. Well, the army didn't do this once. They did this experiment, as gruesome as it is, dozens and dozens and dozens of times. When they did autopsies on the monkeys afterwards, the monkey that didn't have to pull the lever, they would find nothing unusual in terms of abnormalities on the autopsy. The monkey that pulled the lever, the so-called executive monkey, would have ulcers, would have thickened coronary, a little bit more problems around the heart.
- 8.69** So, they concluded, Arthur Sackler did, he took that information and he said, "That's how we're going to sell medicine, in the 1960s. We're going to explain that men are the executive monkey. They're the ones who have to go out and earn the money and earn the keep, and they go to work, and all of that stress, they're under constant stress, pays off in heart attacks and ulcers. And women, they're the non-executive monkey. We're going to have to treat them for hysteria and craziness and just general nervousness. We'll be able to do it."
- 8.70** And you know what? As crazy as you think that is, guess what? Hoffmann-La Roche, the Swiss drugmaker, comes out with a drug called Librium, and they put a patent on it. Then they come out with the number one drug in the country. Then they come out with a competitor for it three years later, Valium. And guess who they choose to market it? Arthur Sackler. Sackler takes it like meat. He makes Valium the number one drug in the world for 15 years. It is unmatched in terms of its sales.
- 8.71** And what happens is, he makes it part, he sends in a number of things. The birth control pill is approved in 1960. It's the first pill ever that is a lifestyle drug, not approved for a sickness. It was a big decision at the time. It was very controversial. You're not treating somebody for an illness; you're giving them a lifestyle choice. Does it get approved? It did get approved. Then Milprem, which is sort of an antidepressant; it's a two-dimensional medication. You'd like the tagline in that ad, that menopause is a two-dimensional problem; Milprem is a two-dimensional solution.
- 8.72** Ritalin. You need a little stimulant? You want something that will speed you up, so you can be better with your baby? That'll be it. Butisol, that works as an antidepressant. "Daytime sedative for everyday emotional stress," targeting only women. Women are always the targets in those ads. Dexamyl, that's fantastic. That's a stimulant. You know what you need that for? You can do more housework. Now, these ads are so old-fashioned, sexist stereotypes. You think to yourself, "They can't work." But remember, this was a time when 95% of the doctors in America in the early 1960s were men and were more susceptible to think, "Oh, yeah, maybe that could actually be the case."

- 8.73** One of his most successful ads, he ran time and time again for Valium, was a fictional woman, 35, single, and psychoneurotic. She had started out with a relationship close to her father when she was a kid. She graduated, she had boyfriends, she dated different people, never was able to find anybody, couldn't get married. So here she is single, she's 35, she's a spinster, and she's psychoneurotic. And what can help her? Valium. You think to yourself, it can't really work that way, but two-thirds of all the prescriptions for Valium were written for women at a time when you wouldn't think it's the case.
- 8.74** And what happens in 1966? There's a book put out by a gynecologist in New York City, Robert Wilson, *Feminine Forever*. Trisha actually wrote this in a book she did in 2000, called *This Is Not Your Mother's Menopause*, about going through menopause without prescription drugs. Robert Wilson wrote a book that said, "Menopause, it destroys you. You go through menopause, you lose your sexuality, you lose your vitality, you become shriveled up, you're terrible, your life is over. I saw it happen with my mother," he says. "My mother became a shadow of herself. And now we have a solution for it, hormone replacement therapy."
- 8.75** At that time, hormone replacement therapy was 10 times the dosage what estrogen was now. Nobody knew that Robert Wilson was subsidized by Wyeth, who was making HRT, that they paid for his office, that they paid for him to go on gigs, that they underwrote the book, that they gave him money. And when his own wife developed breast cancer—we found this out years later from his son— they, as a family, decided to keep it a secret because they thought it could be bad for business, for hormones.
- 8.76** It took 10 years before the federal government held congressional investigations to show the levels. They were getting reports at the FDA, and I talk about this, about blood clots, about people having fatal side effects from the dosage of HRT, and they said, "Those are anomalies." It took until there were several thousand of those reports before they opened a Congressional hearing and finally decided that the level of HRT—they had been using women essentially as guinea pigs in this long process.
- 8.77** And meanwhile, what Arthur Sackler does over a period of time is, he really puts, I say, Valium into the public mind. "Valiumania" is what The New York Times called it. "Valley of the Dolls." Remember those types of books from Jacqueline Susann? "Sweet, refreshing valium." "I'd rather take that pill." The Rolling Stones' "Mother's Little Helper" even became part of a pop song. So Arthur knew that if you make a drug seem accessible and easy and low-risk, people are more likely to try it. You make it part of the popular medium, and you're more likely to sell prescriptions, and that's what happened.
- 8.78** The Sacklers, though, were very clever, even on—one sidelight here to what happened. In 1969, Apollo 11 went to the moon. And believe it or not, NASA was worried that maybe the astronauts would bring back some microbe that would invade Earth and kill everyone on Earth. Michael Crichton had done a book just a little while before called

The Andromeda Strain, about that very same type of idea. So Sackler heard that they were worried about this at NASA, and he went to them and said, "Hey, guess what? We, at Purdue Pharma, own this product called Betadine. And so, why don't you take Betadine up to the moon? And when you come back, have them scrub the raft and their suits before they step back out on Earth."

- 8.79** And they did that. He got millions of dollars in free publicity. Apollo 11 splashed down, NASA selects Betadine to help save the Earth. Sackler knew in every instance how to be able to do it. Betadine cost them cents a gallon, and they were selling it to the US at nearly \$100 a gallon at one point. So they knew how to turn a profit.
- 8.80** Now, from hospice to OxyContin. So one of the things I say about the pharmaceutical industry is, I don't want you to think—you're hearing the greatest hits about the bad players. There are some good players. There are people inside the labs really working to try to come up with cures and benefits. It's the people often in the marketing department who take it and then run it a little too hard. The fellow Jonas Salk, who invented the polio vaccine, when asked who owned the patent, said, "Who could own it? It's like owning the sun." He didn't want to own the patent, just like those Canadian researchers did. But he was unusual. Most American companies made their money by owning that patent and charging an exclusive price.
- 8.81** So what leads us to OxyContin is a good intention. Cicely Saunders, that British woman, was a nurse, and she worked inside cancer centers in which, at the hospital, she saw people dying, in their last weeks, this horrible and painful death. And family would come in to visit. And she had the idea in the early 1960s for hospice. Why can't we create something where patients go home, they're in their home and they're treated and they can be with family, and it's a little bit more compassionate?
- 8.82** The reason you couldn't do hospice is because the pain relievers at the time, which were essentially legal heroin, would only last for 4-6 hours. They had to be dispensed regularly. So her quest was, she said to a British physician, "I would like to come up with a long-acting painkiller, one that lasted long enough that we could send patients home." He said to her—I love this—"No one will listen to you. You're a nurse. No one pays attention to nurses." So you know what she did? She went to medical school and became a doctor. I love her. She is really good.
- 8.83** So she became a doctor, Cicely Saunders, and then she asked all these British companies, to go ahead, [Smith & Nephew] and others, to go ahead and try to create a long-acting painkiller. The company that came up with it, inside, Napp Pharmaceuticals inside of the UK, wrapped an invisible polymer coating around the delivery of morphine, like an extended-release aspirin or Tylenol that you'll get that goes off slowly. They were the first ones to do it for morphine. It lasted 8 to 12 hours.
- 8.84** That company was owned by the Sacklers. People didn't realize that the Sacklers owned Purdue, but they also had that British company. So they were the first ones to

provide that type of care. And in 1996, it comes over to America. The Sacklers at that time—Arthur is dead, he's passed away— they decide, "We don't want to put out a time-wrapped morphine, because the public has a very bad idea of morphine; they think of morphine as end-of-life stuff. No one's going to buy that. Let's put something else as the ingredient inside."

- 8.85** So they went to oxycodone. They ended up putting it, and they called it OxyContin. And it represents to me the culmination of decades of practice. It's a drug designed to treat extreme pain. That sort of sounds like morphine during the Civil War. It's addictive; there's no question about it. And in the Civil War, it's marketed liberally because anybody could get it. Here, Purdue would push the boundaries of what it could be applied for.
- 8.86** Over a period of time—and I go through in detail in that book—one of the things that happened is, we talked before about meeting Raoul, a person accused of being the mastermind of James Earl Ray and how it had devastated his family and how upset he was and how emotionally turbulent that was. There was nothing more upsetting and discombobulating than meeting the parents who had lost children to OxyContin over a period of time.
- 8.87** They became our allies. They became our friends. They became people who we felt pain for when there was the anniversary of one of their children's death. And they felt as though that drug had been pushed extensively. We later found the evidence of how the drug distributors like Cardinal Health and others, they would know when five million pills were sent to a little town in Kentucky that had 3,500 people. They would know they were being diverted. The diversion was wide. They would ignore that back at Purdue.
- 8.88** They would understand that it wasn't supposed to be used for osteoarthritis because it had proven ineffective for that; it's only being used for extreme pain. The salespeople would go out and still tell doctors with a wink and a nod, "Don't forget your arthritic patients." They were prescribing it for back pain. Where did they sell it first? Where did they go? They went to Appalachia. They went to the hardest working areas, where people really have extensive pain from hard back-breaking work. And they said, "This is better than anything you'll ever take it and allow you to work longer than ever."
- 8.89** So the marketing of OxyContin from 1996—there is in 2007, there are reports, there are stories about it and how it's being abused. Federal government brings an action against Purdue, and they have to pay money, and they have to sign a consent agreement that says, "We won't do all that bad practice anymore." 2007, it's over. If you asked me the week after that consent agreement was signed, I would have said to you, "They're finished. They'll go on to another drug soon, but OxyContin won't do." And guess what? They just kept doing the same thing. They didn't mind at all.

- 8.90** And so, what happens from that point on? Well, I'll read you a list. You know, I read you a list before of everybody getting married or having an affair inside Motown? It required a laundry list. I'll give you a small part of the list of how much money the Sacklers made, because the Sacklers were very good at giving it away, because if you give it away as philanthropists, you establish a good reputation for yourself.
- 8.91** Sackler School of Medicine in Tel Aviv, the Sackler School of Biomedicine at Tufts University, Raymond and Beverly Sackler Institute at Yale. The Arthur M. Sackler Museum at Harvard, the Sackler Institute for Developmental Psychobiology at Columbia, Arthur Sackler Gallery at the Smithsonian—an entire gallery, the Sackler Wing at the Metropolitan Museum in New York, the Sackler Wing of Oriental Antiquities at the Louvre, Sackler Courtyard at London's Victoria and Albert, Sackler Pavilion at the National Theater, Sackler Gallery at the Serpentine, Sackler Hall at the Museum of London.
- 8.92** I say this because the key part of this is not just that they're naming things, and that's Arthur Sackler, but that, in 2015, they make the Forbes wealthiest families list. Forbes calls them "the OxyContin clan, the \$14-billion newcomer to Forbes' 2015 list of richest US families." Now, you know you've heard in music about a one-hit wonder? Some group has one hit, and they never have another hit again, and that's it? They were a one-hit wonder in many ways. They did all the advertising and everything else for other companies. But the only hit drug that Purdue had was OxyContin. It wasn't like Pfizer.
- 8.93** Other companies marketed opioids, no question about it. Did bad behavior. I understand that. There's plenty of blame to go around in the opioid epidemic. There are overprescribing doctors. There are doctors who ran pill mills. There are people who diverted and never said anything. There are the big drug distributors who knew where the extra pills were going, who never reported. There was the FDA who was inactive. There's a whole list of people to blame. So I don't mean just the Sacklers, but they were allowed to get away with it. And there were a lot of accomplices along the way. But that, to me, was particularly the most galling part, that they had created an empire of wealth on the back of people's misery and pain.
- 8.94** The pushback. Well, I'll tell you, Marianne Skolek, she's one of those mothers. They picked on the wrong mother. I actually have the title of that chapter as "You Messed With the Wrong Mother." She was the one they became impossible to ignore, about painkillers and opioids. Journalists, prosecutors, whistleblowers started to come forward. There were court cases, and this phase of the story was one to me that really was good. "You Messed With the Wrong Mother" is the name of the chapter.
- 8.95** They started to take the Sackler name down on some of the institutions. You know those institutions aren't going to stand with the Sacklers. "Shame on the Sacklers" would be the public rally. And eventually, what happens? That company the Sacklers have goes bankrupt. That's me a couple of years ago at a rally for a group of mothers

who have lost children to fentanyl in Washington, DC, trying to get the White House to pay more attention to the problem on a particularly bad, rainy day.

- 8.96** Trisha and I have stayed involved to the extent we can, so that when Purdue declared bankruptcy, I thought to myself as a lawyer, "This is how companies get away with it. They say, 'Oh, sorry, bad deeds. We go under.'" But guess what? This is different. Normally, it's a company that's owned, a public company. It goes bankrupt. TWA was a public company that went bankrupt, and everybody lines up as creditors. But Purdue was owned by one family. No shareholders, just the Sackler family. They were the directors.
- 8.97** And guess what? They've got \$14 billion. So people were suing the directors, the Sackler family as well. So they said, "Oh, your company is bankrupt, but now we're going to come after you." And the Sacklers did something remarkable. They went into court with the highest priced lawyers, into the bankruptcy court, and they said, "You know what? We'll contribute some money. We'll put together \$2 billion. And then all these thousands of lawsuits filed against us, dismiss them at the same time you file the bankruptcy."
- 8.98** That's not what bankruptcy court's about. It doesn't protect people. They aren't bankrupt. They didn't file for bankruptcy. They don't get the right for the legal protection that bankruptcy courts do. So, there were many of us who were outraged over that. I'm lucky in that I get to go ahead and do my outrage sometimes in public. So, I wrote pieces in The New York Times. I wrote a piece with a bankruptcy professor, two different bankruptcy professors, "How to Hold Purdue Accountable." "The Sacklers Could Get Away With It"—this was the time it was pending in court—"The Sacklers' Last Poison Pill."
- 8.99** I will tell you that this I have said publicly, that I'm disappointed that the States, the attorneys general who negotiated a settlement with Purdue and eventually with the Sacklers, that none of them ever opened up a criminal investigation. I have no idea if they would have found anything. Maybe the Sacklers never did anything to cross the line, and they weren't legally responsible for anything criminal. But I would like to have seen a Department of Justice or State Attorney General look at that question, because there are questions about representation. That was never done. So I was one of their harshest critics along the way. Eventually, they had to up the ante for what they wanted to pay, and they did put in more money. They ended up putting in nearly \$7 billion by the time it was done, and they still walked away with several billion dollars in real worth.
- 8.100** Now, one of the things in the book, my book was published in March of 2020. You remember me telling you that? Right at the start of COVID. Bad time. The long list of all the events Bill Maher was supposed to be on, he canceled, he was off. Everybody was. Bookstores closed up. You were pretty much on your own, except I had one chapter, the second to last chapter—it's a bad sign that it says Chapter 51, because you know

how many chapters there are in the book—called the Coming Pandemic. So you would think, "Oh, my God, he predicted COVID." Not true. COVID doesn't appear in the book because the book was finished before COVID came out.

- 8.101** The pandemic I was talking about was a group of doctors who said, "Hey, we are worried about antibiotic resistance from all the penicillin, all the drugs, and all the antibiotics that are given out for sniffles and colds and everything else." And there are these supergerms that have formed. And sometimes we get a supergerm in India or someplace else that we can't treat with any antibiotics. We put the person in isolation, and they die. We're worried about one of those supergerms spreading into the general population. Somebody takes a plane trip and is infected with a supergerm, and isn't showing the symptoms yet, and they land in New York City or Los Angeles. It starts spreading a pandemic that we can't treat.
- 8.102** They had a very interesting point. They said, in 1980, for instance, there were nearly 30 pharmaceutical companies working on new antibiotics. Now, they were literally down to four. And the reason is, it makes sense. You spend a billion dollars to create a pill, and it's given for 5 to 7 days. That's the most. Why not make a drug instead for diabetes or heart disease or cholesterol, where people have to take the pill every day for the rest of their lives? There's more money to be made in treating chronic disease, so there's no good research in infectious diseases.
- 8.103** So that's what that was about, the coming pandemic. I will say that people who didn't necessarily know that I wasn't talking about that, I did get press that said, "Long before coronavirus, Posner began writing *Pharma*, which warns of the coming pandemic." They didn't know it was a different pandemic. That was fine. "Big Pharma may pose an obstacle to vaccine development and the impossibility of planning for a viral pandemic." So that's part of—I thought I was going to talk about the Sacklers, but I ended up talking more about that. Now, one of the things is, that's the way I remember the book, unfortunately. You may remember COVID, but that's how I remember *Pharma* at that time.
- 8.104** So, reviews came out for *Pharma*, and they were pretty good. "A withering and encyclopedic indictment of a drug industry that often seems to prioritize profits over patients. Reads like a pharmaceutical version of cops and robbers." Now, that's *The New York Times*. That's great, except it's got that word in there, "encyclopedic" indictment. I could just imagine my editor at Simon and Schuster, saying, "I can't believe it. No one's going to buy that." As a matter of fact, "A staggering indictment of pharmaceutical companies." Booklist says "encyclopedic exposé," again.
- 8.105** So it's good "dogged" reporting. It is a story that tells much more than what we talked about just today, because I talk about orphan drugs and how that system is gamed. I talk about pharmacy benefit managers, how we in the United States are the only country in the world, not just with New Zealand, the only country in the world that, until recently, allowed pharmaceutical companies unfettered pricing power. They could

set the price for whatever they wanted. And as a result, drugs were always more expensive—four, five, ten times more expensive—in the US than anywhere else.

- 8.106** Even OxyContin. Addicts paid more to die here than they did in any other country. It's absolutely outrageous. They fund the outsized profits of the companies through the pricing in America. And the claim, by the way, is, we need it for research and development. And I put a lie to that in the book, to show you how much they spend on marketing instead of research and development.
- 8.107** What does Pharma teach us about writing nonfiction? Challenge industries. I like to do that and go after a broad audience. This was a natural because everybody's taken a pill, it seems, at one point or another. Had to have the history to show how it developed out of that history, and why it was what it became. I think whether you're writing about entertainment or politics, religion or medicine, my method is the same. I follow the money. You respect the evidence, and you lay down the story in terms of facts. If you can do that, you can write nonfiction.
- 8.108** You don't have to be taking on the pharmaceutical industry. You don't have to be writing about the Vatican. You can write a small little story about somebody who's done something wrong in a neighborhood inside the city you live in and you think they've gotten away with that. You can write an uplifting and human story about a person. You can tell a tale in a book, and if you tell the tale honestly and with facts and with some power behind the story, you'll find readers. Not always as many readers as you may want; that's the nature of the business, but you'll find readers, and it's a very satisfying project. Thank you very much for your time.
- 8.109** I'm curious if you found it easier to write a book now than when you began because now you have a good reputation.
- 8.110** I should have a better answer. Yes and no, in the sense that, yes, in that I know how to start the project very, very clearly. No, in that my reputation from other books serves as a benefit and as a detriment. So the fact that I like that line that says "merciless pitbull of an investigator," somebody else may not like that at all if I'm going to talk to them. If I say, "Tell me your story, and I'll listen to it honestly, and I'll put it out," they think, "He's just going to come in and hammer and look for something else, and that's going to be the end of it." So sometimes it's no.
- 8.111** In addition, I think—and we've talked about this—if I'm asked to review a book for somebody, and I know that writer, and I'm friends with that writer, I will say to the publication that asked me to, "I'll pass. I'll do word of mouth." It's not right for me to go ahead and review the book. And if I'm asked to review a book by somebody that I really don't like at all, because they're selling what I think is tabloid, I don't want to be in that either.
- 8.112** But what happens, I think, with me is that people who are the reviewers either are inclined to like my work more than they might, because they liked my previous work, or

they can't stand my work from before, because they disagree with me on something like JFK. There are plenty of people that disagree with me on that. And so as a result, they come in resistant to it. So I get better reviews, and I get worse reviews. And when I go out to ask to talk to somebody, I know that I'm making a pitch when I ask to get into the secret archives of the Vatican. But behind that is Mengele, Oswald, Ray, and all of that. And they're looking at that, and it doesn't necessarily help as much as you would think.

- 8.113** Big Pharma. I was wondering if the Bayer Corporation, weren't they testing some of their medications on the Jews in the concentration camps?
- 8.114** Trisha, in her book, *The Pharmacist of Auschwitz*, has a story about how IG Farben, which is a big conglomerate—Bayer was part of it, Hoechst [AG], chemical companies—they were testing on people in the concentration camps. They were testing new products. And as a matter of fact, much to the shame of the US, Nazis were essentially testing for racial superiority. So all of those experiments were crazy. They were useless. The experiments on medications, there wasn't anything that was a breakthrough.
- 8.115** But you know the experiments that the US took over, and sealed and then used later, were the experiments in which the Nazis would take a prisoner and put him in a vat of ice and see how long it would be until he died. Then they would put clothing on them and see how long it would be to die, because they wanted to know how long one of their Luftwaffe Air Force pilots shot down in the tundra in Finland or that might be able to survive if they couldn't get to them beforehand; and they did it by testing it on real people. And the US said, "Oh, that's useful for us, if we're flying over the ice." So there were some crazy things that happened.
- 8.116** I know you mentioned talking to someone about using discretion or giving their permission to use their story. But with everything that you write in the book, is there anything— do you have to get their permission? If you want to write about anything, do you have to get everybody's permission?
- 8.117** No. If you're writing about, even I would say, public figures, you can write about public figures without asking them permission. So Barry Gordy in the *Motown* book didn't agree to talk to me, but he's the heart of the book as I'm writing it. But if you write a book without getting access, it shows. If you get no access at all, if you don't get any good interviews, if you get no insiders, if you're only writing from newspaper clips, what we call a cut-and-paste job, and there are people that do that—they write about somebody, but it's all from third-party sources—it shows. It has a tinny feel to it.
- 8.118** So you can write about anybody. You can even write about private people if they're in a public way. I am sometimes writing about people inside of companies who are making decisions, who aren't necessarily influencers or big public names, but they've been named in legal documents or they've been named in other materials, and I do write about them. It's not their story, but they become part of the story.

